15JAN2021 Cases

United States v. Mumme 1stCIR 13JAN21

The First Circuit affirmed Defendant's conviction of possession of child pornography and sentence of ninety-six months' imprisonment followed by lifetime supervised release, holding that Defendant's arguments on appeal were without merit. Specifically, the First Circuit held (1) the district court did not err in denying Defendant's motion to suppress statements made to investigating officers at his home and the evidence derived from the consensual seizure of his computer; (2) police officers did not unconstitutionally intrude onto the curtilage of Defendant's home; and (3) the district court did not err in denying Defendant's renewed motion to withdraw his guilty plea.

https://drive.google.com/file/d/1SULEQo59Bk8Pl-zmR2kzKgtEDaFJfhqZ/view?usp=sharing

United States v. Magallon 8thCIR 8JAN21

A grand jury indicted Defendants Magallon and Garcia Ortiz with conspiracy to distribute 500 grams or more of a mixture and substance containing methamphetamine and at least 50 grams of actual methamphetamine. Garcia Ortiz was also indicted with possession with intent to distribute at least 500 grams of a mixture and substance containing methamphetamine. Garcia Ortiz conditionally pleaded guilty to the conspiracy charge, and Magallon was convicted by a jury of the conspiracy charge. The Eighth Circuit affirmed the district court's denial of Garcia Ortiz's motion to suppress evidence where officers had an objectively reasonable suspicion that the GMC Sierra's occupants were involved in criminal activity, namely drug distribution; reasonable suspicion clearly existed to justify the stop and remained present as further information unfolded during the stop; and the officers did not exceed the mission of the stop. Furthermore, the district court did not err in finding that Garcia Ortiz consented to the search of the Lexus. The court also affirmed the district court's denial of Garcia Ortiz's motion to suppress his post-Miranda statements. In this case, defendant voluntarily waived his rights against self-incrimination and to counsel. Finally, the court held that the district court did not err in denying Magallon's request for a willful blindness instruction, and the evidence was sufficient to support defendant his conspiracy conviction.

https://drive.google.com/file/d/11BcO5SqftBkvNjuusEWfsl6by5nosoMS/view?usp=sharing

United States v. Warren 8thCIR 12JAN21

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress controlled substances found at the time of his arrest as fruits of an unlawful seizure and the district court's determination that defendant is a career offender. The court agreed with the district court that the officer's polite request for defendant to stay with him was not a command and defendant's compliance did not convert the request into a command. Even if the officer's request is construed as a command that defendant remain in the parked vehicle, the court agreed with the district court that officer safety concerns made this brief seizure objectively reasonable under Terry v. Ohio, 392 U.S. 1, 21 (1968). The court also held that circuit precedent foreclosed defendant's contention that the district court did not err in concluding defendant was a career offender based on his three Illinois controlled substance

offenses and his Iowa conviction for domestic assault with strangulation. The court need not consider the government's alternative argument that any error was harmless.

https://drive.google.com/file/d/1akD_GIYMtNR4M9BFxpvb12VTtqQAE1pJ/view?usp=sharing

United States v. King 9thCIR 14JAN21

The Ninth Circuit affirmed the district court's denial of defendant's motion to suppress firearms and dismissal of the remainder of his appeal as waived. Defendant had entered a conditional guilty plea to being a felon in possession. The panel concluded that the search warrant did not violate the Fourth Amendment where the warrant sufficiently justified the search for and seizure of "any firearm" and the good faith exception also justifies denying the suppression motion. The panel also concluded that defendant's knowing and voluntary appellate waiver precludes defendant from appealing his career offender sentence enhancement. Finally, the panel rejected defendant's contention that he should be allowed to withdraw his plea and enter a new agreement preserving his right to appeal his sentence because the district court violated Fed. R. Crim. P. 11(c)(1) by participating in his plea negotiations. As a threshold matter, the panel disagreed with the government's contention that this claim is subsumed by defendant's appellate waiver and that the panel has no jurisdiction to consider it. The panel concluded that neither of the two instances defendant alleged demonstrated inappropriate judicial pressure on plea negotiations.

https://drive.google.com/file/d/1I02teSFlEM7EDG8fzNYgOnaawimahw95/view?usp=sharing

United States v. Jenkins DCCIR 8JAN2021

Appellant was charged with two counts of possession of a firearm by a felon, 18 U.S.C. 922(g), and one count of simple possession of a controlled substance, 21 U.S.C. 844(a). Appellant conditionally pleaded guilty to the firearms charges and preserved his ability to appeal the denial of his motion to suppress evidence. The DC Circuit affirmed the district court's judgment, holding that appellant's motion to suppress was properly denied where the vehicles' in-tandem driving to and from the scene of a shooting is suggestive of a conspiracy to perpetrate the shooting, in a way that mere presence as a passenger during what might have been an outwardly lawful transaction is not. Furthermore, despite the passage of time, the evidence gathered by the police was sufficient to establish probable cause to search one of the vehicles when it was seized. Finally, the court held that, while it would have been better if the district court had expressly omitted the disputed sentencing points from its calculation of the criminal history score, the record is sufficiently clear that the points did not affect the sentence. Accordingly, the court affirmed appellant's conviction and sentence.

https://drive.google.com/file/d/1I02teSFlEM7EDG8fzNYgOnaawimahw95/view?usp=sharing

State v. Mixton Arizona Supreme Court 11JAN2021

The Supreme Court affirmed Defendant's convictions, holding that neither the United States nor the Arizona Constitution requires a search warrant or court order for a law enforcement officer to obtain either a user's Internet Protocol (IP) address or subscriber information the user voluntarily provides to an Internet Service Provider (ISP) as a condition or attribute of service. Defendant was indicted on twenty counts of sexual exploitation of a minor under fifteen years of age. Defendant filed a motion to suppress on the grounds that the United States Fourth Amendment and Ariz. Const. art. II, 8 required a warrant or court order to obtain his IP address and ISP subscriber information. The motion was denied, and a jury convicted Defendant on all counts. The court of appeals affirmed. The Supreme Court affirmed, holding that the State lawfully obtained the challenged information with a valid federal administrative subpoena because neither the Fourth Amendment nor article 2, section 8 of the Arizona Constitution requires law enforcement officials to secure a search warrant or court order to obtain IP addresses or subscriber information voluntarily provided to ISPs as a condition or attribute of service.

https://drive.google.com/file/d/1I02teSFlEM7EDG8fzNYgOnaawimahw95/view?usp=sharing

California v. Sims CCA 12JAN2021

Defendant Tony Sims appealed after he pleaded guilty to two counts of possession of a firearm by a felon and one count of unlawful possession of ammunition. He contended the trial court erred in denying a motion to suppress incriminating evidence obtained during a warrantless search of his vehicle. Defendant also argued he was entitled to seek a reduction of his three-year probation term under recently-enacted Assembly Bill No. 1950 (Stats. 2020, ch. 328, sec. 2). Relying on In re Estrada, 63 Cal.2d 740 (1965), defendant claimed Assembly Bill No. 1950's limitation on the maximum duration of felony probation terms constituted an ameliorative change to the criminal law that applied retroactively to cases that were not reduced to final judgment as of the new law's effective date. The Court of Appeal concluded the trial court properly denied the motion to suppress because the search of defendant's vehicle was valid under the automobile exception to the warrant requirement and, in the alternative, as a search incident to arrest. With respect to his second argument, the Court of Appeal agreed. Judgment was affirmed as to his conviction, but reversed in part as to defendant's sentence. The matter was remanded for resentencing.

https://drive.google.com/file/d/1M0WoGTsxdeQhJ4UJu7kaH0pPztRzR68Y/view?usp=sharing

State v. Briggs NebSC 8JAN2021

The Supreme Court reversed the decision of the court of appeals affirming Defendant's conviction of two counts of possession of a controlled substance, holding that the district court erred in denying Defendant's motion to suppress evidence found during a warrantless search of Defendant's vehicle. On appeal, Defendant argued that the State failed to meet its burden of proving that the search fell within the inventory search exception to the warrant requirement. The court of appeals disagreed, concluding that the police did not use the inventory search as pretext for a general rummaging in order to discover incriminating evidence. The Supreme Court reversed, holding that it was not possible on the record to

determine whether the search was conducted in conformity with Omaha Police Department's standardized procedures governing inventory searches; and (2) therefore, the State failed to meet its burden to show that the search fell within the inventory search exception.

https://drive.google.com/file/d/1tQ9dHnymIlynzwJ6W6bKUZ6cVRw0i1zA/view?usp=sharing

North Dakota v. Casatelli ND SC 12JAN2021

Garett Casatelli appealed a corrected criminal judgment after he entered a conditional guilty plea to actual physical control of a motor vehicle with a blood alcohol concentration of 0.08 percent or greater. After review of the trial court record, the North Dakota Supreme Court concluded Casatelli was not seized in violation of the Fourth Amendment or N.D. Const. art. I, sec. 8, and the district court did not err in denying his motion to suppress evidence.

https://drive.google.com/file/d/1efgZvOC8ecUxpFvxJh6utiSwhPss1lDh/view?usp=sharing

USE OF FORCE CASES

Farge v. Parks 1stCIR 13JAN2021

Use of Force, Deadly Force, Shooting at vehicle

The First Circuit affirmed the order of the district court granting summary judgment against Plaintiff, acting as the personal representative of the estate of Ambrosia Fagre (Amber), on claims related to Amber's death, holding that the district court did not err when it granted Trooper Jeffrey Parks's motion for summary judgment on Plaintiff's 42 U.S.C. 1983 claim. Plaintiff's complaint alleged use of excessive force against Amber in violation of the Fourth and Fourteenth Amendments under section 1983 and use of excessive force against Amber in violation of Me. Const. art. I, 5 under the Maine Civil Rights Act, failure to protect Amber in violation of the Fourteenth Amendment, and negligence and wrongful death under Maine state law. The district court granted Trooper Parks's motion for summary judgment. The First Circuit affirmed, holding (1) summary judgment on Plaintiff's section 1983 claim was warranted, and Trooper Parks was also entitled to qualified immunity; and (2) the district court did not err by granting summary judgment on Plaintiff's state law claims because Trooper Parks was entitled to immunity under the Maine Tort Claims Act, Me. Stat. Tit. 14, 8111(1).

https://drive.google.com/file/d/1ojwsuNbeXTzzBFDyK4DayzIynWJVdmM4/view?usp=sharing

22JAN2021 Cases

US v. Mora-Alcaraz 9thCIR 21JAN2021

Custody for Miranda Purposes

The United States sought an interlocutory appeal of the district court's order suppressing evidence in a criminal prosecution. Defendant was indicted for being an alien in possession of a firearm, and the evidence suppressed resulted from a confrontation between police officers and defendant while he was with his seven-year-old son at a shopping mall. As a preliminary matter, the Ninth Circuit held that United States v. Healy, 376 U.S. 75 (1964), foreclosed defendant's contention that the appeal is untimely. The panel affirmed the district court's suppression of the statements because they were the product of a custodial interrogation conducted without the required Miranda warnings and thus inadmissible. However, the panel explained that a Miranda violation does not alone warrant suppression of the physical fruits of defendant's inculpatory statements. Furthermore, both parties agree that the appropriate inquiry is whether, looking at the totality of the circumstances, defendant's consent to the search of the trunk was voluntary. Therefore, the panel remanded for the district court to resolve the voluntariness issue in the first instance.

https://drive.google.com/file/d/1dHKsdd8nia9xI9jbtMLF1V_PaU7ECbsd/view?usp=sharing

US v. Chavez 10thCIR 20JAN2021

Inventory seizure

Before the warrantless seizure of a firearm from a car, the driver, defendant Manuel Chavez, had driven the car at least a couple hundred feet up a private, dirt roadway and parked it outside his isolated trailer home. The district court approved just one of the government's asserted justifications for the seizure of the firearm (a .38 special caliber Amadeo Rossi S.A.), ruling that the deputy's seizure of the firearm was reasonable as part of an inventory of the car's contents in preparation for impounding it. But during the inventory, a woman emerged from the trailer and satisfied the deputy that she owned the car. So the deputy left the car with her where it was parked, mere feet from her and defendant's trailer, but the deputy kept the firearm. In denying an ensuing motion to suppress, the district court held that the deputy could lawfully seize and keep the firearm, even without admissible evidence that anyone had illegally possessed or used it. The court did not evaluate whether it mattered that the deputy never in fact impounded the car. The Tenth Circuit rejected the district court's denying the motion to suppress on inventory-impoundment grounds. Further, the Court rejected all the government's other asserted bases to validate the deputy's seizing and keeping the firearm. The district court erred by denying the motion to suppress, so the Tenth Circuit reversed.

https://drive.google.com/file/d/1eb6qkt2Qm8id03NIIpmbYU9o6g4bFn45/view?usp=sharing

Perez v. Colorado COSupCt 19JAN2021

Miranda - Public Safety Exception

As Marcus Perez was being arrested after a lengthy foot pursuit, the arresting officer found two live shotgun shells in Perez's pocket. Without giving Perez Miranda warnings, the officer asked him, "Where's the gun?" Perez answered that he had thrown the gun away. At a suppression hearing, Perez argued that his answer should have been suppressed because he was not Mirandized before the officer questioned him. The trial court disagreed, finding that the public safety exception to Miranda v. Arizona, 384 U.S. 436 (1966), applied. A jury convicted Perez of second-degree assault on a peace officer and four counts of possession of a dangerous weapon by a previous offender ("POWPO"). Perez appealed, contending that the public safety exception did not apply. The court of appeals agreed but deemed the error harmless beyond a reasonable doubt and affirmed the convictions. Under the facts of this case, the Colorado Supreme Court concluded the public safety exception applied, and the arresting officer was not required to give Miranda warnings before inquiring about the gun's location.

https://drive.google.com/file/d/18yMz8W05Fiv8Ujj5YAJ126rH9E0KIkBf/view?usp=sharing

5 FEB 2021 Blue Flash

Jordan v. Howard 6thCIR 3FEB21

During the early morning hours of October 20, 2017, McShann was asleep in the driver's seat of a locked, running car with his right hand resting on a pistol in his lap and music blaring from the car stereo. Officers, responding to a complaint, determined that the car was registered to a woman whom they were unable to contact. Seconds after officers roused him from sleep, McShann stopped complying with their orders that he keep his hands up and away from the gun. He grabbed the gun and swung it toward the driver-side door, where two officers were positioned. Fearing for their safety and that of their fellow officers, the officers opened fire, killing McShann. After the shooting, the officers immediately called for medical assistance and attempted first aid. The district court concluded the use of deadly force was reasonable and granted the officers summary judgment on excessive force claims, 42 U.S.C. 1983, by McShann's estate. The Sixth Circuit affirmed. The plaintiff's expert's testimony that "[t]he lack of damage to the gun provides clear evidence that Mr. McShann was not holding the gun when he was shot in the hand" did not create a genuine issue of material fact. Such speculation is not enough to controvert consistent officer testimony.

Henderson v. Georgia GASCT 1FEB21

Aquillous Rayon Henderson tried by jury and convicted of malice murder and other offenses in connection with the 2016 shooting death of Timothy Hill. His amended motion for new trial was denied, and he appealed, arguing the trial court erred in: (1) denying his motion to suppress his custodial statement; and (2) excluding of Henderson's testimony that Hill said he had been in prison. Finding no reversible error, the Georgia Supreme Court affirmed.

Kirkland v. Georgia GASCT 1FEB21

Johnathon Kirkland appealed his convictions for malice murder and related offenses, contending the trial court erred by failing to suppress an identification of him made by means of a photo lineup. Specifically, Kirkland contended the photo-lineup procedure was unduly suggestive. Finding no reversible error, the Georgia Supreme Court affirmed Kirkland's convictions.

State v. Carter MDCOA 29JAN21

The Court of Appeals affirmed the judgment of the court of special appeals reversing Defendant's convictions on the grounds that the circuit court should have granted Defendant's motion to suppress, holding that the State failed to meet its burden of establishing the constitutionality of Defendant's seizure at the suppression hearing. When Maryland Transit Administration (MTA) police officers conducted a fare sweep aboard a Light Rail train Defendant confessed that he did not have a ticket. An officer obtained identifying information from Defendant and ran a warrant check on him revealing the existence of a warrant for Defendant's arrest. In attempting to arrest Defendant, officers saw that Defendant had a gun. Defendant moved to suppress the gun, arguing that the fare sweep constituted a warrantless seizure not based on reasonable suspicion. The circuit court denied the motion to suppress. The court of special appeals reversed, concluding that the circuit court erred in denying Defendant's suppression motion. The Court of Appeals affirmed, holding (1) police officers effected a seizure of Defendant without reasonable suspicion by announcing the fare sweep, and Defendant did not impliedly consent to the seizure by riding the train; and (2) the record was insufficiently developed to conclude whether Light Rail sweeps are constitutional under the special needs doctrine.

State v. Halverson WISCT 29JAN21

The Supreme Court remanded this case to the circuit court with directions to deny Defendant's motion to dismiss, holding that Defendant was not in custody for purposes of Miranda v. Arizona, 384 U.S. 436 (1966), when he was interviewed by a police officer. Defendant was an inmate in jail when he returned a call from an officer regarding an incident at Defendant's prior correctional institution. During the call, during which no Miranda warnings were given, Defendant admitted to the officer that he took and destroyed an inmate's missing property. The circuit court granted Defendant's motion to suppress, concluding that it was bound to apply the per se rule set forth in State v. Armstrong, 588 N.W.2d 606 (Wis. 1999), that incarcerated individuals are in custody for Miranda purposes. The court of appeals reversed, holding that the per se rule adopted in Armstrong was effectively overruled by the United States Supreme Court in Howes v. Fields, 565 U.S. 499 (2012). The Supreme Court affirmed, holding (1) the decision in Howes functionally overruled Armstrong's per se rule; and (2) Defendant's circumstances did not satisfy the standard requirements for custody under Miranda's framework.

Wingate v. Fulford 4thCIR 4FEB21

Plaintiff filed suit under 42 U.S.C. 1983 and Virginia common law, challenging his stop, arrest, and subsequent prosecution. The district court denied plaintiff's motion for summary judgment and granted the officers' motion for summary judgment on each of plaintiff's claims. The Fourth Circuit held that, when Deputy Fulford told plaintiff that he was not free to leave until he identified himself, this unambiguous restraint on plaintiff's liberty converted the previously voluntary encounter into a compelled detention—an investigatory stop. Furthermore, the district court erred in finding that Fulford's stop was supported by reasonable and particularized suspicion. In this case, it is not enough that Fulford first began to suspect criminal activity when a man that he intended to help approached him in dark clothing. The court also held that plaintiff's arrest was likewise unlawful where Stafford County Ordinance 17–7(c), which makes it a crime for any person at a public place or place open to the public to refuse to identify himself at the request of a uniformed law-enforcement officer if the surrounding circumstances are such as to indicate to a reasonable man that the public safety requires such identification, is unconstitutional when applied outside the context of an investigatory stop. The court further held that Fulford is not entitled to qualified immunity for his unconstitutional investigatory stop, but the officers are entitled to qualified immunity for their unlawful arrest under Stafford County Ordinance 17–7(c). Until today, the court explained that no federal court has prescribed the constitutional limits of section 17-7(c)'s application and thus this right was not clearly established at the time of plaintiff's arrest. Finally, the court affirmed the district court's grant of summary judgment for the officers on plaintiff's claims under the Virginia common law. The court affirmed in part, reversed in part, vacated in part, and remanded with instructions.

State v. Glenn MESCt 28JAN21

The Supreme Judicial Court affirmed Defendant's conviction of possession of sexually explicit material, holding that the superior court did not err by denying Defendant's motion to suppress on the grounds that Defendant, despite his diagnosis of Autism Spectrum Disorder (ASD), was capable of voluntary consent. Defendant sought to suppress his statements to police regarding sexually explicit material depicting minors found on his electronic tablet and any evidence of sexually explicit materials depicting minors discovered as a result. The superior court denied Defendant's motion to suppress, concluding that Defendant had the capacity to and did voluntarily speak to the police and consent to the search of his tablet. The Supreme Judicial Court affirmed, holding that Defendant's ASD did not render his statements or the search of his tablet involuntary.

BF 12FEB2021

United States v Pulley 4thCIR 10FEB2021

A district court's finding of whether a particular false statement or omission in a warrant affidavit was made intentionally or with reckless disregard for the truth is a factual one, subject to reversal only upon an appellate finding of clear error.

The Fourth Circuit affirmed defendant's conviction, pursuant to a plea agreement, for intent to distribute a quantity of hydrocodone. The court upheld the district court's denial of defendant's motion to suppress evidence that was seized pursuant to warrants authorizing searches of his residence, automobile, and mobile device in connection with a robbery. Because the court found no clear error in the district court's factual findings regarding the Franks intentionality prong, the court rejected defendant's challenges and need not reach the materiality prong. Likewise, the court need not reach defendant's Lull-premised contention that all of the co-suspect's statements should be removed from the affidavit and that the affidavit, so altered, is insufficient to establish probable cause. The court also concluded that the district court did not commit clear error in its remaining findings of fact. In this case, the district court expressly credited the detective's testimony that the robbery co-suspect provided information that was found to be credible based on it having been corroborated.

https://drive.google.com/file/d/1JBFtLcYVWlwl4fMn7CYRyqDjqpGBdm2d/view?usp=sharing

United States v. Brooks 6thCIR 9FEB2021

Police officers pulled over the vehicle in which Brooks was riding for a seatbelt violation. The officers approached, smelled marijuana, and saw Brooks making a “stuffing motion” under his seat. The police found a gun partially hidden there. After a jury convicted Brooks of being a felon in possession of a firearm, the lone African-American juror emailed the court that the other jurors had pressured her into a guilty verdict. On appeal, Brooks claimed that the stop and search of the vehicle violated the Fourth Amendment, that the prosecution presented insufficient evidence that he “possessed” a gun, and that he is entitled to an evidentiary hearing under Peña-Rodriguez v. Colorado, to investigate the racial biases of the other jurors. The Sixth Circuit affirmed Brooks’s conviction and 66-month sentence. The number of officers who conducted the traffic stop did not affect whether it was “reasonable” under the Fourth Amendment. The felon-in-possession statute does not require a defendant to control a gun for any significant period of time. Peña-Rodriguez does not permit an evidentiary hearing to impeach a jury verdict even when no jurors made race-based statements.

https://drive.google.com/file/d/1hcmRTqiSudFn39t3qunXzn1JbbVoNM5I/view?usp=sharing

Estate of Christopher J. Davis v. Ortiz 7thCIR 5FEB2021

East Troy police, conducting a “sting” operation, used a confidential informant to lure Juarez-Nieves into delivering cocaine at Roma’s restaurant. Nieves showed up with Davis and Lara, who parked their car in the restaurant lot, next to an empty vehicle. The police arrived in their marked squad car and started to park behind the empty car, Lara began slowly to pull out of his parking spot. Officer Knox had to step aside to avoid the car. As Lara headed for the exit, Deputy Ortiz, standing 50 feet away, fired shots into the car. A shot hit Davis. Lara kept driving for a brief time but crashed the car. The police apprehend Lara and Nieves as they fled on foot. Medical personnel pronounced Davis dead. Davis’s Estate argued that Ortiz’s use of deadly force was unreasonable. The district court found that Ortiz’s testimony was not enough to establish as a matter of law that Ortiz was aiming exclusively for the driver. Instead, Ortiz said that his “intent was to stop the threat that was coming at [him].” The district court found that a jury could conclude that Ortiz was shooting at the car generally and that deadly force was excessive in those circumstances. The court denied Ortiz’s motion for qualified immunity. The Seventh Circuit dismissed an interlocutory appeal for lack of jurisdiction. Disputes of material fact on which immunity depend must be resolved by the trier of fact.

https://drive.google.com/file/d/18bjju6k2ZuN6L1ZpA9f-Re-g6_n5CPbr/view?usp=sharing

Young v. City of Chicago 7thCIR 5FEB2021

Young drove Hughes to get a haircut. Hughes stated that he had a gun that he was returning to its owner at the barbershop. Young came back hours later. Young did not ask about the gun but believed that Hughes had left it. Chicago police received an anonymous tip that the two were driving around with a gun. Officers spotted the vehicle and saw that Hughes was not wearing a seatbelt. They lawfully stopped the car and approached with guns drawn. Hughes told Young, “take this.” Young replied, “hell no.” Hughes wiped the gun and placed it on the center console. The officers saw this, arrested both men, and learned both were convicted felons. The officers' reports listed Hughes as the gun's possessor and owner. Young was charged as an armed habitual criminal. A judge found probable cause to detain him. Young could not pay the $100,000 bond. Young stayed in pretrial detention for a year before being acquitted. Young sued Chicago and several officers under 42 U.S.C. 1983 for holding him in pretrial detention without probable cause and ignoring and fabricating evidence to detain him. The Seventh Circuit affirmed the summary judgment rejection of all of his claims. “It does not matter that Young said the gun wasn’t his—protesting innocence is not a get-out-of-pretrial-detention-free card." Nor does it matter that the police allegedly later falsified evidence. They had all the probable cause they needed from the arrest scene.

https://drive.google.com/file/d/1tMMj95-w4jcrcuCS0Qv6zH-c1TU_dQx_/view?usp=sharing

United States v. Torres 10thCIR 8FEB2021

In a pat-down search of Ronald Torres following a traffic stop, police officers found a handgun, which lead to his arrest for possessing a firearm after a felony conviction. Torres moved to suppress evidence of the gun, arguing police did not have a reasonable suspicion for the traffic stop. Though the district court erroneously viewed the evidence in the light most favorable to the government, the Tenth Circuit determined this error was ultimately harmless, because undisputed evidence had justified the traffic stop and pat-down search. The traffic stop was permissible because the police had probable cause from observing a parking violation. When the police approached the vehicle, the smell of burnt marijuana created reasonable suspicion for further questioning. That questioning led to reasonable suspicion that Torres was armed and dangerous, justifying the pat-down search. Given the reasonableness of the suspicion for the pat-down search, the Tenth Circuit concluded the district court did not err in denying Torres's motion to suppress.

https://drive.google.com/file/d/1drmlllyw9HT62NicOzdY06QZSAcEdhaj/view?usp=sharing

United States v. Antonio Morales 11thCIR2021 5FEB2021

The Eleventh Circuit affirmed defendant's conviction for possession of marijuana with intent to distribute and of unlawful possession of a firearm and ammunition. The court held that, even if the affidavit supporting the search warrant did not establish probable cause to justify the search, suppression of the fruits of the search would be inappropriate under the good faith exception to the exclusionary rule. The court explained that the police here did exactly what the Fourth Amendment required of them: they obtained a warrant in good faith from a neutral magistrate and reasonably relied on it; they had no reason to believe that probable cause was absent despite the magistrate's authorization; there is no evidence in this record that the affidavit supporting the warrant misled the magistrate or that it contained false information; the affidavit was not lacking in indicia of probable cause so as to render the executing officers' belief in its existence unreasonable; and the warrant was not facially deficient because it failed to particularize the place to be searched or the things to be seized. Finally, the court rejected defendant's claim that the district court lacked lacked subject matter jurisdiction over the unlawful possession of a firearm and ammunition charge, because such an omission is not a jurisdictional defect.

https://drive.google.com/file/d/12GDFThLME0UKuLuZZsuLn-z_YYfD9vFd/view?usp=sharing

Perez v. Colorado COSCt 8FEB2021

After Marcus Perez led police on a "lengthy foot pursuit," officers found two live shotgun shells in Perez's pocket. Without giving Perez Miranda warnings, the officer asked him, “Where’s the gun?” Perez answered that he had thrown the gun away. At a suppression hearing, Perez argued that his answer should have been suppressed because he was not Mirandized before the officer questioned him. The trial court disagreed, finding that the public safety exception to Miranda v. Arizona, 384 U.S. 436 (1966), applied. A jury convicted Perez of second-degree assault on a peace officer and four counts of possession of a dangerous weapon by a previous offender (“POWPO”). Perez appealed, contending that the public safety exception did not apply. The court of appeals agreed but deemed the error harmless beyond a reasonable doubt and affirmed the convictions. Under the facts of this case, the Colorado Supreme Court concluded the public safety exception applied, and the arresting officer was not required to give Miranda warnings before inquiring about the gun's location.

https://drive.google.com/file/d/1ABJWhpY8iiJqmdzFsU0bZ6Q2IrsApd8h/view?usp=sharing

State v. Lee HISCt 9FEB2021

The Supreme Court affirmed the judgment of the intermediate court of appeals (ICA) vacating the circuit court's order granting Defendant's motion to suppress evidence obtained in a search of Defendant's bedroom, holding that the circuit court erred in suppressing all evidence obtained by the State. In granting Defendant's motion to suppress, the circuit court determined that Defendant possessed a reasonable expectation of privacy in his bedroom and that the police officer coerced Defendant into opening his bedroom door. The court then suppressed all statements, evidence, observations and actions that were obtained after entry into the bedroom. The ICA vacated the circuit court's order, holding that an emergency aid exception justified the warrantless search. The Supreme Court affirmed on different grounds, holding that, even if the officers unlawfully searched Defendant's bedroom, the evidence obtained did not constitute suppressible "fruit of the poisonous tree."

https://drive.google.com/file/d/1ZBA3tXIJFr57eOGjbqtoEj_exGh9qgUz/view?usp=sharing

State v. Johnson NESCt 5FEB2021

The Supreme Court affirmed Defendant's convictions and sentences for five counts of robbery, five counts of use of a weapon to commit a felony, one count of second-degree assault, and one count of attempted escape, holding that Defendant was not entitled to relief on his assignments of error. Specifically, the Supreme Court held (1) the district court did not err when it overruled Defendant's motion to suppress statements he made while in custody; (2) the district court did not err in overruling Defendant's motion to suppress evidence of witness identifications from photographic lineups; (3) there was sufficient evidence to support the district court's finding that Defendant failed to prove the insanity defense; and (4) Defendant's sentences were not excessive.

https://drive.google.com/file/d/1OQV9rdc1ck5v7YZ7tUWggZIyG4Tj8feR/view?usp=sharing

State v. Thomas NESCt 5FEB2021

The Supreme Court affirmed Defendant's conviction of possession of a firearm by a prohibited person, possession of a controlled substance, and possession of marijuana, holding that the district court did not err in denying Defendant's motion to suppress. In his suppression motion, Defendant sought to suppress evidence found in his vehicle during a felony traffic stop. The stop was initiated based on law enforcement's belief that Defendant's vehicle matched the description in a police bulletin of a vehicle used in a shooting committed three days prior. In his motion to suppress, Defendant argued that the police bulletin was insufficient to justify the traffic stop. The Supreme Court affirmed the district court's denial of the suppression motion, holding (1) the felony traffic stop was a tier-two police-citizen encounter; and (2) the law enforcement officers had reasonable suspicion to conduct an investigatory stop of Defendant's vehicle based on the police bulletin alone.

https://drive.google.com/file/d/173F0te5UZJYWgHdSPcEEpfohHAKfKjDU/view?usp=sharing

Wheeler v. Texas TXCCA 10FEB2021

In applying for a blood-alcohol search warrant, a police officer submitted an unsworn probable-cause affidavit. Finding that the affidavit articulated probable cause but not realizing that it was unsworn, a magistrate signed and returned the search warrant. The same police officer then executed that search warrant. It was undisputed the officer’s failure to take the oath and swear to his probable-cause affidavit was improper. The question before the Texas Court of Criminal Appeals was whether despite this defect, and assuming a valid warrant issued, the good-faith exception to the Texas exclusionary rule applied such that the blood-alcohol evidence was admissible. The Court held that, under the facts of this case, the good-faith exception was inapplicable and the evidence was subject to suppression. The Court agreed with the court of appeals that the officer in this case was objectively unreasonable in executing a search warrant he knew was unsupported by a sworn probable-cause affidavit, such that he could not be said to have acted in objective good-faith reliance upon the warrant.

https://drive.google.com/file/d/1rrG2Ufkkou7xY7J-cerksm5Ge3d_2JB9/view?usp=sharing

Alasaad v. Wolf 1stCIR 9FEB2021

In this civil action brought by plaintiffs seeking to enjoin policies governing searches of electronic devices at the United States' borders, the First Circuit found no violations of either the Fourth Amendment or the First Amendment. The border search policies challenged her allow border agents to perform basic searches of electronic devices without reasonable suspicion and advanced searches with reasonable suspicion. The First Circuit joined the Eleventh Circuit in holding that advanced searches of electronic devices at the border do not require a warrant or probable cause and joined the Ninth and Eleventh Circuits in holding that basic border searches of electronic devices are routine searches that may be performed without reasonable suspicion. The Court then affirmed in part, reversed in part and vacated in part the judgment of the district court, holding that the court erred in narrowing the scope of permissible searches of electronic devices at the border.

https://drive.google.com/file/d/1jfNZCi4FVdLFHOpG9TBJRAzKkaAtC5sI/view?usp=sharing

5MAR2021

United States v. Reedy 7thCIR 1MAR2021

Police responded to a call that a homeless person was sleeping in a car behind a store and found Reedy wearing a bulletproof vest in the front passenger seat of a Kia. They saw an open knife, crowbar, and walkie-talkie on the car's floorboard. Reedy said that his friend, Jason, was visiting someone nearby. Telling Reedy to stay put with one officer, another officer looked for Jason and found him in a backyard wearing dress clothes yet claiming to be doing lawn work. Searching Jason's backpack, officers found methamphetamine, credit cards in others' names, latex gloves, rocks, knives, bolt cutters, shotgun ammo, and a walkie-talkie tuned to the same channel as Reedy's. A search of the Kia turned up a shotgun. Reedy faced a federal gun possession charge. The Seventh Circuit affirmed the denial of Reedy's motion to suppress. Officers had ample authority to direct Reedy to step out of his car and to subject him to further questioning and investigation consistent with Terry; there was no unreasonable delay in the execution of the Terry stop. This same sequence of events supplied the probable cause necessary to arrest Reedy. Once the police returned Jason to the car, the initial Terry stop of Reedy effectively turned into an arrest supported by probable cause for, at minimum, possession of burglarious tools.

https://drive.google.com/file/d/1rEktKrMcs8pLI5KmMHgAinPevzKB6sMS/view?usp=sharing

United States v. Mercado-Gracia 10thCIR 2MAR2021

Defendant Aaron Mercado-Gracia challenged his three convictions for drug trafficking, conspiring to traffic drugs, and using a firearm in relation to a drug-trafficking offense. In upholding his convictions, the Tenth Circuit found the district court did not err in denying Mercado-Gracia's motion to suppress evidence discovered as the result of a traffic stop. The traffic stop evolved into a consensual encounter during which the police officer developed reasonable suspicion to believe Mercado-Gracia was involved in drug trafficking. That reasonable suspicion justified a brief investigative detention, during which the officer deployed his drug-sniffing dog, which alerted, leading to the discovery of a gun and two kilograms of heroin in the car Mercado-Gracia was driving. Furthermore, the district court did not abuse its discretion in denying Mercado-Gracia's request to play during voir dire a video to educate prospective jurors on implicit bias. Thus, finding no reversible error, the Tenth Circuit affirmed Mercado-Gracia's convictions.

https://drive.google.com/file/d/1xyfnOjKGVN_ruoUwMU1HJi36VWtdXLQO/view?usp=sharing

Gaddy v. Georgia GA SC 1MAR2021

William Gaddy was convicted of felony murder and related crimes in connection with the death of Addisyn Sanders, the two- year-old daughter of Gaddy's girlfriend, Tiffany Harris. Gaddy generally watched Addisyn while Harris was at work during the day. Gaddy, Harris, and Addisyn moved in with

Gaddy's grandmother. Gaddy's ten-year-old brother, C. F., who often visited, was playing video games in one of the home's bedrooms while Gaddy and Addisyn watched television in the living room. C. F. heard Addisyn crying while she said "no" and "stop" just before there were three thumps that sounded like a head banging against a wall. Then, C. F. saw Gaddy carry Addisyn's limp body to another bedroom and leave her there. On appeal, Gaddy argued the trial court erred in denying his motion to suppress his custodial statement. After review of the trial court record, the Georgia Supreme Court found no reversible error and affirmed Gaddy's convictions.

https://drive.google.com/file/d/1Y3uhD0ZMjYZ8hDeRG9l2TLyjZNLPbBf0/view?usp=sharing

State v. Lowman NE SC 26FEB2021

The Supreme Court affirmed the judgment of the district court convicting Defendant of possession of a controlled substance and two counts of carrying a concealed weapon, holding that there was no merit to Defendant's claims on appeal. On appeal, Defendant contended that the district court erred in overruling his motion to suppress, that he received ineffective assistance of counsel, and that the evidence was insufficient to convict him of carrying a concealed weapon. The Supreme Court affirmed, holding (1) because there was no Fourth Amendment violation the court properly overruled Defendant's motion to suppress; (2) there was sufficient evidence to support the verdict; and (3) trial counsel did not perform deficiently.

https://drive.google.com/file/d/1ERn7iDd5OUrz_580biz5EYwW1omi4wdj/view?usp=sharing

State v. Depina RI SC 3MAR2021

The Supreme Court affirmed the judgment of conviction and commitment entered in the superior court reflecting the fact that Defendant was found guilty of second-degree murder, holding that the trial justice did not err when she denied Defendant's motion to suppress. Before trial, Defendant filed a motion to videos located on a digital camera, arguing that the detectives who seized the camera improperly expended the scope of the judicially-approved warrant. The trial justice denied the motion. After a jury trial, Defendant was found guilty of second-degree murder and sentenced to life imprisonment. The Supreme Court affirmed, holding that the trial justice did not clearly err in denying the motion to suppress because, in seizing the camera, the police did not exceed the scope of the warrant.

https://drive.google.com/file/d/1j1c7rQWGF_5kvGH-wRcbnembRbDyi_Pa/view?usp=sharing

USE OF FORCE

Hernandez v. Town of Gilbert 9thCIR 4MAR2021

The Ninth Circuit affirmed the district court's grant of summary judgment based on qualified immunity to a police officer in a 42 U.S.C. 1983 action brought by plaintiff, alleging that the officer used excessive force when he deployed his police dog in effecting plaintiff's arrest for driving under the influence and

resisting arrest. The panel concluded that no clearly established law governed the reasonableness of using a canine to subdue a noncompliant suspect who resisted other types of force and refused to surrender. In this case, following a brief police chase, plaintiff fled to his home where he activated the remote-controlled garage door opener, remained in control of his car inside the garage for eight minutes, refused multiple commands to get out of the car, and resisted lesser force employed by officers without effect while he continued resisting. The officer released his police dog to force compliance and, even after the dog bit him, plaintiff continued to resist. The panel explained that the initial deployment of the canine and the duration of the bite did not violate clearly established law.

https://drive.google.com/file/d/1U4DuX3s5X-_QZsqwqcQTGkkbdhvEXsF9/view?usp=sharing

United States v. Berrios 7thCIR 5MAR2021

In 2012, Berrios was charged with Hobbs Act robbery in connection with an armed robbery of a Chicago AT&T store. The next day, as Berrios and his associate were preparing to rob a currency exchange, the FBI conducted a traffic stop and arrested Berrios without a warrant. During a search incident to that arrest, the agents recovered a Samsung phone and other items including a BB gun that Berrios' group had used in a series of robberies. The FBI conducted a warrantless search of the phone, downloading the contacts, call logs, text messages, and photographs. Some photos showed Berrios with his co-defendants. The government later admitted that the phone search was illegal but argued that the law at the time of the search did not prohibit it, so the "Davis" good-faith exception to the exclusionary rule applied. The other evidence at trial included co-defendant testimony, Berrios's post-arrest statements, a recorded call that Berrios made from jail, surveillance videos, victim testimony, and the other items recovered from the car. A jury convicted Berrios on all counts; he was sentenced to a total term of 360 months. The Seventh Circuit affirmed the denial of a motion to suppress and the convictions. Stating that it "was a close call," the court concluded that although there was no binding precedent that would have exempted this search from the exclusionary rule, the independent-source rule allowed the admission of the limited evidence the government used.

https://drive.google.com/file/d/1IjXoIDp6KukmSCwFMIuguTVKkBzZme9E/view?usp=sharing

United States v. Smith 8thCIR 5MAR2021

The Eighth Circuit affirmed defendant's conviction and sentence for possession with the intent to distribute five or more grams of actual methamphetamine and possession of a firearm in furtherance of a drug trafficking crime. The court held that the officers had probable cause to detain defendant based on the registration violation alone and, given his earlier flight in the Nissan, it was not unreasonable for the officers to effectuate the stop by blocking the car in, or for the officer to ask defendant to step out of the car with his hands raised. Furthermore, defendant's initial failure to comply with the officer's commands and his furtive gestures, together with the car's earlier flight, made it reasonable for the officers to handcuff him. The court also concluded that, based on the smell of marijuana emanating

from the car and the marijuana cigarette found in the passenger's jacket, the officers also had probable cause to search the entire vehicle for drugs and drug paraphernalia. After an officer had lawfully initiated the traffic stop and detained defendant, another officer's action in shining his flashlight to illuminate the interior of the vehicle did not violate the Fourth Amendment. Finally, the district court did not err in denying defendant's request for a lesser-included instruction on simple possession of methamphetamine.

https://drive.google.com/file/d/1XfLx2rEpKJkTUvMIdSlYEb5HH-_4spKY/view?usp=sharing

United States v. Knights 11thCIR 10MAR2021

The Eleventh Circuit granted defendant's motion for panel rehearing, vacated the original opinion in this appeal, and substituted in its place the following opinion. The court affirmed the district court's denial of defendant's motion to suppress the evidence officers found in an investigatory stop and the statements he made to the officers. In this case, the officers saw defendant and another individual at 1:00 a.m. in a car that was parked in the front yard of a home; suspecting that the men might be trying to steal the car, the officers parked near it and approached defendant, who was in the driver's seat; when defendant opened the door, an officer immediately smelled marijuana; and an ensuing search of the car revealed ammunition and firearms. The court held that the officers did not violate defendant's right to be free from unreasonable seizures because defendant's interactions with the officers was an initially consensual encounter that did not implicate the Fourth Amendment. The court explained that a reasonable person in defendant's position would have felt free to leave. Here, the officers parked alongside the car with enough space for him to drive away. When the officers approached defendant to speak to him, they did not convey that defendant was required to comply. Defendant's other arguments to the contrary are unpersuasive. The court clarified that race may not be a factor in the threshold seizure inquiry.

https://drive.google.com/file/d/1-he0PIh87r3hA3rLH_-DDQ4ejFL6FjGE/view?usp=sharing

Colorado v. Peluso CO SC 8MAR2021

In 2019, several parole officers approached a home that they believed was the residence of Susan Damico. Damico was a parolee whose parole agreement allowed officers to search “her person, residence, and/or vehicle” without a warrant as a condition of parole. When the officers arrived at the home, they found Damico in the front yard getting into her car. The officers identified themselves, informed Damico that they were conducting a parole visit, obtained a house key from her, and asked whether there was anyone inside the home. Damico told the officers that defendant-appellant Aaron Peluso was inside in bed. While the other officers entered the home, Damico's parole officer, Brook Hathaway, remained outside with Damico for several minutes. The officers who first entered the home found Peluso in bed and informed him of the purpose of their visit. After Peluso got dressed and out of bed, officers searched the room and found methamphetamine, THC, glass pipes, rolling papers, and a digital scale. Officers arrested Peluso and then searched his wallet, which contained additional methamphetamine. During the drive to jail, Peluso told officers that he had been using methamphetamine. Peluso was subsequently charged with possession of a controlled substance and

possession of drug paraphernalia. He moved to suppress both the evidence recovered from his home and the statements he made after his arrest, arguing that the warrantless search of his home violated his Fourth Amendment rights. At the hearing, the trial court granted the motion to suppress, concluding that Damico did not actually live at Peluso's home at the time of the search, and Hathaway could have done more to verify Damico's address. The court further found that there was insufficient evidence to determine whether Peluso might have objected to the search once the officers entered his home. The State moved for reconsideration, arguing that the court incorrectly analyzed Damico's actual, not apparent, authority to consent to the search. The Colorado Supreme Court concluded the trial court erred in suppressing the evidence and reversed the order. "Because parole officers reasonably believed Damico had authority to consent to a search of Peluso's residence, her apparent authority was sufficient to validate the warrantless search, and Peluso's motion to suppress should have been denied."

https://drive.google.com/file/d/1y7A_akGlejKOAeKv-sreJZQeRoZwvgd3/view?usp=sharing

State v. Warren IA SC 5MAR2021

The Supreme Court affirmed Defendant's conviction of driving while intoxicated (OWI), holding that defense counsel was not ineffective in declining to seek suppression of certain evidence on the basis that Defendant was subjected to an unconstitutional seizure. An officer observed Defendant illegally park her vehicle and stopped her to enforce the parking violation. Upon smelling marijuana and observing signs of Defendant's intoxication the officer inquired about her intoxication. The officer asked Defendant for her registration and insurance and discovered that her driver's license was revoked. Defendant was convicted of second-offense OWI and driving while license was revoked. The Supreme Court affirmed, holding (1) there was sufficient evidence to support Defendant's OWI conviction; and (2) Defendant's counsel was not ineffective in failing to seek suppression of the evidence because the officer had probable cause to seize Defendant based upon his observation of her traffic violation.

https://drive.google.com/file/d/1y7A_akGlejKOAeKv-sreJZQeRoZwvgd3/view?usp=sharing

Elmore v. State WY SC 9MAR2021

The Supreme Court affirmed Defendant's conviction for possession of a controlled substance, holding that the district court did not err in denying Defendant's motion to suppress under the Fourth Amendment to the United States Constitution and Wyo. Const. art. I, 4. A highway patrol trooper stopped Defendant when he twice observed Defendant's vehicle cross the dotted center white line separating the two lanes of traffic. Marijuana was found in a free-air K-9 sniff during the stop. In his motion to suppress, Defendant argued that his failure to maintain a single lane of travel on the two occasions did not create reasonable suspicion justifying the stop of his vehicle. The district court denied the motion to suppress. The Supreme Court affirmed, holding that the district court did not err in concluding that reasonable suspicion supported the initial stop.

https://drive.google.com/file/d/1JQR1GEJsqh3FA35k1C9rkIUsvuk7T_1D/view?usp=sharing

USE OF FORCE

Rice v. Morehouse 9thCIR 8MAR2021

The Ninth Circuit reversed the district court's grant of summary judgment for police officers on the basis of qualified immunity in an action brought by plaintiff under 42 U.S.C. 1983, alleging violation of his constitutional rights, including his Fourth Amendment right to be free from unreasonable seizure. In this case, the officers tripped plaintiff so that he fell to the ground, pinned him down, and handcuffed him. Plaintiff fell on his face, sustained long-term physical injuries, and sustained emotional distress as a result of the encounter. The panel rejected the officers' contention that the Notice of Appeal failed to comply with Federal Rule of Appellate Procedure 3(c). The panel also concluded that, although there are material facts in dispute, when the facts are taken in the light most favorable to plaintiff, a reasonable jury could find that plaintiff engaged in passive resistance and that the officers' take-down of plaintiff involved unconstitutionally excessive force. Furthermore, because the right to be free from the application of non-trivial force for engaging in mere passive resistance was clearly established at the time, the officers are not entitled to qualified immunity. Accordingly, the panel remanded for further proceedings.

https://drive.google.com/file/d/1JQR1GEJsqh3FA35k1C9rkIUsvuk7T_1D/view?usp=sharing

Helm v. Carroll 11thCIR 10MAR2021

Plaintiff filed suit under 42 U.S.C. 1983, in her individual capacity and as guardian and next friend of T.D.H., a minor, alleging that Chief Carroll, the four named officers, and the City of Rainbow City violated her and T.D.H.'s constitutional rights to be free from the use of excessive force, failing to intervene in the use of that force, and falsely imprisoning and falsely arresting her and T.D.H. Plaintiff also alleged that Rainbow City and Chief Carroll failed to appropriately train and supervise the other named officers. Plaintiff's claims stemmed from defendants' actions while T.D.H. was suffering from a grand mal seizure at a concert. Viewing the evidence in the light most favorable to T.D.H., the Eleventh Circuit concluded that Officer Morris's repeated tasings amounted to excessive force prohibited by the Fourth Amendment, and that the constitutional violation was clearly established based on both materially similar case law and the obvious clarity exception. Therefore, the district court properly denied qualified immunity to Officer Morris, and the court affirmed the district court's denial of summary judgment on Count Five. Because the facts taken in the light most favorable to T.D.H. establish that Chief Carroll and Officers Kimbrough and Gilliland violated a clearly established right by failing to intervene, the court concluded that the district court did not err in concluding that they are not entitled to qualified immunity. Accordingly, the court affirmed the district court's denial of summary judgment on Counts Eight, Eleven, and Twelve (in part). The court also affirmed the district court's denial of summary judgment on T.D.H.'s false imprisonment claim (Count Twenty-Two) against Officer Morris, and the denial of summary judgment on Counts One and Two.

https://drive.google.com/file/d/1KYTbPjLQmkE5r_ijOzP4URi1ZoTx9PQz/view?usp=sharing

Prosper v. Martin 11thCIR 5MAR2021

After Junior Prosper was shot and killed by a police officer, Prosper's widow filed suit under 42 U.S.C. 1983 against the officer. The district court found that the officer was entitled to qualified immunity and granted his motion for summary judgment. The Eleventh Circuit affirmed, concluding that the district court was within its discretion to exclude the opinions of two expert witnesses. The court also concluded that the officer acted as an objectively reasonable officer both in tasing and in using deadly force on Prosper. The court explained that plaintiff's interpretation of the blurry surveillance video amounts to mere speculation and thus the video fails to create the issues of fact that plaintiff says it does. Rather, the officer's version of events remains unrebutted and controls the court's analysis. The court concluded that the officer did not violate Prosper's Fourth Amendment rights by using deadly force after Prosper struck him in the face, resisted arrest through three taser discharges, and bit down on his finger while "twisting and turning" with unabating intensity. Furthermore, the district court did not err by finding that the officer acted as an objectively reasonable officer by using the taser.

https://drive.google.com/file/d/16Z59Bc06EHmTcqpLZhPhQWGlQZXPBCcH/view?usp=sharing

United States v. Austin 1stCIR 12MAR2021

The First Circuit denied Defendant's appeal of his conviction for unlawful possession of a firearm by a prohibited person, holding that the district court did not commit plain error by denying his motion to suppress. The First Circuit affirmed, holding the search warrant issued for Defendant's residence was supported by probable cause based on first hand knowledge by a victim of the criminal act.

NOTE: Good case for what is required for someone’s testimony to establish probable cause. Distinguishes between the word of victim and a confidential informant.

https://drive.google.com/file/d/1iwoimfhhkdT0ypV6lJxyHr2AsLrBtGUk/view?usp=sharing

United States v. Nelson 5thCIR 12MAR2021

The Fifth Circuit affirmed the district court's denial of defendant's motion to suppress, concluding that the totality of the circumstances supports a finding that the Border Patrol agent had reasonable suspicion to justify stopping defendant's vehicle. In this case, the agent noticed irregularities with the vehicle where the seal on the trailer was likely incompatible with a scan that seemingly showed a small amount of personal equipment inside, and Vehicle and Cargo Inspection System images of the trailer were consistent with images of bundles of narcotics. The court also concluded that defendant was not in custody for Miranda purposes during the stop and therefore he was not entitled to Miranda warnings.

https://drive.google.com/file/d/1vRCWmf3KxkmBCgnZXCQcJa54NtsqHMJZ/view?usp=sharing

United States v. Norbert 5thCIR 16MAR2021

The Fifth Circuit affirmed the district court's grant of defendant's motion to suppress evidence that was needed to convict the defendant of possession of a firearm by a convicted felon. The district court

determined that police officers did not have reasonable suspicion to conduct the investigatory stop of defendant, and thus the gun and statements to police were suppressed as fruits of the poisonous tree. The Fifth Circuit agreed with the District Court and concluded that the district court did not err in finding that the officers did not have reasonable suspicion to conduct an investigatory stop. In this case, the district court found that the informant's tip lacked credibility and reliability because the caller did not provide her name or phone number and had no history of reliable reports of criminal activity, and the police officers did not attempt to contact the management of the apartments to determine who made the phone call.

https://drive.google.com/file/d/1t958j6QuTArY5zyHkSX4jpRqGZgWcMDk/view?usp=sharing

State v Clark ME SC 16MAR2021

The Supreme Judicial Court affirmed Defendant's judgment of conviction for intentional or knowing murder, holding that the district court did not err or abuse its discretion. On appeal, Defendant argued that the trial court erred in refusing to give a jury instruction on the affirmative defense of adequate provocation, erroneously denied his motion to suppress multiple confessions, and abuse its discretion in denying his motion to recuse the presiding justice. The Supreme Judicial Court affirmed, holding that the trial court (1) correctly determined that the jury instruction for adequate provocation was not generated by the evidence; (2) did not err in determining that the statements Defendant sought to suppress were voluntary; and (3) did not abuse its discretion by denying Defendant's motion to recuse.

https://drive.google.com/file/d/14-vjfpN7oyV0rjfWgIHno3oI2P4-kkUS/view?usp=sharing

BLUE FLASH 2APR2021

United States v. Drakeford 4thCIR 26MAR2021

Law enforcement officers received a tip from a confidential informant about two interactions that officers believed were consistent with the manner in which illegal drugs are bought and sold, but in which no drugs were found. Acting on the tip, another officer witnessed a handshake between defendant and another man and concluded that it was a hand-to-hand drug transaction, even though the officer did not see anything exchanged. The officers concluded that this was reasonable suspicion of illegal drug dealing even though the interaction took place in a public space, in broad daylight, outside of the vehicles, and in front of a security camera. After the interaction, defendant went into a store, rather than immediately leaving the scene. The defendant filed a motion to suppress and the district court denied the motion. The Fourth Circuit reversed the district court's denial of defendant's motion to suppress, concluding that officers did not have reasonable suspicion to stop and frisk him. The court agreed with the defendant that the officers did not have more than a mere hunch that criminal activity was afoot when they stopped him.

LEA ONE TAGS 1-5, 6-4

United States v. Reed 6thCIR 1APR2021

Memphis Officers suspected Reed of distributing marijuana. Reed had prior drug convictions. Detective Evans filed affidavits seeking search warrants for OK Tire, Orchi Road, and Bond Road. At OK Tire, owned by Reed's girlfriend, a reliable confidential informant had made a controlled buy from Reed and had seen Reed “selling and storing marijuana.” Evans had surveilled the couple leaving their home (Bond Road) and traveling to OK. Each had keys to the business. Reed’s mother lived on Orchi Road. Reed’s driver’s license listed it; Evans had watched the informant make a controlled buy from Reed there. Evans sought a warrant to search Bond Road for financial records and drug proceeds (not for drugs). A state judge issued three search warrants. Officers seized nothing from OK and only baggies and a digital scale from Orchi Road. The search at Bond Road uncovered guns, ammunition, 18.7 grams of marijuana, 2.1 grams of THC wax, and $5,636 in cash. Reed confessed that the guns and drugs were his and that he had been selling marijuana. He later successfully moved to suppress the evidence obtained from at Bond Road, including his statements. The Sixth Circuit reversed, holding that even when a search violates the Fourth Amendment, courts should not suppress evidence if the police reasonably relied on a judge’s decision that probable cause justified a warrant.

LEA ONE TAGS 1-7-6

Cibulka v. City of Madison 7thCIR 29MAR2021

Todd and Shelly Cibulka drove to the University of Wisconsin–Madison, where their daughter Emily was a freshman. They went to a bar and imbibed for several hours. Upon leaving, they were clearly intoxicated. Emily, wanting to get them home, called the police non-emergency number. Conducting a welfare check, Officer Johnson said he could give them a ride but the Cibulkas would not identify the location of their truck. Todd staggered toward Johnson Street. Officer Erwin thought Todd might tumble into the busy street, grabbed Todd, and told Todd to sit down. Todd would not comply. It appeared that Todd might strike the much-smaller officer. The officers took Todd to the ground to reduce the risk of harm, told him to stop resisting, and handcuffed him. Todd declined medical attention. The officers walked Todd to the squad car. Todd resisted and was placed under arrest for disorderly conduct and resisting an officer. He was lifted into a police van and taken to jail. He was released at 2:30 the next morning, returned to his truck, and smashed through the gate instead of paying the exit fare. The Cibulkas filed suit under 42 U.S.C. 1983. The Seventh Circuit affirmed summary judgment in favor of the defendants. The officers are entitled to qualified immunity. It was reasonable for the officers to believe there was probable cause to arrest Todd for disorderly conduct and for resisting an officer; the officers stopped well short of such unnecessary roughness.

LEA ONE TAGS

United States v. Cox 8thCIR 30MAR2021

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress after he entered a conditional plea of guilty to possession with intent to distribute more than 5 kilograms of cocaine. The

court concluded that the trooper's determination that the vehicle was following too closely in violation of the relevant statute was objectively reasonable. In the alternative, the district court did not clearly err in finding that nothing prevented the driver from slowing down sooner and maintaining a reasonable and prudent distance behind the pickup. The court also concluded that the stop was not improperly prolonged once the trooper indicated he did not intend to issue a ticket, because the trooper was clearly conducting routine traffic violation-related tasks. In this case, the trooper asked the two men questions related to their destination, route, and purpose and questions were posed while awaiting dispatch's response to his criminal histories check. Furthermore, the driver of the car consented to a search of the rental vehicle, and defendant, a passenger, posed no objection when informed of the impending search and stood by quietly as it took place.

LEA ONE TAGS

Idaho v. Clark IDSupCt 30MAR2021

While responding to a call regarding an ongoing robbery at a mobile home park in Grangeville, Idaho, officers with the Grangeville Police Department interacted with defendant-appellant William Clark. Upon learning that Clark had an outstanding warrant for his arrest in Nez Perce County, Idaho, the officers attempted to arrest him. Clark fled, first entering a nearby home where the owner of the home implored him to leave. After exiting the first home, Clark entered the home next door, successfully evading the officers for approximately ten minutes. The officers eventually located Clark, hiding underneath a bed in the second home, where he was arrested. After a bench trial, the district court found Clark guilty on both counts of felony unlawful entry, concluding that the officers' pursuit to execute the arrest warrant constituted "fresh pursuit" as defined in Idaho Code section 19-705. Clark appealed, arguing that pursuit to execute an outstanding warrant did not fall under either the common law or statutory definition of "fresh pursuit." As a result, Clark argued the State failed to present sufficient evidence of the pursuit element for felony unlawful entry. Finding that "fresh pursuit," as defined in section 19-705 included pursuit to execute an arrest warrant, the Idaho Supreme Court affirmed Clark's conviction.

LEA ONE TAGS (State Law Fresh Pursuit)

Schwartz v. State WYSupCt 31MAR2021

The Supreme Court affirmed Defendant's conviction of second-degree murder and aggravated assault, holding that the district court did not err in denying Defendant's motion to suppress statements he made at the scene of the crime and during a recorded interview. On appeal, Defendant argued that the admission of the challenged statements violated his rights under the Fifth and Fourteenth Amendment because he was not informed of his Miranda rights before he was questioned and because he was under the influence of methamphetamine at the time of the recorded interview. The Supreme Court affirmed, holding that the district court (1) did not err when it found Defendant's statements at the scene fell under the public safety exception to Miranda; and (2) did not err when it found that Defendant voluntarily waived his Miranda rights at the police station.

LEA ONE TAGS 7-3-1, 7-2-4

USE OF FORCE

Ketcham v. City of Mount Vernon 2ndCIR 29MAR2021

The Second Circuit vacated the district court's grant of summary judgment to defendants in an action brought by plaintiff, alleging excessive force under 42 U.S.C. 1983, as well as state law assault and battery claims. The court found that the district court improperly resolved factual disputes in favor of defendants at the summary judgment stage. In this case, the district court's recitation of the facts elided crucial distinctions between the testimony of the three parties to the encounter. The court explained that, while the officers testified to using a reasonable amount of force to restrain an uncooperative individual matching the description of a suspect, plaintiff testified to an aggressive assault, pleas for help, and a spiteful effort to punish a confused citizen by deliberately slamming his head into the patrol car's exterior as punishment for his confusion. Therefore, the court concluded that it is for a jury and not a judge to decide which of these versions of events is accurate, and qualified immunity would not protect the deliberate infliction of injury suggested by plaintiff's testimony. However, the court did not find that reassignment to another judge was necessary absent any reason to find that the district court would not accept the court's remand and any grounds to reassign the case. The court remanded for further proceedings.

LEA ONE TAGS

Roque v. Harvel 5thCIR 1APR2021

After a police officer shot and killed Jason Roque, a suicidal man experiencing a mental-health crisis, Roque's parents filed suit against the officer, alleging excessive force in violation of the Fourth Amendment. The Fifth Circuit affirmed the district court's denial of summary judgment, concluding that there are factual disputes regarding whether the officer's second and third shots were excessive and objectively unreasonable. In this case, the factual disputes relate to whether a reasonable officer would have known that Jason was incapacitated after the first shot. The court also concluded that precedent shows that by 2017, it was clearly established—and possibly even obvious—that an officer violates the Fourth Amendment if he shoots an unarmed, incapacitated suspect who is moving away from everyone present at the scene. Therefore, if the factual disputes are resolved in plaintiffs' favor, the officer is not entitled to qualified immunity.

LEA ONE TAGS

Jacobsen v. Klinefelter 8thCIR 30MAR2021

Plaintiff filed suit against a deputy sheriff, alleging an unreasonable seizure under the Fourth Amendment and state-law torts of battery and negligent infliction of emotional distress. Plaintiff's

action arose from an incident where he was asked to leave an automobile auction because the deputy sheriff believed that he was trespassing in a restricted area. When the deputy grabbed plaintiff's arm to escort him out of the building, plaintiff shoved the deputy. The deputy eventually deployed pepper spray against a defiant plaintiff. Plaintiff then seized the pepper spray cannister from the deputy and a further altercation ensued. The Eighth Circuit affirmed the district court's grant of summary judgment for the deputy based on qualified immunity, concluding that, even if the deputy was mistaken about trespassing, plaintiff's physical resistance gave the deputy probable cause to believe that plaintiff committed another offense by unlawfully resisting arrest or detention. The court explained that plaintiff's use of force gave the deputy reasonable grounds to believe that additional force was justified to remove plaintiff from the premises. The court also concluded that, under these circumstances, a reasonable officer could have believed that it was reasonable to strike the resisting plaintiff in the head and take him to the ground for handcuffing. Furthermore, plaintiff cites no authority in comparable circumstances that clearly establishes a right to be free from the deputy's use of force. Therefore, the deputy is entitled to qualified immunity on plaintiff's Fourth Amendment claim. Finally, the court concluded that the district court properly applied official immunity to dismiss the state-law claims.

LEA ONE TAGS

Frasier v. Evans 10thCIR 29MAR2021

After Plaintiff-Appellee Levi Frasier video-recorded Denver police officers using force while arresting an uncooperative suspect in public, one of the officers followed Frasier to his car and asked him to provide a statement on what he had seen and to turn over his video of the arrest. Frasier at first denied having filmed the arrest but ultimately showed the officer the tablet computer on which he had video-recorded it. He did so after an officer, Defendant-Appellant Christopher Evans, and four other members of the Denver Police Department (the other Defendants-Appellants) surrounded him and allegedly pressured him to comply with their demand to turn over the video. Frasier contended that when he showed Officer Evans the tablet computer, the officer grabbed it from his hands and searched it for the video without his consent. Frasier sued the five officers under 42 U.S.C. 1983, claiming they violated and conspired to violate his constitutional rights under both the First and Fourth Amendments. The officers moved the district court for summary judgment on qualified-immunity grounds, and the court granted them qualified immunity on some of Frasier’s claims but denied it to them on others. The district court, as relevant here, held that Officer Evans had reasonable suspicion to detain Frasier throughout their encounter because Frasier lied to him about filming the arrest, thereby potentially violating Colorado Revised Statutes 18-8-111. The court granted Officer Evans qualified immunity on Frasier’s claim that the officer illegally detained him in violation of the Fourth Amendment, and Frasier did not oppose granting summary judgment to the other officers on this claim. Officer Evans did not move for summary judgment on Frasier’s claim that he illegally searched Frasier’s tablet computer in violation of the Fourth Amendment, but the other officers did. The court granted them summary judgment because the record did not support a finding that they personally participated in the alleged search. The district court, however, denied the officers qualified immunity on Frasier’s First Amendment retaliation claim even though it had concluded that Frasier did not have a clearly established right to film a public arrest. The officers appealed the district court’s partial denial of qualified immunity. The Tenth Circuit concluded

the district court erred and reversed the partial denial of the officers' motions for summary judgment on qualified immunity grounds. The matter was remanded for further proceedings.

LEA ONE TAGS

BLUE FLASH 9APR2021

United States v. Sylvester 5thCIR 2APR2021

The defendant sought to suppress drug evidence and a firearm seized pursuant to a search warrant for the car he was driving when he was arrested on an outstanding federal warrant. The defendant argued that the search warrant for the car was invalid because it was issued based on an unlawful inventory search. The First Circuit affirmed the denial of Defendant's motion to suppress, holding the officers had an objectively reasonable non-investigatory purpose for the search, and that the inventory search of the car conducted pursuant to policy and was lawful.

https://drive.google.com/file/d/1XonCd9vx4OYpTjELp4h9si2y0USBl4tl/view?usp=sharing

LEA ONE TAGS: 5-9

United States v. Yusuf 3rdCIR 2APR2021

The Third Circuit rejected Campbell's claim that evidence discovered during the traffic stop leading to his arrest should have been suppressed under the Fourth Amendment because the police officer involved was justified in stopping Campbell's vehicle and did not impermissibly extend the duration of the stop when he conducted an "eyeball search" after instructing the defendant to continue to look for registration.

Click here to read or download the full decision.

https://drive.google.com/file/d/1YkEk7DUCTd0A_Husdj4Bwk1pZB2cr58r/view?usp=sharing

LEA ONE TAGS 6-5, 6-5-3

Stark v. Lee County 8thCIR 7APR2021

A deputy sheriff was transporting the plaintiff from a medical appointment to the Lee County Correctional Center when city police dispatch advised of an armed robbery nearby. The deputy sheriff drove to the bank with the intent of observing the crime in progress, saw the robbery suspect flee on foot through a vacant lot, and drove his cruiser at approximately 20 to 25 miles per hour through the lot to follow the fleeing suspect. During the pursuit, the suspect shot at the cruiser and the deputy sheriff turned sharply to the right and drove away from the scene. The plaintiff was shackled and "thrown around" in the back of the cruiser without a seatbelt during these events. The plaintiff sued alleging that the deputy sheriff subjected him to cruel and unusual punishment in violation of the Eighth Amendment. The Eighth Circuit could not say that the deputy sheriff's actions in this quickly evolving

emergency situation were anything more than negligent and thus were clearly insufficient to constitute "deliberate indifference" needed to establish the existence of an Eighth Amendment violation. Accordingly, the Eighth Circuit reversed the district court's denial of qualified immunity to a deputy sheriff.

Click here to read or download the full decision.

https://drive.google.com/file/d/1swdj8BCZMqARwCYeqn1gyDyORjZh0Ax0/view?usp=sharing

LEA ONE TAGS 9-4

United States v. Flores-Lagonas 8thCIR 2APR2021

The Eighth Circuit affirmed the defendant's conviction concluding that the district court did not err by denying defendant's motion to suppress the guns and ammunition where officers had probable cause to believe defendant was engaged in criminal activity and their subsequent arrest and search of defendant's vehicle did not violate his Fourth Amendment rights.

Click here to read or download the full decision.

https://drive.google.com/file/d/1epBuGOW1PVy52SeQAGCMmLo0OlYz1T7l/view?usp=sharing

LEA ONE TAGS 1-4-1, 1-4-2

United States v. Hanel 8thCIR 2APR2021

The Eighth Circuit affirmed the district court's denial of Defendant Hanel and Clark's motions to suppress all evidence obtained during a traffic stop. The court concluded that, at the time the officers initiated the traffic stop, they had grounds for reasonable suspicion that the vehicle lacked proper registration in violation of Nebraska law. In this case, although the officers cited the lane change as their reason for stopping the vehicle, they already had an objective basis to stop it when the first two NCIC searches failed to indicate proper registration. *The court noted that its holding should not be interpreted as justifying all warrantless vehicle stops based on ambiguous results from data searches.* Rather, the court emphasized that its holding depends on the express factual findings that the NCIC database was not inherently unreliable, the officers were competent in the use of their laptop, and the officers were competent in accessing the NCIC database.

Click here to read or download the full decision.

https://drive.google.com/file/d/1TRCHNn9AC0P_Bv1M_IJWIMqZNC6qSrsr/view?usp=sharing

LEA ONE TAGS 1-5, 6-5-1

United States v. Mays 8thCIR 6APR2021

In this case, the Eighth Circuit concluded that the investigators had probable cause to believe the laptop contained evidence of a crime based on an interview with defendant's uncle, the investigators had an

objectively reasonable belief that exigent circumstances demanded the seizure, and the fifteen-day and delay between seizure and application for the search warrant was not unreasonable.

Click here to read or download the full decision.

https://drive.google.com/file/d/1w6U4Cm4xWW8JmjLhcuCeUGzKSDMzO-hn/view?usp=sharing

LEA ONE TAGS 4-3-1, 4-3-2

United States v. Parker 8thCIR 7APR2021

The Eighth Circuit held that the district court did not err by denying defendant's motion to suppress statements made to law enforcement where defendant's statements were consensual and he was never seized or detained. In this case, an officer's statement to "just kinda stay here" was not a seizure or a significant restraint on his movement, and latter statements to stay outside the apartment were made to assure the officer and defendant did not get in the way of medical staff and did not amount to a detention. The court held that none of the other factors suggest that defendant's encounter had ripened into a seizure or custodial arrest. Even if the court assumed that defendant was seized and in custody at the police station, it is clear from the totality of the circumstances that defendant voluntarily waived his Miranda rights.

Click here to read or download the full decision.

https://drive.google.com/file/d/1QqVI_K6jTo6sxMtssmYlxzXaA2l6hm8s/view?usp=sharing

LEA ONE TAGS 7-2-1

United States v. Trujillo 10thCIR 6APR2021

The government appealed a district-court order granting the defendant’s motion to suppress evidence recovered during an inventory search of his vehicle following his arrest for failing to pull over in response to a police command. Disbelieving Defendant’s explanation for why he had failed to pull over earlier, the arresting officer decided to arrest him. Consistent with the policy of the Bernalillo County Sheriff’s Office (BCSO), the officer also determined that the car should have been impounded and towed. The officer testified he thought it would be dangerous to leave the vehicle where it was, both because its location presented a danger to other drivers, and because of the risk that someone would remove the firearms was high because there was a high incidence of auto burglaries and thefts in the area. When the vehicle was searched, along with the firearms, a small backpack locked with a luggage lock was in the passenger compartment, containing a white crystalline substance believed to be methamphetamine. Defendant argued that the BCSO's impoundment policy was unreasonable because there was no community-caretaker basis for impoundment under the policy and because the officer failed to consider alternatives to towing. The Tenth Circuit held that the search was justified as an exercise of law-enforcement community-caretaker functions.

Click here to read or download the full decision.

https://drive.google.com/file/d/1y1BUNCL4zFaWdyryQN83f0Us4fZ5m7lz/view?usp=sharing

LEA ONE TAGS 5-9

Kansas v. Cash KSSupCt 2APR2021

The Supreme Court of Kansas held that the district court did not err in denying defendant's motion to suppress drug evidence seized during a traffic stop. At issue on appeal was whether the arresting officer had the requisite reasonable suspicion to extend the traffic stop to ask questions about two items that were hanging out of a partially opened safe on the rear floorboard of the vehicle defendant was driving. The district court found that the officer had reasonable suspicion to extend the traffic stop and denied the defendant's motion and the court of appeals affirmed. The Supreme Court affirmed, holding that the court of appeals properly concluded that the law enforcement officers had reasonable suspicion that criminal activity was afoot.

Click here to read or download the full decision.

https://drive.google.com/file/d/11et3sfZ-xu6wG91zZ-FifYuYtM_lN7Nx/view?usp=sharing

LEA ONE TAGS 1-5, 6-5, 6-5-2

Maine v. Carrillo MESupCt 1APR2021

The Maine Supreme Judicial Court held that the trial court did not err in denying defendant's motion to suppress the statements she made to investigators on the day of and the day after her daughter's death. The court held that the defendant's low IQ alone, without police coercion, does not equate to involuntariness of her three Miranda waivers and subsequent confession.

Click here to read or download the full decision.

https://drive.google.com/file/d/1beYppGmSve7HEN7mKj6D89XrPV7k__pa/view?usp=sharing

LEA ONE TAGS 7-1, 7-2-4

West Virginia v. Snyder SCtWVa 8APR2021

Law enforcement officers went to the defendant's home to serve a domestic violence emergency protective order (EPO) that prohibited the defendant from possessing firearms and provided for the surrender of firearms to the officer serving the EPO. The officers concluded that the EPO also served as a search warrant permitting them to enter and search defendant's home for weapons. When the officers stepped into the residence, they smelled marijuana and performed a protective sweep, including a pat down of Defendant. Defendant filed a motion to suppress the evidence, which the circuit court denied. The West Virginia Supreme Court reversed, holding an EPO is not a de facto search warrant, and no exception to the warrant requirement applied to otherwise validate the entry into and search of defendant's home.

Click here to read or download the full decision.

https://drive.google.com/file/d/1gRo_VAHLh1HUbvMYGOpUBw3QzPOBzdj5/view?usp=sharing

LEA ONE TAGS

USE OF FORCE CASES

Peroza-Benitez v. Smith 3rdCIR 8APR2021

Peroza-Benitez awoke, hearing Reading Police Officers breaking down his apartment door. They were executing a search warrant related to suspected drug offenses. Peroza-Benitez climbed out of his window onto the roof wearing undergarments and flip flops and led officers on a rooftop chase. Officer Smith radioed that Peroza-Benitez had a firearm. Peroza-Benitez apparently dropped the firearm, which landed in an alley. Peroza-Benitez denies having a firearm. Peroza-Benitez entered an abandoned building and attempted to escape through a window. Smith and Haser grabbed Peroza-Benitez and attempted to hoist him back inside; he resisted. Haser punched Peroza-Benitez. The officers let go. Peroza-Benitez fell and landed in a below-ground, concrete stairwell. Officers' testimony differs as to whether Peroza-Benitez voluntarily moved upon landing. Peroza-Benitez testified that he was knocked temporarily unconscious. Officer White tased Peroza-Benitez, without providing a verbal warning. Peroza-Benitez was taken to the hospital, where he underwent surgery for arm injuries and a fractured leg. The district court rejected his 42 U.S.C. 1983 suit on summary judgment, citing qualified immunity. The Third Circuit vacated. There was a "clearly established" right for an injured, visibly unarmed suspect to be free from temporarily paralyzing force while positioned as Peroza-Benitez was. A reasonable jury could conclude that Haser "repeatedly" punched Peroza-Benitez in the head and caused him to fall, in violation of that right. Tasing a visibly unconscious person, who just fell over 10 feet onto concrete, also violates that person's Fourth Amendment rights.

Click here to read or download the full decision.

https://drive.google.com/file/d/136q6bbUcOD0HzebDDtqNRy8mSHLlqE_a/view?usp=sharing

LEA ONE TAGS

Cloud v. Stone 5thCIR 6APR2021

After a deputy sheriff tased, shot, and killed Joshua Cloud, his parents filed suit against the deputy sheriff, alleging excessive force. The district court granted summary judgment to the deputy sheriff after finding no constitutional violation. The Fifth Circuit affirmed, concluding that the deputy sheriff had reasonable grounds to tase Cloud after Cloud continued to resist arrest. In this case, while the deputy sheriff tried to handcuff Cloud, Cloud partially turned around, took a confrontational stance, and deprived the deputy sheriff of the use of his handcuffs, thwarting efforts to complete the arrest. Furthermore, the deputy sheriff's continued force to complete the arrest, like the initial tase, was reasonable. The court also concluded that the deputy sheriff justifiably used deadly force when Cloud lunged for a revolver that had already discharged and struck the deputy sheriff in the chest. The court explained that at a minimum, the deputy sheriff knew that a loaded revolver lay on the ground behind and to his left; more than that, though, he knew that the gun had just discharged twice—once into his chest—and that he had had to wrest it from Cloud's hands and toss it away; and he saw Cloud make a sudden move in the gun's direction. Even drawing all inferences in plaintiff's favor, the record shows that Cloud was shot while moving toward the revolver and potentially seconds from reclaiming it. Because the court found no constitutional violation, it need not consider whether the deputy sheriff violated any clearly established law.

Click here to read or download the full decision.

https://drive.google.com/file/d/1eeZ8gL_hzOA4juJ8KhpzX_kuOjsflg4R/view?usp=sharing

LEA ONE TAGS

16 BLUE FLASH 16APR2021

United States v. Cloud 4thCIR 12APR2021

The Fourth Circuit had two issues presented in this case. The first issue was whether the defendant was "seized" so as to implicate Fourth Amendment protections. If the defendant was seized, then the second issue was whether the warrantless seizure was reasonable. Regarding the first issue, the court concluded that the Fourth Amendment was not implicated during defendant's encounter with police on April 7, because he never acquiesced (passively or otherwise) to a show of authority. Furthermore, even assuming that defendant acquiesced to a show of authority, there was a reasonable articulable suspicion to support the seizure in order to investigate who owned the firearm that the officer observed. In this case, the district court's reasonable suspicion determination rested on four factors: (1) the officer saw someone hide a firearm under defendant's seat; (2) defendant's claim of control over the Dodge; (3) defendant being the only adult associated with the Dodge; and (4) the time of day and location of the incident. Accordingly, the Fourth Circuit affirmed the district court's denial of defendant's motion to suppress a firearm.

Tags: Seizure, Reasonable Suspicion, Terry Stop,

https://drive.google.com/file/d/17krvYAdWtYFtvwP_HO2FwOziNy9skqHv/view?usp=sharing

United States v. Outland 7thCIR 14APR2021

Tags: Confession, Miranda, Waiver

Defendant appealed the district court's denial of his motion to suppress incriminating statements which led to federal charges for distributing heroin. In this case, after defendant overdosed on heroin and fell unconscious, officers brought him to a local hospital where, after receiving care, he agreed to talk to the police, received Miranda warnings, and made several incriminating statements. The Seventh Circuit remanded for the district court to make a determination on the validation of defendant's waiver of his Miranda rights in the first instance. The court explained that whether a defendant knowingly and intelligently waived his rights at the outset of a police interview is a distinct and separate inquiry from whether, in the circumstances of the interview as a whole, the defendant's statements were voluntary. Given defendant was unconscious and entirely incapacitated from an overdose just two hours before police questioned him, a finding as to whether defendant knowingly and intelligently waived his Miranda rights matters.

Click here to read or download the full decision.

https://drive.google.com/file/d/1uZq80AMbti9ipjUHfntJGVYqGlT1-XVQ/view?usp=sharing

United States v. Mayweather 8thCIR 9APR2021

Tags: Leon Good Faith Exception, Franks Hearing

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress and motion for a Franks hearing after he was convicted of one count of possession with intent to distribute cocaine base and cocaine. In regard to the motion to suppress, the court concluded that, even if the warrant affidavit lacked probable cause, the good faith exception applies in this case because the issuing judge could have logically inferred that defendant stored contraband at his residence. Therefore, the officer's reliance on the search warrant was objectively reasonable. In regard to the motion for a Franks hearing, the court also concluded that defendant has not made a substantial preliminary showing that the statements at issue were false and defendant waived his GPS-related argument.

Click here to read or download the full decision.

https://drive.google.com/file/d/1bcIS5ftQzgYxFmRCIR8qm7DR_vtwoXje/view?usp=sharing

Compos v. Colorado COSupCt 12APR2021

Tags: Miranda, Routine Booking Question Exception

After dating for a few weeks, Vincent Compos and his ex-girlfriend ended their relationship; the ex-girlfriend obtained a protection order prohibiting Compos from contacting her. Shortly after the relationship ended, Compos appeared at a Super Bowl party that the ex-girlfriend and her children were also attending. Later that evening, Compos arrived uninvited at the ex-girlfriend's home and let himself inside. The two began arguing, and during this argument, Compos threatened to kill the ex-girlfriend and her family. Compos then pulled out a gun and pointed it at the ex-girlfriend and her son. The ex-girlfriend called police; police were given permission to enter her house. There, police found Compos, and took him into custody. One of the officers spoke with Compos outside a patrol car. The officer asked Compos his name, to which Compos falsely responded "John Rocha" and provided a birthdate. Although the officer was aware of at least one protection order restricting Compos's activities, and although the officer also knew that Compos was on bond, he did not provide Miranda warnings before asking Compos his name. The issues presented for the Colorado Supreme Court were: (1) whether Compos's Miranda rights were violated when, after taking him into custody but prior to providing him with Miranda warnings, the police asked him his name; and (2) whether the division below erred in establishing a "new crime exception" to Miranda v. Arizona, 384 U.S. 436 (1966), and applying it here. The Supreme Court concluded the question as to Compos's name amounted to a custodial interrogation, but, on the facts presented here, Compos's response was admissible at trial because the question was akin to the type of routine booking question that has been deemed to be excepted from Miranda's reach. For this reason, the Court affirmed the judgment of the division below, albeit on other grounds, and in light of

this determination, the Court did not consider, and thus vacated, the portion of the division's judgment establishing, sua sponte, a new crime exception to Miranda.

Click here to read or download the full decision.

https://drive.google.com/file/d/1_Tvt0s1z-gVvmypIcZIXc8b_bLhjFzi2/view?usp=sharing

People v. Bass ILSupCt 15APR2021

Tags: Traffic Stop, Rodriguez Violation, Extended Traffic Stop

During a routine traffic stop, officers ran a name check on Bass, a passenger, which returned an investigative alert issued by the Chicago Police Department for an alleged sexual assault. Bass was arrested and made incriminating statements to investigators. The court denied a motion to suppress those statements and found him guilty of criminal sexual assault. The appellate court reversed, holding that the traffic stop violated the Fourth Amendment because it was unlawfully prolonged, that Illinois Constitution article I, section 6, provides greater protections than the Fourth Amendment, and that arrests based on investigative alerts, even those supported by probable cause, violate the Illinois Constitution. The Illinois Supreme Court affirmed the reversal of Bass's conviction, relying solely on the Fourth Amendment, without addressing investigatory alerts or the state constitution. The state failed to meet its burden of showing that the stop was not unlawfully prolonged. Officers cannot lawfully pursue unrelated investigations after quickly completing the mission by claiming that the overall duration of the stop (here, about eight minutes) remained reasonable, nor by waiting to resolve the mission (by writing a ticket or giving a verbal warning) until unrelated inquiries are completed. The name check was unrelated to resolving the red-light violation; the officers resolved the traffic violation and then waited to issue the verbal warning so that they could engage in on-scene investigations into other crimes by checking names until they found something worth investigating.

Click here to read or download the full decision.

https://drive.google.com/file/d/1OgihPBejzLTI-LTFBJJ-3NTC1SQa8vxi/view?usp=sharing

Martinez v. Texas TXCCA 14APR2021

Tag: Statement Suppression, Unlawful Arrest

After the trial court denied his motion to suppress his confession, Appellant Jesse Martinez pled guilty to murder and was sentenced to 30 years in prison. Appellant was 19 years old, had no prior arrests, and had never before been questioned by the police. In April 2016, police officers arrived at his mother's house after midnight without a warrant for the purpose of questioning him about the disappearance of his friend, Tristan Mina. They took him to the police station in an unmarked car. His mother followed in her own car and waited in the family area when they took him to an interrogation room. She told him that she would get him an attorney. Appellant waited in the interrogation room alone for several

minutes before two detectives, Michael Lara and Rex Parsons, joined him there. Detective Lara read Appellant his Miranda rights. Appellant invoked his right to counsel, and the interview was terminated. The detectives told Appellant that he was under arrest for murder and locked him in a holding cell where he was handcuffed to a bench. Less than fifteen minutes later Appellant "flagged down" Lara and said he would give a statement. Appellant was returned to the interrogation room and was again read his Miranda rights. He said he understood the rights and wished to continue. He then gave an hour-long videotaped statement recounting the events of the night that Mina was killed. On appeal he challenged the suppression ruling, claiming that his confession was the product of an illegal arrest. The court of appeals held that the taint was sufficiently attenuated under Brown v. Illinois, 422 U.S. 590 (1975), and affirmed the trial court. The Texas Court of Criminal Appeals granted review of this matter to determine whether the court of appeals misapplied the four-factor test from Brown and whether the court of appeals' finding of probable cause was based on opinions rather than facts in conflict with Torres v. Texas, 182 S.W.3d 899 (Tex. Crim. App. 2005). The Court concluded the court of appeals misapplied the third and fourth Brown factors and erred in looking to Appellant's statement to establish probable cause for his arrest. Judgment was therefore reversed and the case remanded to the trial court for further proceedings.

Click here to read or download the full decision.

https://drive.google.com/file/d/1IM8u-Yk88tR8cHW8BwJcfKntJz2fcqU4/view?usp=sharing

Martin v. Texas TXCCA 14APR2021

Tags: Searches, Warrantless Home Entry

The issue this case presented for the Texas Court of Criminal Appeals centered on whether a police officer's entry into a residence was reasonable under the Fourth Amendment, when a firefighter, in the line of duty, asked law enforcement for a safety check after seeing drug paraphernalia, guns, and flammable liquids in the residence, and whether that officer’s discovery of drug paraphernalia in plain view provided probable cause for a search warrant? The short answer to this question under the specific facts of this case was yes: the Court therefore upheld the court of appeals’ judgment which affirmed the trial court’s denial of Appellant’s motion to suppress the drug evidence found pursuant to a search warrant.

Click here to read or download the full decision.

https://drive.google.com/file/d/1Wppc5ALhA-NEBmlKcCM__ZX5dWPPcoCF/view?usp=sharing

USE OF FORCE

Lopez v. Sheriff of Cook County 7thCIR 9APR2021

Tags: Use of Force, Restraint, Failure to Train, Deliberate Indifference

At 3:55 a.m. people were loitering outside a lounge when Lopez sideswiped an SUV parked in front of the lounge. Bystanders swarmed Lopez's car, punching him through an open window. A passenger exited Lopez's car and fired a warning shot. Lopez exited the car, grabbed the gun, and walked toward the bystanders. Raines, a Cook County correctional officer, out celebrating, arrived at 3:56:11. Lopez walked back toward his car, stopping to fire two shots at an upward angle. Raines approached Lopez with his own gun drawn. Lopez reached to open his car door. Raines started shooting at 3:56:27. Lopez, injured, dropped his gun and staggered away. Raines continued to fire. Raines pursued Lopez, who was leaning against a wall. Lopez's passenger, Orta, picked up the dropped gun and fired at Raines at 3:56:32 a.m. For about three minutes, Orta and Raines engaged in a standoff. Raines simultaneously restrained Lopez, wounded but conscious, and used him as a human shield. At 4:00:10 a.m., Orta fled. Police and paramedics arrived. Lopez faced criminal charges. The Seventh Circuit affirmed summary judgment for the defendants in his 42 U.S.C. 1983 suit. Raines was entitled to qualified immunity because his use of deadly force did not violate clearly established law although the video footage of the events conveys the impression that Raines might have been able to avoid any use of lethal force.

Click here to read or download the full decision.

Tags: Use of Force, Deadly Force, Qualified Immunity

https://drive.google.com/file/d/1FZItOuKOT8XH5wyLkh8Q0OAVPf47no3k/view?usp=sharing

Hutcheson v. Dallas County 5thCIR 12APR2021

Tags: Use of Force, Restraint, Failure to Train, Deliberate Indifference

After Joseph Hutcheson died as a result of police officers restraining him at the Dallas County Jail, Hutcheson's wife and mother filed suit against the county and four individual officers, bringing an excessive force claim against the officers and failure-to-train and wrongful-death claims against the county. Hutcheson died from a combination of the narcotics in his system and the stress from his struggle with and restraint by the officers. The district court dismissed or granted summary judgment on all claims. The Fifth Circuit affirmed the district court's grant of summary judgment on the excessive force claim, concluding that plaintiffs failed to raise a dispute of material fact regarding whether the officers used unreasonable force to restrain a resisting suspect. The court also concluded that the district court did not abuse its discretion by denying the motion for limited discovery on the issue of qualified immunity. The court further concluded that the district court properly dismissed the failure-to-train claim where plaintiffs failed to allege that the county provided no training, so they cannot show that the county was deliberately indifferent. Finally, the court concluded that the district court did not abuse its discretion in denying leave to file a second amendment. Accordingly, the court affirmed the district court's judgment in its entirety.

Click here to read or download the full decision.

https://drive.google.com/file/d/12GI9dERu7CpymRytPXZiOlWsTINDXoik/view?usp=sharing

23 APRIL 2021 – Blue Flash # 17

United States v. Cole 7thCIR 16April2021

Illinois Trooper Chapman received a message about a Volkswagen with California license plates driving on I-72. Chapman spotted the Volkswagen, driven by Cole, and trailed him, intending to find a pretext for a roadside stop. After another car cut off the Volkswagen, Chapman believed that the Volkswagen trailed that car at an unreasonably close distance. Chapman stopped Cole, requested his papers, and ordered him to sit in the police cruiser. This initial stop lasted 10 minutes. Chapman spent about six minutes questioning Cole about his residence, employment, travel history, plans, vehicle history, and registration information. Chapman told Cole that he would get a warning but that they had to go to a gas station to complete the paperwork because he was concerned for their safety. Chapman testified later that he had already decided that he was not going to release Cole until he searched the car. Driving to the gas station, Chapman requested a drug-sniffing dog and learned that Cole had been arrested for drug crimes 15 years earlier. At the gas station, Cole's answers became contradictory. Finishing the warning, 30 minutes after the stop, Chapman told Cole that he could not leave because he suspected Cole was transporting drugs. The dog arrived 10 minutes later and quickly alerted. Chapman found several kilograms of methamphetamine and heroin in a hidden compartment. The Seventh Circuit reversed the denial of a motion to suppress. Even assuming that the stop was permissible, the officer prolonged the stop by questioning the driver at length on subjects well beyond the legal justification for the stop, in violation of the Fourth Amendment.

Tags: Extended Traffic Stop

Acosta v. Georgia GSSupCt 19APR2021

Eder Acosta appealed his convictions for malice murder and first-degree cruelty to children in connection with the death of Bryan Guzman. Acosta argued on appeal that the trial court erred in admitting the statements he made during his first interview with law enforcement investigators, and in denying his request to charge the jury on the lesser offense of misdemeanor involuntary manslaughter. Finding no reversible error, the Georgia Supreme Court affirmed.

Tags: Custody, Miranda

Crocker v. Beatty 11thCIR 20APR2021

Plaintiff filed suit against defendant, a deputy in the sheriff's office, under 42 U.S.C. 1983, alleging that plaintiff's Fourth Amendment rights were violated when the deputy seized his iPhone after plaintiff took photos and videos of a car accident crash scene from an interstate median. The district court granted

summary judgment on all of plaintiff's claims except for one, which plaintiff prevailed at trial. The Eleventh Circuit affirmed the district court's order, holding that plaintiff's First Amendment claim is barred by qualified immunity because defendant did not violate clearly established law at the time; plaintiff's false-arrest claims fail because defendant had probable cause to arrest him because plaintiff's car was parked on a limited-access facility in violation of Florida law; and plaintiff's excessive-force claim fails on the merits and, in any event, is barred by qualified immunity. The court noted that, whether it analyzed plaintiff's excessive-force claim under the Fourteenth or Fourth Amendment, the court would reach the same result.

Tags: Fourth Amendment, Qualified Immunity

USE OF FORCE CASES

Cunningham v. Shelby County 6thCIR 19APR2021

The Shelby County Sheriff's Department dispatcher alerted three deputies that a 911 caller, Nancy Lewellyn, had told the dispatcher that she was suicidal, that she had a gun (possibly a .45 caliber pistol), and that she would kill anyone who came to her residence. Each squad car was equipped with a dashboard camera, which recorded video, sound, and the time of day. At 12:14 p.m., Lewellyn walked outside and turned toward her driveway, carrying in her right hand a BB handgun that resembled a .45 caliber pistol. She began to raise that handgun. The deputies yelled to her then fired shots. Lewellyn continued walking with her right arm extended and the pistol pointing toward her car, Lewellyn leaned on its hood briefly, then turned back toward the house. The shooting continued. Llewellyn collapsed; 11 seconds had elapsed since she exited her house. Ten shots were fired. Lewellyn had deposited the handgun on the sedan's hood before turning back. The deputies approached and discovered that she was unarmed. Lewellyn died at the scene. In a suit under 42 U.S.C. 1983, the district court rejected the deputies' claims of qualified immunity. The Sixth Circuit vacated. The reasonableness of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than in hindsight. The "facts and circumstances" support the deputies' contention that reasonable officers would perceive that Lewellyn posed an immediate threat to their safety.

Tags: Use of Force, Deadly Force, Reasonable Officer, hindsight

Aguirre v. City of San Antonio 5thCIR 22APR2021

Jesse Aquirre's family filed a 42 U.S.C. 1983 action alleging that the San Antonio Police Department violated Aguirre's constitutional rights by causing his death through the use of excessive force. The district court granted summary judgment to the individual officers based on qualified immunity and to the City of San Antonio. The Fifth Circuit reversed the district court's grant of summary judgment for the officers in regard to the excessive force claims. The court weighed the Graham factors and concluded that the first Graham factor—the severity of any crime of which Aguirre was suspected—weighs in favor of it being unreasonable and excessive for the officers to hold Aguirre in the dangerous maximal-restraint position for five and a half minutes, and there are at very least genuine disputes as to the second two Graham factors—whether Aguirre posed a safety threat to officers or others or was resisting the officer's efforts to remove him from the highway and hold him safely until the police wagon arrived. The court explained that these disputes of material facts alone are enough to preclude a finding of summary judgment that the force used by the officers in holding Aquirre in a hog-tie position was constitutionally reasonable. Under Graham and its progeny, the court concluded that it is unreasonable for an officer to use injurious force against a non-resisting, non-dangerous individual who is not suspected of a serious crime, which the court must assume occurred here under Aguirre's version of events. The court also concluded that the summary judgment evidence indicates that a reasonable officer in the officers' position would have known that applying the maximal-restraint position to Aguirre and holding him in this position for an extended period posed a substantial risk of causing his death or serious bodily injury. Therefore, a reasonable jury could find that the officers' use of force constituted "deadly force." Accordingly, the officers are not entitled to summary judgment based on qualified immunity. However, the court affirmed the district court's grant of summary judgment on plaintiffs'

deliberate indifference claims. Finally, the court affirmed the district court's dismissal of plaintiffs' municipal liability claim; rejected plaintiffs' claims against the City under the Texas Tort Claims Act; and granted the motion to supplement the record and denied the motion to take judicial notice as moot. The court remanded for further proceedings.

Tags: Use of Force, Restraint

Batyukova v. Doege 5thCIR 21APR2021

The Fifth Circuit affirmed the district court's grant of qualified immunity and summary judgment to defendant on plaintiff's 42 U.S.C. 1983 claims, alleging that defendant, an off-duty sheriff's deputy at the time, used excessive force when he shot her several times. Plaintiff had emerged from a stopped vehicle and would not follow defendant's demands, and when she reached behind her waist, defendant feared that she might be reaching for a weapon and shot her. The court concluded that defendant made a split second decision to use deadly force against a non-compliant person who made a movement consistent with reaching for a weapon, and plaintiff failed to identify clearly established law prohibiting defendant's use of deadly force. Plaintiff also alleged that defendant shot her in retaliation for engagement in activity protected by the First Amendment. The court agreed with the district court that plaintiff did not present evidence that her speech and expressive conduct was a but-for cause of the shooting. In this case, defendant did not discharge his firearm at plaintiff when she began shouting expletives at him or when she was walking towards him. Rather, he shot her when she reached her hand behind her back towards the waistband of her pants. Finally, plaintiff has not shown that defendant responded to her medical needs with deliberate indifference.

Tags: Use of Force, Deadly Force

BF 30APR 2021

United States v. Campbell 3rdCIR 2APR2021

In a cross-appeal in this case, the court rejected Campbell's argument that evidence discovered during the traffic stop leading to his arrest should have been suppressed because the traffic stop was impermissibly extended. The court held that the officer did not unnecessarily prolong the stop. Approximately five minutes elapsed from the time the stop commenced to when Campbell was arrested. Although the officer suggested that Campbell look in the console a second time for his insurance card, the search for the insurance card and registration was a "plainly valid reason" to continue the stop. There was nothing nefarious in the suggestion to look in the console, as Campbell had not yet produced the necessary documents and the console is a commonly used storage compartment in vehicles.

Side Note:

Campbell claims he was stopped because he is Black; however, he has provided no basis to support an Equal Protection claim. See Whren v. United States, 517 U.S. 806, 813 (1996) ("We of course agree with

petitioners that the Constitution prohibits selective enforcement of the law based on considerations such as race. But the constitutional basis for objecting to intentionally discriminatory application of laws is the Equal Protection Clause, not the Fourth Amendment. Subjective intentions play no role in ordinary, probable-cause Fourth Amendment analysis."

https://drive.google.com/file/d/1-TitW3JTWJeZtpcwv4OqNtHELErfZ8-G/view?usp=sharing

United States v. Onyeri 5thCIR 28APR2021

The Fifth Circuit affirmed the District Court decision, rejecting arguments that the court erred by admitting evidence obtained from the traffic stop because it was not supported by probable cause or reasonable suspicion.

https://drive.google.com/file/d/1nHyMaUqRgzvTnsKbeNHNlZkWtLKK30qN/view?usp=sharing

United States v. Hammond 7thCIR 26APR2021

Over the course of a three-week crime spree in October 2017, Hammond robbed or attempted to rob, seven stores at gunpoint in Indiana and Michigan. Five of the seven incidents took place in northern Indiana, where Hammond was charged with five counts of Hobbs Act robbery and several attendant weapons charges, including one count of being a felon in possession of a firearm, 18 U.S.C. 922(g), and two counts of brandishing a weapon during a crime of violence, 18 U.S.C. 924(c). Convicted, he was sentenced to 47 years in prison. The Seventh Circuit affirmed, rejecting arguments that the district court should have suppressed certain cell site location information (CSLI) that law enforcement collected to locate him during his robbery spree and to confirm his location on the days of the robberies, that the district court erred in instructing the jury regarding the felon-in-possession charge under the Supreme Court's "Rehaif" decision, and that Hobbs Act robbery is not a crime of violence under 18 U.S.C. 924(c) or under the Sentencing Guidelines, so his section 924(c) conviction must be overturned, and his sentence vacated. **The collection of Hammond's real-time CSLI was not a search; the resulting traffic stop was valid.**

https://drive.google.com/file/d/1nHyMaUqRgzvTnsKbeNHNlZkWtLKK30qN/view?usp=sharing

United States v. Whitehead 8thCir 26APR2021

The Eighth Circuit affirmed defendant's conviction for illegally possessing drugs and a firearm. The court agreed with the district court that the protective-sweep exception justified the initial search. In this case, when the victim opened the door of the hotel room, the room was dark, the officers saw movement, and they could not tell how many people were there. Combined with defendant's extensive history, these articulable facts gave officers a reasonable belief that there might be others in the room who posed a danger to them. Furthermore, the search did not exceed the scope of the lawful protective sweep when officers checked under the mattress for hidden fugitives. The court also agreed with the district court that consent justified the later reentry into the room to retrieve the gun. Finally, the court

concluded that the evidence was sufficient to support defendant's conviction for being a felon in possession of a firearm where the government presented sufficient evidence of constructive possession.

https://drive.google.com/file/d/14SEZqI9FuuofRX-5Oj3Ffd22zOYC_KDq/view?usp=sharing

United States v. Cotto 10thCIR 27APR2021

Defendant-appellant Omil Cotto was charged with three drug and gun-related offenses stemming from a road rage incident. Prior to trial, Cotto filed a motion to suppress evidence officers had obtained from a residence in Albuquerque, New Mexico. He argued: (1) the affidavit supporting the warrant did not provide probable cause for the search of the house; and (2) provisions in the warrant authorizing seizure of “all firearm evidence” and “any cellphones” were overbroad. The district court denied the motion to suppress. Cotto then pleaded guilty to lesser charges but expressly preserved his right to appeal the court’s order on the suppression motion. The Tenth Circuit affirmed the district court’s denial of the motion to suppress, finding: (1) the good-faith exception to the exclusionary rule applied to the search and seizure here; (2) the officers acted in objectively reasonable reliance on the warrant while conducting the search of the residence; and (3) even if the warrant’s cell phone provision was overbroad, that provision could and should have been severed from the remaining valid portions of the warrant.

https://drive.google.com/file/d/1NnGswTBqVWKCfJ8OTU3XCsSkFIT9XnAJ/view?usp=sharing

United States v. Guillen 10thCIR 27APR2021

After a young woman found a pressure cooker bomb hidden under her bed, law enforcement agents went to the home of the only person she said might want to harm her: defendant-appellant Ethan Guillen. The agents entered Ethan’s home, questioned him, and obtained consent from his father to search the residence. During the search, the agents found evidence in Ethan’s bedroom indicating his involvement with the pressure cooker bomb. When one of the agents confronted Ethan with the information and evidence they had collected, he confessed to making the bomb. The agent immediately provided Ethan Miranda warnings, but he proceeded to make more incriminating statements. Ethan ultimately entered a conditional plea of guilty to possession of an unregistered destructive device and an attempt to damage or destroy a building by means of fire or an explosive. His plea agreement reserved the right to appeal the district court’s order denying his motion to suppress the physical evidence and incriminating statements resulting from the search of his home. Exercising that right, Ethan argued to the Tenth Circuit that the district court should have suppressed the physical evidence found in his home because the agents’ warrantless entry and search of his bedroom violated his Fourth Amendment rights. He also contended the district court should have suppressed the incriminating statements he made after receiving Miranda warnings because the agents elicited them through coercion and used an impermissible two-step interrogation technique to end run around Miranda. Finding no violation of his rights or any other reversible error, the Tenth Circuit affirmed the district court's judgment.

https://drive.google.com/file/d/1GtQiYTm2nd1rvV5rZtugpUscgJTgoR-5/view?usp=sharing

Trott v. State MDCOA 23APR2021

The Court of Appeals affirmed the judgment of the circuit court denying Defendant's motion to suppress, holding that, under the circumstances presented in this case, the police had reasonable suspicion to conduct a brief investigatory detention of Defendant, and the stop did not violate the parameters of the Fourth Amendment. In response to an anonymous 911 call that provided the location and license plate of a vehicle driven by a possibly intoxicated driver, the responding police officer located he vehicle in a parking lot, knocked on the window, and spoke to Defendant, who admitted to having had multiple drinks and that his driver's license was revoked. Defendant was arrested after he was unable to successfully complete a field sobriety test. On appeal, Defendant argued that the anonymous call could not support a finding of reasonable suspicion. The Supreme Court affirmed, holding that, under the totality of the circumstances, the stop at issue comported with the reasonable suspicion requirement of the Fourth Amendment.

https://drive.google.com/file/d/14CKxuDRTayGO9IX2Z0J1Dtx68TScW8sA/view?usp=sharing

Michigan v. Pagano MISCt 22APR2021

Victoria Pagano was charged with operating a motor vehicle while intoxicated with a child as a passenger, and having an open container in a vehicle. An anonymous caller phoned 911, alleging defendant was driving while intoxicated. Central dispatch informed a police officer of the call, and within 30 minutes, the officer observed defendant’s vehicle but did not see defendant commit any traffic violations. Although it appeared that a copy of the 911 call might have been preserved, a recording was not introduced into evidence, and the caller was not identified. According to the officer’s testimony, the anonymous caller informed dispatch that defendant was out of the vehicle, yelling at children, and appeared to be obnoxious. The caller believed defendant’s alleged intoxication was the cause of her behavior with the children, and provided the vehicle’s license plate number; the direction in which the vehicle was traveling; and the vehicle’s make, model, and color. The officer pulled defendant over strictly on the basis of the information relayed in the 911 call. Defendant was arrested and subsequently charged. Defendant moved for dismissal of the charges, arguing that the investigatory stop was unlawful and that, as a result, any evidence obtained pursuant to the stop should have been suppressed. The district court granted the motion, holding that there was no probable cause to stop defendant’s vehicle because the 911 call was not reliable. The Michigan Supreme Court affirmed the trial court.

https://drive.google.com/file/d/1l1SVCtwhotTWpx-tqYh-p_chPtg0ekeX/view?usp=sharing

USE OF FORCE

Wilson v. Lamp 8thCIR 26APR2021

Plaintiff and his son filed suit against three officers under 42 U.S.C. 1983, alleging violations of the Fourth Amendment, violation of the Iowa Constitution, and common law invasion of privacy. The district court denied summary judgment, but reversed in part and remanded for trial. On remand, the district court held a trial on the state law claims, as well as the federal excessive force claim. On the state claims for invasion of privacy and Iowa illegal search or seizure, the district court granted judgment as a matter of law. The jury found in favor of defendants on the excessive force claims. In Wilson I, the Eighth Circuit ruled that defendants' acts were reasonable as a matter of law. The court explained that the substantive standard for search and seizure does not vary between Iowa and federal law. Therefore, any error was harmless, since it would not change the result: regardless of who theoretically must show the officers' conduct was reasonable, defendants did show their conduct was reasonable. Accordingly, the district court did not err in granting judgment as a matter of law and denying plaintiff's motion for a new trial on the state search and seizure claims. The court also concluded that the district court did not err in granting judgment as a matter of law and denying plaintiff's motion for a new trial on the invasion of privacy claim. In this case, plaintiff cannot state a claim for intrusion upon seclusion because the officers' conduct was not a highly offensive intrusion on the private affairs or concerns of plaintiffs, and the stop of plaintiff's vehicle was lawful. The court also concluded that the district court properly instructed the jury on the elements of Fourth Amendment and Iowa Constitution excessive force claims. Because the Iowa Supreme Court's standard for excessive force does not materially differ from the federal standard, the court explained that the district court did not need to separately instruct the jury. Accordingly, the court affirmed the judgment.

Tobias v. Arteaga 9thCIR 27APR2021

After plaintiff, who was thirteen years old at the time, confessed to a murder he did not commit, he was convicted in juvenile court and sentenced to 25 years' imprisonment. The California Court of Appeal reversed the conviction, concluding that plaintiff's confession should have been suppressed by the juvenile court because detectives failed to respect his unambiguous request for an attorney. All parties now agree that plaintiff did not commit the murder. Plaintiff subsequently filed suit under 42 U.S.C. 1983 against the three LAPD Detectives who conducted the interrogation in which plaintiff confessed to killing the victim, alleging violations of his Fifth and Fourteenth Amendment rights. The Ninth Circuit affirmed the district court's denial of qualified immunity on the Fifth Amendment claims that the officers continued to question plaintiff after he invoked his right to silence and that they engaged in unconstitutional coercive questioning tactics. However, the panel reversed the denial of qualified immunity on defendant's Fourteenth Amendment substantive due process claim because it was not clearly established that the abusive interrogation techniques used by the officers rose to the level of "abuse of power that shocks the conscience." The panel remanded for further proceedings.

United States v. Sheckles 6thCIR 30APR2021

Tags:

The government uncovered substantial evidence that Sheckles was a Louisville distributor for a large drug trafficking ring. Sheckles pleaded guilty but reserved the right to appeal the district court's refusal to suppress much of this evidence. The Sixth Circuit affirmed his conviction, rejecting arguments that officers did not have "probable cause" for the warrants to track his phone and search his apartments, engaged in an "unreasonable" "seizure" when they stopped his car and detained him, and engaged in an "unreasonable" "search" when they looked through his storage unit. Information in the officers' affidavit provided a "substantial basis" for the state judge's finding that probable cause existed to obtain the phone's location data. The totality of the circumstances permitted the state judge to find probable cause to search this apartment. Officers at least had a "reasonable suspicion" to initiate the stop, after seeing Sheckles leaving an apartment they were about to search, and the handgun they later discovered gave them probable cause to arrest Sheckles at that point. Handcuffing "does not affect the legitimacy of the Terry stop" as long as the facts justify the precaution. The court concluded that a third party had actual authority to consent to the search of the storage unit.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1GX9AzPdnuHGH6Nhc2e81UMTRwk4NASUl/view?usp=sharing

United States v. Carswell 7thCIR 6MAY2021

Tags:

Police saw Carswell driving a Porsche over 100 miles per hour through a 45 mph zone of New Haven, Indiana. When police stopped him, he gave his home address. Law enforcement had suspected Carswell of drug dealing but had not determined where he lived. After ATF Officer Anderson learned of Carswell's arrest, he carried out surveillance for four days, then obtained a warrant to search the residence for evidence of drug trafficking and unlawful possession of a firearm. The supporting affidavit cited: a trash pull from Carswell's driveway that turned up evidence of drugs, drug packaging materials, and a firearm purchase; Carswell's prior drug-related activity; and a tip from a recently-arrested drug dealer who identięed Carswell as his supplier. Officers confiscated 64 grams of heroin, five cell phones, $25,000 in cash, firearms, and ammunition, and drug packaging materials, including two digital scales that field-tested positive for cocaine and a machete laced with marijuana residue. Carswell was convicted of possession of heroin with intent to distribute and a firearms offense. The Seventh Circuit affirmed. The judge who issued the search warrant had a reasonable basis for thinking evidence of drug and firearm crimes was likely to be found at Carswell's home. The prosecution's closing arguments were not improper, did not make Carswell's trial unfair, and did not deny him due process.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/110C6owHqQGpdgzUXTsOA7IO67_yHGoCL/view?usp=sharing

United States v. Harris 7thCIR 30APR2021

Tags:

An informant gave South Bend police the number to a phone used by drug dealers. Officers conducted controlled buys in which confidential informants or undercover officers called the number and followed instructions to buy heroin. Officers then submitted an affidavit to a state court judge and obtained a "court order," requiring the phone's service provider to share 30 days of precise, real-time GPS location data for the phone. The investigation led to two men at the top of the drug-trafficking conspiracy, Gibson and Harris. The district court denied their pre-trial motion to suppress evidence obtained through the cellphone tracking. Officers and cooperators testified to the large-scale drug-trafficking scheme that the defendants had overseen. Both were convicted of conspiring to distribute one kilogram or more of heroin. At sentencing, the court found that the defendants had conspired to distribute a total of 10.5 kilograms of heroin. The Seventh Circuit affirmed, upholding the denial of the motion to suppress, the drug-quantity calculations, and the court's limits on cross-examination of the cooperators about the specific sentences they hoped to avoid by testifying for the government. The court orders for the cellphone data satisfied the requirements for a search warrant: the judge who issued the orders was neutral and found probable cause to believe that the cellphone tracking would lead to the apprehension of drug traffickers and the orders particularly described the object of the search.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1Mw_AfZLYsjMxFbQ7MrPI-z_iPqKl3byU/view?usp=sharing

United States v. Morris 8thCIR 30APR2021

Tags:

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress evidence discovered during a vehicle search and statements made to a task force agent. The court concluded that the district court did not clearly err in finding that defendant had not maintained control or possession of the vehicle while awaiting the tow truck's arrival. In this case, there is no dispute that defendant was under arrest and in the back of the patrol vehicle during the search, that no one else was present to take possession of the vehicle, and that the deputy made the decision to tow the vehicle. Furthermore, defendant's request that the deputy retrieve his cash and phone from the vehicle further indicates that defendant did not expect to retain custody over the vehicle and its contents during the towing process. The court also concluded that the district court did not clearly err in concluding that the need to conduct an inventory of the vehicle's contents did not constitute a pretext for an investigatory search.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1BVeC0HT2GNs468eZWunO_fZf0ootTekZ/view?usp=sharing

United States v. Navarette 8thCIR 6MAY2021

Tag:

The Eighth Circuit affirmed defendant's conviction for possessing a firearm and ammunition after having been convicted of a felony, in violation of 18 U.S.C. 922(g)(1), 924(a)(2). The court concluded that the district court did not err in denying defendant's motion to suppress where the initial duration of the traffic stop was justified by defendant's inability to produce the basic identifying information the officer requested and the time it took for her to address this issue. Furthermore, by the time the officer handcuffed defendant, she had moved beyond addressing defendant's traffic offense and begun investigating ordinary criminal wrongdoing where defendant was on federal probation for a firearm offense, and she had seen a loaded gun magazine in plain view in the pocket of the driver's side door. Therefore, the officer's extension of the stop was properly supported by reasonable suspicion that other criminal activity was afoot and did not violate the Fourth Amendment. The court also concluded that, in light of this circuit's silence on whether Simmons v. United States, 390 U.S. 377 (1968), permits the use of a defendant's suppression hearing testimony for impeachment purposes, this court cannot say that the district court's decision to allow the government to impeach defendant at trial with his prior testimony at the suppression hearing was not plain error.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1DHMeoMNxzdIUK2mdkRANMRvx2T8ej_ze/view?usp=sharing

United States v. Pacheco 8thCIR 2021

Tags: Extended Traffic Stop, Mission Related Activities, Reasonable Suspicion, Probable Cause, Itinerary Questions

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress evidence of drugs from a traffic stop and canine drug sniff. The court considered the totality of the circumstances and concluded that the officer had reasonable suspicion to extend the traffic stop so that his canine could conduct a drug sniff. In this case, the incongruity between defendant's statements suggested that defendant might be lying about his travel plans, defendant gave odd answers about his travel plans, defendant appeared very nervous even though the officer had informed him he would only be receiving a warning, and the officer testified that the rental vehicle had a lived-in look, suggesting that defendant was attempting to travel without making many stops. Furthermore, the officer had probable cause to search the trunk of the vehicle.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/18Zu3urqyIS5Kkq3i3prNBSkLSqY0j-1T/view?usp=sharing

United States v. Venezia 10thCIR 3MAY2021

Tags: Vehicle Impoundment, Community-Caretaking

Defendant-appellant Hunter Venezia appealed following his conditional plea to one count of possession with intent to distribute methamphetamine. He argued the district court's denial of his motion to suppress evidence found after a traffic stop led to the impoundment and search of the vehicle he was driving in violation of his Fourth Amendment rights. To the Tenth Circuit, defendant argued the district court erred in concluding the impoundment of the vehicle was constitutional. "Ascertaining whether an impoundment is justified by a reasonable and legitimate, non-pretextual community-caretaking rationale is not an easy task." Reviewing the specific facts of this case de novo, the Tenth Circuit concluded the impoundment was inconsistent with the Supreme Court's description of the community-caretaking doctrine, and the Tenth Circuit's own enumerated factors in United States v. Sanders, 796 F.3d 1241 (10th Cir. 2015). Judgment was reversed and the matter remanded for the district court to vacate defendant's conviction and sentence.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1Q5caZvPcl-MK209DrzEF9wNJKr-bHeGm/view?usp=sharing

United States v. Gonzalez-Zea 11thCIR 30APR2021

Tags: Reasonable Suspicion, Terry Stop of Vehicle, Consent to Search, Plain View Seizure

The Eleventh Circuit affirmed the district court's denial of defendant's motion to suppress evidence of firearms found in plain view during the search of a house. The court concluded that the officers had reasonable suspicion to stop defendant's car and to conduct an investigatory Terry stop under the totality of the circumstances. In this case, the officers knew that a social security number associated with a fugitive had been used recently to connect a utility service at the house; they had a specific, articulable, objective basis for believing that the fugitive could be found at that location; and when the officers observed defendant leaving the house, it was in the pre-dawn hours, which gave the officers an objective, reasonable reasonable suspicion that any man leaving the house was either the fugitive, or as a resident of the house, may have known the fugitive and his whereabouts. The court also concluded that the officers did not unlawfully extend the stop, and that defendant voluntarily consented to the officers' search of the residence.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1GA876miNsZztC5uXo9XQYUYlGJYnI6dH/view?usp=sharing

People v. Nunes CACOA 6MAY2021

Tags: Emergency Exigency

A Milpitas Fire Department captain responded to Nunes's house one afternoon based on a report of a "whole structure fire." He saw no fire and no smoke. Neighbors standing outside stated they had recently seen smoke coming from the backyard. A police officer "pounded" on the house's door. No one answered. The fire captain opened a gate and entered the backyard, where he smelled smoke in the air. He found no active fire but saw test tubes, chemistry equipment, and a homemade toy rocket that looked burned on the ground. The captain noticed a closed shed. No smoke was coming from it, nor did the smell of smoke seem to originate there. He opened the shed "to make sure everything is clear," and saw a metal cabinet. The captain admitted there was nothing specific about the cabinet that made him think he should look inside: He opened the cabinet, saw unfamiliar bottled chemicals, and called the hazardous materials team. The police ultimately obtained a search warrant, based in part on those chemicals. After the search warrant was executed, Nunes was charged with numerous offenses for possessing explosives and explosive materials. Denying Nunes's motion to suppress evidence, the trial court concluded that the search was valid under the exigent circumstances exception. The court of appeal reversed. Opening the cabinet inside the shed, however prudent and well-intentioned, was not an action necessary to prevent imminent danger.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1aGlIabKkXdtYZeMLXiVL2miyTj8fjmSv/view?usp=sharing

State v. Arrizabalaga KSSupCt 30APR2021

Tags: Traffic Stop, Trooper Two Step, Consensual Search

The Supreme Court reversed the decision of the court of appeals affirming the ruling of the district court granting Defendant's motion to suppress the fruits of a vehicle search conducted by the Kansas Highway Patrol, holding that the suppression motion was improperly granted. The vehicle search in this case was based on a drug dog alert that occurred following a highway patrol trooper's processing of Defendant's traffic offense. The district court concluded that the duration of Defendant's detention to await the drug dog was unlawful and excessive. The court of appeals affirmed. The Supreme Court reversed, holding (1) the trooper acted diligently under the circumstances; and (2) the continued detention was not excessive or unlawful.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1S3X3KpIMWAWUCDhtcnFGA_WZ8gR5mrLS/view?usp=sharing

City of West Fargo v. Medbery NDSupCt 6MAY2021

Tags: Community Caretaking, Asleep in Automobile, Reasonable Suspicion, Terry Stop

Bridget Medbery appealed after she conditionally pled guilty to actual physical control, reserving her right to appeal the district court's order denying her motion to suppress. On November 21, 2019, officers responded to a report that a woman, later identified as Medbery, was unconscious in the driver's seat of a vehicle parked in a driveway. Medbery was ultimately arrested for and charged with actual physical control of a motor vehicle while under the influence of alcohol. At a hearing in early 2020, Medbery unsuccessfully moved to suppress the evidence gathered from the stop, arguing she was unconstitutionally seized. To the North Dakota Supreme Court, Medbery argued the district court erred in concluding the community caretaker exception to the warrant requirement applied, and that the trial court erred in finding law enforcement had reasonable and articulable suspicion of criminal activity at the time she was seized. Finding no reversible error, the Supreme Court affirmed.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1II4YK30CqaufxcdWf8g-_CAx0B5pSkaT/view?usp=sharing

Interest of K.V. NDSupCt 6MAY2021

Tags: Terry Frisk

K.V. appealed a juvenile court memorandum opinion, issued after remand, that denied his motion to suppress evidence. K.V. was charged and adjudicated a delinquent child for possession of a controlled substance and possession of drug paraphernalia in January 2019. K.V. moved to suppress the evidence gathered after the stop. Following a hearing on the motion to suppress, the juvenile court issued an order denying K.V.'s motion. K.V. appealed, arguing the warrantless search violated the Fourth Amendment. The North Dakota Supreme Court reversed and remanded for reconsideration because the juvenile court did not make specific findings on the reasonableness of the pat down and did not identify what exception to the warrant requirement justified the search. Following remand, the juvenile court issued the memorandum opinion at issue here. The court concluded the pat down was justified based on officer safety, but determined the further search was not supported by the record for officer safety, because the officer did not identify what he felt during the pat down. However, relying on precedent from another jurisdiction that did not require individualized suspicion to search a passenger when the odor of marijuana is emanating from a vehicle, the court found, that based on what he saw, heard and smelled, the officer believed he had probable cause to search K.V. for marijuana and related paraphernalia. The court concluded, "based on the totality of the circumstances that Officer Engen had probable cause to search the person of K.V. for illegal drugs and the search was legal." The North Dakota Supreme Court concluded the juvenile court erred in concluding the officers had probable cause to conduct a warrantless search of K.V. under the totality of the circumstances, and reversed the juvenile court's memorandum opinion denying K.V.'s motion to suppress and the order adjudicating K.V. a delinquent child.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/15QVW8co859BwAtOqLIJDZfe4LgVeDYZ2/view?usp=sharing

Vermont v. Lambert VTSupCt 30APR2021

Tags: Custody for Miranda Purposes

Defendant Jeremy Lambert appealed his conviction on two counts of sexual assault against a minor, M.M. He argued: (1) the trial court erred in admitting statements he made to police detectives because they failed to read him Miranda warnings and his statements were not given voluntarily; and (2) the court infringed upon his right to a fair trial and to present a defense when it limited his cross-examination of M.M.'s mother and precluded two witnesses from testifying about statements allegedly made by M.M's mother. Because defendant was not in custody for the purposes of a Miranda warning, gave his statements to the detectives voluntarily, and failed to preserve his evidentiary claims, the Vermont Supreme Court affirmed.

To read or download the full decision CLICK HERE
https://drive.google.com/file/d/1NobM1E8vd_Kg40IC0fbcFBVIt0YOVJgb/view?usp=sharing

BF 20 – 21MAY2021

SEARCH AND SEIZURE

United States v. Thomas 5thCIR 2021 17MAY2021

The Fifth Circuit affirmed defendant's conviction for being a felon in possession of a firearm and upheld the district court's denial of defendant's motion to suppress evidence of a firearm discovered during a stop and frisk. The court concluded that reasonable suspicion supported the stop and frisk where defendant was encountered in a high-crime area, and in light of defendant's connection to the stolen vehicle and his interaction with others in and around the vehicle. In this case, the officers were reasonable in suspecting that at least some of the people around and inside the vehicle had been involved in the aggravated robbery. Furthermore, the officers' need to proceed cautiously was obvious in light of them being outnumbered and unable to secure all six people because they had only four sets of handcuffs. The court also concluded that defendant's detention did not exceed the permissible scope of the investigatory stop where the officers' actions were reasonable under the circumstances and the stop was not converted into an arrest prior to defendant being frisked. Finally, the court concluded that the police department's local policy does not affect the constitutionality of the officers' conduct.

United States v. Shelton 6thCIR 14MAY2021

Tags: Government Action

Elgin met Garbutt at an international convention. Garbutt, who holds dual citizenship, moved from Belize into Elgin's Gary, Indiana home and worked on her successful campaign to become Trustee of Calumet Township. Elgin hired Garbutt to work at the Trustee's Office as her "executive aide" at a salary of $60,000 per year. Garbutt's unofficial duties included Elgin's political campaign work. He understood that he should not perform political work at the Township Office but began to do so. Elgin also hired her friend Shelton, who also worked on Elgin's campaign. Elgin and Garbutt had a falling out. Elgin demoted Garbutt, docked his salary barred him from attending meetings, and took away his government car. Garbutt eventually began a partnership with an FBI agent who directed him to conduct warrantless searches of his co-workers' offices. Elgin took a plea deal, Shelton was convicted of conspiracy to commit wire fraud and conspiracy to commit honest services wire fraud, after learning, mid-trial, about the warrantless searches. The district court denied Shelton's post-trial motion for relief. The Sixth Circuit reversed. The district court erred in finding that Shelton lacked any reasonable expectation of privacy in her office. Garbutt's document collection, undertaken at the direction of the FBI, violated her Fourth Amendment rights. No warrant would have issued without the information gathered as a result of the unlawful searches; the evidence obtained from the search authorized by that warrant should have been suppressed.

USE OF FORCE

Tucker v. City of Shreveport 5thCIR 18MAY2021

Plaintiff filed a 42 U.S.C. 1983 action against police officers and the City of Shreveport, alleging that members of the police department used excessive force in effecting plaintiff's arrest. Specifically, plaintiff alleges that the police officers' conduct—forcing him to the ground and then beating him in order to place him in handcuffs—violated his rights protected by federal and state constitutional law, as well as Louisiana tort law. The district court granted summary judgment in favor of the officers in their official capacities on all claims and denied summary judgment as to all of plaintiff's claims against the City, as well as his section 1983 and Louisiana law claims against the officers in their individual capacities. The officers appealed. The Fifth Circuit reversed and remanded, concluding that the district court erred in concluding that factual issues preclude application of qualified immunity as to plaintiff's claims against the officers in their individual capacities. In this case, the facts and circumstances in their entirety created a scenario sufficiently "tense, uncertain, and rapidly evolving" to place the officers' takedown of plaintiff, even if mistaken, within the protected "hazy order between excessive and acceptable force," established by then-existing Fourth Amendment excessive force jurisprudence. Furthermore, the district court erred in not granting summary judgment in the officers' favor relative to the force used against plaintiff while he was on the ground.

21 BF 21MAY2021

Caniglia v. Strom USSC 17MAY2021

Tags: Community Caretaking, Dwelling

During an argument with his wife, Caniglia placed a handgun on a table and asked his wife to “shoot him and get it over with.” His wife left and spent the night at a hotel. The next morning, unable to reach her husband by phone, she called the police to request a welfare check. Officers encountered Caniglia on the porch of his home and called an ambulance. The officer believed that Caniglia posed a risk to himself or others and asked if he would go to the hospital for a psychiatric evaluation. Caniglia agree, but only if the officers would not confiscate his firearms. Notwithstanding his objection and without his consent, after Caniglia was transported for evaluation, the officers searched for and seized his weapons. Caniglia sued in federal court, claiming that the officers had violated his Fourth Amendment rights. The First Circuit affirmed summary judgment in favor of the officers, interpreting the Supreme Court’s Community Caretaking exception as set forth in *Cady v. Dombrowski* applicable to the search and

removal of Caniglia and his firearms from his home. A unanimous Supreme Court vacated. *Cady* held that a warrantless search of an **impounded vehicle** for an unsecured firearm did not violate the Fourth Amendment in light of the officers' "community caretaking functions." The court held that searches of vehicles and homes are constitutionally different, noting the core of the Fourth Amendment's guarantee is the right of a person to retreat into his home and "free from unreasonable governmental intrusion."

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1QjqAOUTuAiyH9QZ1UebN1c0bSsagItOj/view?usp=sharing

United States v. Thomas 5thCIR 17MAY2021

Tags: Terry Stop, Terry Frisk

The Fifth Circuit upheld the district court's denial of defendant's motion to suppress evidence of a firearm discovered during a stop and frisk. The court concluded that reasonable suspicion supported the stop and frisk where defendant was encountered in a high-crime area, and in light of defendant's connection to the stolen vehicle and his interaction with others in and around the vehicle. In this case, the officers were reasonable in suspecting that at least some of the people around and inside the vehicle had been involved in the aggravated robbery. Furthermore, the officers' need to proceed cautiously was obvious in light of them being outnumbered and unable to secure all six people because they had only four sets of handcuffs. The court also concluded that defendant's detention did not exceed the permissible scope of the investigatory stop where the officers' actions were reasonable under the circumstances and the stop was not converted into an arrest prior to defendant being frisked. Finally, the court concluded that the police department's local policy does not affect the constitutionality of the officers' conduct.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1DWT57Oj-4fq0dfFg7ljRfWksy5r1eXI7/view?usp=sharing

United States v. Shelton 7thCIR 14MAY2021

Tags: Search, Government Action, Reasonable Expectation of Privacy,

Elgin hired Garbutt to work at the Trustee's Office as her "executive aide" and also hired her friend Shelton, who also worked on Elgin's campaign. Elgin and Garbutt had a falling out. Elgin demoted Garbutt, docked his salary barred him from attending meetings, and took away his government car. Garbutt eventually began a partnership with an FBI agent who directed him to conduct warrantless searches of his co-workers' offices. Shelton was convicted of conspiracy to commit wire fraud after learning about the warrantless searches in the middle of trial. The Sixth Circuit held that the district court erred in finding that Shelton lacked any reasonable expectation of privacy in her office. Garbutt's document collection, undertaken at the direction of the FBI, violated her Fourth Amendment rights. No warrant would have issued without the information gathered as a result of the unlawful searches; the evidence obtained from the search authorized by that warrant should have been suppressed.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1LKSyxpF30SvPNEV_Coe2jkjijJNaGcJl/view?usp=sharing

Witherow v. Baker 9thCIR 18MAY2021

Tags: Qualified Immunity, Monitoring Prison Calls, Clearly Established Prong

The Ninth Circuit affirmed the district court's grant of summary judgment in favor of a prison officer based on qualified immunity in an action brought by plaintiff under 42 U.S.C. 1983, alleging that defendant violated plaintiff's Fourth Amendment rights by screening and intermittently checking in on plaintiff's phone conversations with the attorney he had hired to bring lawsuits on his behalf. The panel concluded that defendant was entitled to qualified immunity because she did not violate any Fourth Amendment right that was clearly established at the time of her challenged conduct. In this case, the panel exercised its discretion to consider only the second prong of the qualified immunity analysis. The panel explained that plaintiff has not cited any precedent that has placed the statutory or constitutional question beyond debate. In this case, there is no Supreme Court case considering whether a prison official's monitoring of an inmate's legal calls in this manner violates the inmate's Fourth Amendment rights. Furthermore, plaintiff has not pointed to any Ninth Circuit precedent holding that monitoring the beginning of an inmate's calls to ensure their legal character and then intermittently checking on those calls to confirm their continuing legal character violates a prisoner's Fourth Amendment rights. Consequently, the panel declined to address the merits of plaintiff's Fourth Amendment claim. Finally, the panel briefly responded to the concurrence's argument that plaintiff's claim warranted a merits decision even though such a decision could not affect the case's outcome.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1cUJDXPz_1OxUYf7f30nzYvOmf9-6VdxH/view?usp=sharing

Hurd v. District of Columbia DCCIR 14MAY2021

Tags: Due Process, Deliberate Indifference, Custom of Unconstitutional Practices

Four years after his release from prison, and after completing three years of supervised release, plaintiff was told he would have to serve another 27 months in jail based on an erroneous release from prison because he had a consecutive misdemeanor to serve. Plaintiff filed a writ of habeas corpus and the district court ruled that he must serve the remainder of his sentence. Plaintiff appealed, but the district court failed to act on the appeal until December 2013, at which point it dismissed the petition as moot because plaintiff had been released from jail upon completion of his sentence. Plaintiff then filed a 42 U.S.C. 1983 action alleging that his spontaneous incarceration deprived him of due process under the Fifth Amendment. The district court dismissed the case based on claim preclusion in light of plaintiff's prior unsuccessful habeas corpus action. The DC Circuit reversed and, on remand, the district court granted summary judgment for the District. The DC Circuit affirmed the district court's judgment that plaintiff failed to establish a pattern of constitutional violations or to demonstrate deliberate indifference. The court explained that plaintiff's evidence fails to show either that the District had a relevant custom of unconstitutional actions or that the District acted with deliberate indifference. However, the court vacated the entry of summary judgment for the District on the claim of unconstitutional policy because the nature and contours of the alleged policy present a number of disputed issues of material fact. Accordingly, the court remanded for further proceedings.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1mbY5BpUnv424SQn4pNrDWtBZF2G38af6/view?usp=sharing

California v. Moore CACOA 18MAY2021

Tags: Automobile Exception, Probable Cause, Marijuana

The trial court denied defendant Jemondre Moore’s motion to suppress evidence found during a search of defendant’s backpack, which he left on the front passenger’s side floorboard of a friend’s Jeep. The backpack was searched during a search of the Jeep pursuant to the automobile exception to the warrant requirement. The trial court concluded this exception authorized the search because the officer who conducted the search had probable cause to believe the Jeep contained an unlawful amount of marijuana. Defendant was convicted at trial and sentenced to serve five years in state prison. The Court of Appeal concluded the search was reasonable under the automobile exception to the warrant requirement, and affirmed judgment on that basis.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/11sUFXL5I2fktdg-NzjyXaW0qzw154CE0/view?usp=sharing

Mahaffy v. State WYSC 6MAY2021

Tags: Traffic Stop, Extended, Rodriguez Rule

The district court denied the Defendant's motion to suppress evidence obtained at the end of a traffic stop. Defendant entered a conditional plea to methamphetamine possession and child endangerment. Defendant appealed, arguing that the district court erred in denying his motion to suppress evidence obtained at the end of the traffic stop because the stop was unlawfully extended before a drug dog alerted. The Supreme Court agreed and reversed the district court, holding Defendant's Fourth Amendment rights were violated because the law enforcement officer's questioning for a minute and a half about drugs in the car after he completed the citation unlawfully extended the duration of the traffic stop.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1KyPj9YSI6St7hMjMGw-5h9F5Sw9z26Px/view?usp=sharing

USE OF FORCE

Tucker v. City of Shreveport 5thCIR 18MAY2021

Tags: Use of Force, Handcuffs, Basic Force, Qualified Immunity, Clearly Established

Plaintiff filed a 42 U.S.C. 1983 action against police officers and the City of Shreveport, alleging that members of the police department used excessive force in effecting plaintiff's arrest. Specifically, plaintiff alleges that the police officers' conduct—forcing him to the ground and then beating him in order to place him in handcuffs—violated his rights protected by federal and state constitutional law, as well as Louisiana tort law. The district court granted summary judgment in favor of the officers in their official capacities on all claims and denied summary judgment as to all of plaintiff's claims against the City, as well as his section 1983 and Louisiana law claims against the officers in their individual capacities. The officers appealed. The Fifth Circuit reversed and remanded, concluding that the district court erred in concluding that factual issues preclude application of qualified immunity as to plaintiff's claims against the officers in their individual capacities. In this case, the facts and circumstances in their entirety created a scenario sufficiently "tense, uncertain, and rapidly evolving" to place the officers' takedown of plaintiff, even if mistaken, within the protected "hazy order between excessive and acceptable force," established by then-existing Fourth Amendment excessive force jurisprudence. Furthermore, the district court erred in not granting summary judgment in the officers' favor relative to the force used against plaintiff while he was on the ground.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1q1b_wY2yDygPmRDDkIkWZ_6L212du-lP/view?usp=sharing

Boule v. Egbert 9thCIR 20MAY2021

Tags: Bivens, Use of Force, First Amendment Retaliation

The Ninth Circuit amended its opinion, ordered the amended opinion to be filed concurrently with the panel's order, and denied a petition for rehearing en banc. In the amended opinion, the panel held that Bivens remedies were available in the circumstances of this case, where a United States citizen claimed that a border patrol agent violated the Fourth Amendment by using excessive force while carrying out

official duties within the United States and violated the First Amendment by engaging in retaliation entirely unconnected to his official duties. Plaintiff owns, operates, and lives in a bed and breakfast near the United States-Canada border in Blaine, Washington. Plaintiff alleged that a border patrol agent entered plaintiff's property to question guests and used excessive force on plaintiff, ultimately retaliating against plaintiff by, among other things, contacting the IRS to seek an investigation into plaintiff's tax status. The panel agreed with the district court's assumption that plaintiff's Fourth Amendment excessive force claim is a "modest extension" of Bivens cases in a new context. The panel did not find that special factors counseled hesitation such that a Bivens action in this new context is foreclosed. In this case, plaintiff, a United States citizen, is bringing a conventional Fourth Amendment excessive force claim arising out of actions by a rank-and-file border patrol agent on plaintiff's own property in the United States. The panel explained that this context is a far cry from the contexts in Ziglar v. Abbasi, 137 S. Ct. 1843, 1857 (2017), and Hernandez v. Mesa, 140 S. Ct. 735, 743 (2020), where the Supreme Court found that special factors counseled against a Bivens action. In regard to the First Amendment claim, the panel noted that although the Supreme Court wrote in Hartman v. Moore, 547 U.S. 250 (2006), that Bivens extends to First Amendment retaliation claims when federal law enforcement officials have no innocent motives for their action, the panel recognized that the Supreme Court has not expressly so held. In this case, plaintiff's First Amendment retaliation claim arose in a new context and the panel found no special factor making it inadvisable to find a cognizable Bivens claim in this new context. Finally, the panel considered the available alternative remedies -- intentional-tort claims under the Federal Tort Claims Act, a trespass claim against Agent Egbert, or injunctive relief -- and concluded that none of these suggested remedies defeats a Bivens action.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1sPU4kjXysLX2SZISB_8s-j4qRs1vEwc2/view?usp=sharing

22 BF 28MAY2021

United States v. Mabry 21May2021

Tags: Terry Stop, Seizure of a Person

Uniformed Metropolitan Police officers Goss, Tariq, and Volcin were patrolling an area known for gun- and drug-related crime when they saw three men hanging out on the sidewalk. When they exited their car to talk to them, one man began to walk away and Officer Goss approached him. Mabry, the defendant in this case, and the third man stayed. The man who tried to leave became irate as Officer Goss spoke with him. Officer Tariq walked over and patted the man down. Officer Volcin stayed with Mabry and the third man. Seeing the pat-down, Mabry raised his shirt and said, “I’ve got nothing,” and

“you have no probable cause to search me.” Officer Volcin asked about a satchel Mabry was carrying. The officers requested that he open the satchel. Mabry repeatedly said that he had nothing. Officer Volcin never grabbed Mabry or the satchel and never told Mabry that he could not leave. At this point, Mabry ran and during the ensuing chase, Mabry discarded the satchel, which Officer Goss recovered. Mabry eventually stopped and Officer Volcin opened the satchel and discovered a spring for a large-capacity magazine. While walking, Mabry made unsolicited statements indicating he was in possession of a firearm and drugs. Mabry had a pistol, 30 rounds of ammunition, an extended magazine, crack cocaine, and amphetamines. The D.C. Circuit reversed the denial of Mabry's motion to suppress. Mabry was “seized” for Fourth Amendment purposes. The circumstances show the officers’ conduct constituted a show of authority to which Mabry submitted.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1y6FvCtZHsKo2DA-nMFNZgy2F7iO2tWKz/view?usp=sharing

People v. Tousant CACOA 26MAY2021

Tags: cellphone seizure, automobile exception

Tousant was convicted for his part in the shooting of several individuals and his unlawful possession of firearms. Tousant appealed the denial of his motion to suppress evidence downloaded from his cellphone which was seized after an allegedly illegal search of his car which was left at the scene of a shooting. Tousant also appealed the admission of his incriminating statements to a police officer, admission of uncharged acts, denial of a motion to sever, and a response to a jury question. The court of appeal affirmed, rejecting those arguments and a claim the evidence supporting three convictions was insufficient. The search and seizure were justified under the automobile exception because there was probable cause to believe the cellphone would contain evidence related to the shooting. Furthermore, law enforcement’s 15-day seizure of Tousant’s cellphone before securing a warrant to search its contents was not unreasonable. Regarding the incriminating statements, the court held Tousant did not require Miranda warnings because he was not interrogated.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/16CCXV0hf311Jqe49rVrHQMA-lClVM2by/view?usp=sharing

USE OF FORCE

Banks v. Hawkins 8thCIR 27MAY2021

Tags: Use of Force, Deadly Force, Qualified Immunity

The defendant in this civil suit under 42 U.S.C. 1983 was a police officer who shot the plaintiff while investigating a potential domestic disturbance, The plaintiff alleged the officer used excessive force in violation of the Fourth Amendment. The district court denied the officer's motion for summary judgment for qualified immunity. The Eighth Circuit affirmed, agreeing with the district court that genuine issues of material fact precluded a grant of qualified immunity. The plaintiff's demeanor and conduct are in dispute. Furthermore, the officer opened the door and instantaneously shot plaintiff. Therefore, under these circumstances, it is reasonable for a jury to conclude that no reasonable officer would have believed that he had probable cause to use deadly force. Furthermore, plaintiff's right to be free from excessive force under these circumstances was also clearly established at the time.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1-xJI0uaT0b0OYJtrBzvBB6RCOK-prlCK/view?usp=sharing

Masters v. Runnels 8thCIR 27MAY2021

Tags: Use of Force, Intermediate Force, Taser, Traffic Stop

Plaintiff filed suit under 42 U.S.C. 1983, alleging that defendant, a police officer, used excessive force against him during a traffic stop. A jury found in favor of plaintiff, awarding compensatory and punitive damages. Defendant appealed. The Eighth Circuit concluded that, viewing the facts in the light most favorable to the verdict, defendant's prolonged use of his taser was not an objectively reasonable use of force. In this case, although plaintiff initially resisted defendant's attempts to remove him from the car, he did not physically hit or verbally threaten defendant. Furthermore, plaintiff, who was 17 years old at the time, posed at most a minimal safety threat to defendant. The court also concluded that plaintiff's right to be free from excessive, prolonged use of a taser was clearly established at the time. Accordingly, the court affirmed the district court's denial of defendant's motion for judgment as a matter of law on the prolonged taser claim.

To read or download the full decision CLICK HERE

https://drive.google.com/file/d/1pHKTob7SqKqMBRjUjhLuw3vjYqSJcBuh/view?usp=sharing

23 BF 4JUN2021

United States v. Simmermaker 8thCIR 1JUN2021

Tags:

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress evidence seized from her lockbox in an action where she pleaded guilty to possession with intent to distribute a controlled substance. In this case, the search warrant was for evidence of drug use and distribution. Furthermore, officers saw defendant on the couch, asleep, with a meth pipe next to her. The court concluded that this was enough to give officers particularized suspicion that defendant was connected to the illicit activity that provided the basis for the warrant. The court explained that, while defendant had a reasonable expectation of privacy in the lockbox, officers had probable cause that she was involved in the criminal activity that formed the basis for the warrant. Therefore, defendant's lockbox fell within the scope of the warrant and searching it was lawful.

United States v. Suggs 10thCIR 2JUN2021

Tags:

This appeal stemmed from a road rage incident at the corner of a crosswalk in Colorado Springs: a pedestrian wanted to cross the street, the driver of a vehicle wanted to turn right. Words were exchanged, the driver pulled out a gun and took a shot at the pedestrian. The bullet didn't strike anyone. The vehicle sped off, and the pedestrian called 911. Law enforcement focused their investigation on Defendant Perry Suggs. Warrants were issued, Defendant's home was searched, and incriminating evidence was discovered. A federal grand jury charged Defendant with possession of a firearm and ammunition by a convicted felon. Before trial, Defendant moved to suppress the evidence found during sequential searches of his home and an SUV parked under his carport, arguing that the warrant to search his home violated the Fourth Amendment's particularity requirement and that officers would not have found the evidence used against him but for the invalid warrant. The district court disagreed and denied the motion. Defendant appealed that decision. The Tenth Circuit determined the district court erred when it denied Defendant's motion to suppress. "Because the residential search warrant failed to meet the Fourth Amendment's particularity requirement and cannot be saved by the severability

doctrine, we vacate the order denying Defendant's suppression motion." Yet the question remained whether the good-faith exception to the exclusionary rule saved the incriminating evidence from suppression. The case was remanded for the district court to resolve underlying factual disputes and consider that remedial question in light of the Tenth Circuit's holding.

Combs v. State INSCt 3JUN2021

Tags: Inventory Search

The Supreme Court affirmed the judgment of the trial court denying Defendant's motion to suppress the fruits of an inventory search of the company van he was driving, holding that the van's seizure and search were lawful. Defendant was driving his company van when we served off the road, demolished a utility box, then drove to his nearby home. The responding officer found Defendant as he was parking in his front driveway and took him to the hospital for a blood test. Later, other officers conducted an inventory search of the van, which revealed pills in a bag under the driver's seat, and then towed the van as evidence of leaving the scene of an accident. Defendant was charged with several offenses and moved to suppress the pills. The trial court denied the motion to suppress, and a jury convicted Defendant of most of the charges. The Supreme Court affirmed, holding that the search and seizure of Defendant's van fell under recognized exceptions to the warrant requirement of the Fourth Amendment, and therefore, the police officers lawfully discovered the pills.

Commonwealth v. Delgado-Rivera MASJC 1JUN2021

Tags: REP Text Messages

The Supreme Judicial Court vacated the decision of the superior court judge allowing Defendant's motion to suppress, holding that Defendant enjoyed no reasonable expectation of privacy in the text messages sent by him that were stored on a cellular telephone belonging to, and possessed by, another person. Defendant and six codefendants were indicted on charges of trafficking in cocaine, conspiracy to violate drug laws, and conspiracy to commit money laundering. The charges stemmed from an investigation originating, in part, from evidence acquired during a search of a codefendant's cell phone. The owner of the telephone filed a motion to suppress evidence obtained as a result of the search of his phone, including the contents of text messages sent by Defendant. Defendant moved to join the motion. The Commonwealth opposed the motion, arguing that Defendant lacked standing to challenge the search. The judge ruled that Defendant had standing and allowed him to join the motion. The Supreme Judicial Court reversed, holding that Defendant could not challenge the reasonableness of the search because he lacked a reasonable expectation of privacy in the sent text messages.

North Dakota v. Black NDSCt 3JUN2021

Tags: Emergency Exigency

James Black appealed following his conditional guilty plea to ten counts of possession of certain materials prohibited, class C felonies. Black argued the district court was required to suppress evidence obtained during an unreasonable search following an improper initial entry into his home. Black also argued the trial court was required to suppress evidence obtained during a subsequent search of his home pursuant to a search warrant that lacked probable cause. After review, the North Dakota Supreme Court concluded the initial search was not unreasonable and the subsequent search warrant was valid. Therefore, judgment was affirmed.

24 BF 11JUN2021

United States v. Suggs 10thCIR 2JUN2021
Tags: Warrant application, particularity

This appeal stemmed from a road rage incident at the corner of a crosswalk in Colorado Springs: a pedestrian wanted to cross the street, the driver of a vehicle wanted to turn right. Words were exchanged, the driver pulled out a gun and took a shot at the pedestrian. The bullet didn't strike anyone. The vehicle sped off, and the pedestrian called 911. Law enforcement focused their investigation on Defendant Perry Suggs. Warrants were issued, Defendant's home was searched, and incriminating evidence was discovered. A federal grand jury charged Defendant with possession of a firearm and ammunition by a convicted felon. Before trial, Defendant moved to suppress the evidence found during sequential searches of his home and an SUV parked under his carport, arguing that the warrant to search his home violated the Fourth Amendment's particularity requirement and that officers would not have found the evidence used against him but for the invalid warrant. The district court disagreed and denied the motion. Defendant appealed that decision. The Tenth Circuit determined the district court erred when it denied Defendant's motion to suppress. "Because the residential search warrant failed to meet the Fourth Amendment's particularity requirement and cannot be saved by the severability doctrine, we vacate the order denying Defendant's suppression motion." Yet the question remained whether the good-faith exception to the exclusionary rule saved the incriminating evidence from suppression. The case was remanded for the district court to resolve underlying factual disputes and consider that remedial question in light of the Tenth Circuit's holding.

United States v. Lao 7thCIR 4JUN2021
Tags: Reasonable Suspicion (Application of State Law)

During heavy snow, Lieutenant McAuly approached a car that was far off the roadway. Lao lowered the driver's window and stated that a tow truck was on its way. According to McAuly, Lao displayed nervousness and was acting as though he wanted McAuly to leave while speaking sharply to his passenger, Chang. Their driver's licenses revealed extensive recent felony criminal histories. Both were under supervised release for methamphetamine convictions. Both consented to pat-down searches. McAuly discovered that under her shirt Chang was carrying a locked, portable gun safe. Chang denied both ownership of the safe and knowledge of its contents. Through the car windows, McAuly saw a razor blade and a piece of cardboard that he associated with dividing drugs. Wisconsin Act 79 authorizes an officer, without consent, a warrant, or probable cause, to search any property under the control of a person who is under court supervision if the officer has a reasonable suspicion of criminal activity. McAuly found the key, opened the gun safe, and found what was determined to be 75.6 grams of methamphetamine and a digital scale. A later search revealed a firearm and ammunition. After receiving Miranda warnings, Chang declared that everything in the safe belonged to her, although she was unable to describe its contents. Both were charged with possession with intent to distribute 50 grams or more of methamphetamine. Lao was also charged as a felon in possession of a firearm. The Seventh Circuit affirmed the denials of the defendants' motion to suppress. Although the officer's hunch alone was not sufficient justification for the seizure, other factors provided the reasonable suspicion necessary. Chang's statements did not fall within any hearsay exception and could not be admitted if Chang chose to invoke her Fifth Amendment right not to testify.

United States v. Moore 6thCIR 7JUN2021
Tags: Warrant sufficiency, Confidential informant, collective knowledge

Officer Dickens submitted an affidavit, seeking a search warrant for 10318 Dove Avenue, a single-family Cleveland residence. Dickens averred that earlier that month a confidential informant disclosed to him that a dealer, Moore, was selling cocaine out of that residence. He described Moore's race, height, weight, age, and date of birth and disclosed that Moore deployed an extensive electronic surveillance system. Moore had been charged with several past drug crimes, including one prior conviction for drug trafficking. Dickens also described a controlled drug buy between the informant and Moore that occurred earlier that month at the Dove residence, under surveillance. The state court issued the search warrant. Officers detained Moore and found two firearms, two kilograms of cocaine, 100 grams of cocaine base, and materials used to facilitate large-scale drug trafficking. An ATF officer arrived, advised Moore of his Miranda rights, and interviewed Moore. Moore was indicted on five federal counts involving conspiracy, possessing and intending to distribute cocaine and cocaine base, possessing firearms while a felon, and possessing firearms to further a drug trafficking crime. Moore unsuccessfully moved to suppress the evidence, arguing that the affidavit lacked indicia that the confidential informant was reliable. The Sixth Circuit affirmed. Collectively, the information provided demonstrated a fair probability that evidence of drug trafficking would be found at Dove.

United States v. Woodfork 7thCIR 4JUN2021
Tags: Confidential Informant, reliability, warrant application

Danville Officer Crawley sought a warrant to search Woodfork's home. Crawley testified under oath, identifying Woodfork as the target of the request, stating that Woodfork had sold crystal methamphetamine in a controlled buy to a confidential source (CS) that day. Officers had searched the SC before and after that buy and surveilled the transaction, which was recorded. Crawley had relied on the CS "multiple times" and found him "reliable." The officers attempted to set up a second controlled buy, using another reliable CS. Woodfork had insisted that the CS come to Woodfork's home, which was described by naming an intersection, understood to be 1220 North Franklin Street. The judge issued a search warrant for Woodfork's North Franklin home. Officers discovered methamphetamine and a firearm. Woodfork moved to quash the warrant and or to suppress the evidence, arguing that he was entitled to a "Franks" hearing and suppression because Crawley misled the county judge regarding the identification of his home and by omitting details about the CS's criminal histories. The Seventh Circuit affirmed the denial of Woodfork's motion. Crawley and the judge were not simply relying on the uncorroborated word of the CS; a controlled buy, properly executed, is generally a reliable indicator of the presence of illegal drug activity. The omission of information about the sources' backgrounds, criminal histories, or motives does not change the probable cause determination. Crawley testified; the court could assess his credibility and ask questions.

United States v. Eggerson 8thCIR 7JUN2021
Tags: warrant execution, scope of search, good faith, cellphone search

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress after he was convicted of being a felon in possession of a firearm. In regard to the first warrant that authorized police to search for guns, items tending to show possession of guns, and electronic storage devices which would tend to store or send information relating to illegal drug trafficking, the court concluded that an objectively reasonable officer could have believed that the warrant permitted him to search for evidence of illegal gun possession, including defendant's cell phone. Therefore, the video found on the cell phone was admissible under the good faith doctrine. The court also concluded that there was a substantial basis to find that probable cause existed to seize defendant's phone and, even if there were not, the court would nonetheless conclude that the good faith exception applied.

United States v. Martin 8thCIR 7JUN2021
Tags: Show-Up Identification, reasonable suspicion, Terry Stop of vehicle, GPS data

The Eighth Circuit affirmed the district court's denial of defendant's motions to suppress and his objection to the application of the career criminal enhancement under USSG 4B1.1(a). Defendant robbed a Sprint Wireless Express store in Davenport, Iowa at gunpoint, making off with cell phones and tablets. Defendant also left with a GPS tracker, which the police used to track him down. The court concluded that police had at least a reasonable suspicion to stop the vehicle based on the GPS tracker and, considering the tight window of opportunity officers had to locate a fleeing suspect, it was reasonable for police to rely on third-party GPS data. Furthermore, other factors supported the officers' suspicion, including the fact that defendant's vehicle matched the description given by a store employee and the police noticed unusual behavior from the occupants of the vehicle. The court also concluded that any error in the district court's denial of his motion to suppress the use of the show-up lineup was harmless. Finally, the district court did not err in determining defendant had two prior felony convictions for crimes of violence for purposes of sentencing him as a career offender under USSG 4B1.1.

United States v. Eggerson 8thCIR 7JUN2021
Tags: warrant execution, good faith,

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress after he was convicted of being a felon in possession of a firearm. In regard to the first warrant that authorized police to search for guns, items tending to show possession of guns, and electronic storage devices which would tend to store or send information relating to illegal drug trafficking, the court concluded that an objectively reasonable officer could have believed that the warrant permitted him to search for evidence of illegal gun possession, including defendant's cell phone. Therefore, the video found on the cell phone was admissible under the good faith doctrine. The court also concluded that there was a substantial basis to find that probable cause existed to seize defendant's phone and, even if there were not, the court would nonetheless conclude that the good faith exception applied.

State v. Liebenguth CTSCt 8JUN2021
Tags: First Amendment

The Supreme Court reversed the judgment of the Appellate Court concluding that Defendant's conviction of breach of the peace in the second degree must be reversed because the First Amendment barred his prosecution for the statements at issue, holding that Defendant's remarks were unprotected fighting words, and therefore, his conviction did not violate the First Amendment. At issue were Defendant's "vulgar and racially charged" remarks that included utterances of the words "fucking niggers" directed at an African-American parking enforcement official following Defendant's receipt of a parking ticket. As a result of this conduct, Defendant was convicted of breach of the peace in the second degree. The Appellate Court reversed, concluding that Defendant's speech was constitutionally protected. The Supreme Court reversed, holding that the Appellate Court erred in concluding that Defendant's language did not constitute fighting words.

State v. Diego INSCt 9JUN2021
Tags:

The Supreme Court reversed the order of the trial court suppressing statements made by Defendant during a police interview, holding that the circumstances did not amount to a custodial interrogation. At issue was whether Defendant's freedom of movement was curtailed to a level associated with formal arrest when he had a free-flowing exchange in a detective's personal office. In granting Defendant's motion to suppress the trial court concluded that the circumstances were akin to a custodial interrogation and that the statements were obtained in violation of the Fifth Amendment. The Supreme Court disagreed and reversed the suppression order, holding that the limited curtailment of Defendant's freedom of movement did not amount to a formal arrest.

Commonwealth v. Ortiz MASCt 8JUN2021
Tags: automobile exception

The Supreme Judicial Court affirmed Defendant's conviction of unlawful distribution of heroin as a subsequent offender and unlawful possession of heroin with intent to distribute as a subsequent offender, holding that the superior court did not err by denying Defendant's motion to suppress and that there was no other error. In his suppression motion, Defendant sought to suppress evidence found during a warrantless search of a motor vehicle. The superior court denied the motion to suppress. The Supreme Judicial Court affirmed the denial of the suppression motion and Defendant's convictions, holding (1) the police had probable cause to search the vehicle, and there was no error in the denial of the motion to suppress; (2) the trial judge erred in allowing the admission of an in-court identification made by a police officer, but the error did not prejudice Defendant; and (3) there was no substantial risk of a miscarriage of justice as to the jury instructions on possession and distribution of narcotics.

State v. Genous WISCt 4JUN2021
Tags: reasonable suspicion, terry stop of a vehicle

The Supreme Court reversed the decision of the court of appeals reversing the judgment of the circuit court denying Defendant's motion to suppress certain firearm evidence on the grounds that the police officer lacked reasonable suspicion to stop Defendant's vehicle, holding that, under the totality of the circumstances, the stop was lawful. At issue was whether the law enforcement officer in this case has a reasonable suspicion that Defendant had committed or was about to commit a crime. The court of appeals concluded that the stop was unlawful. The Supreme Court disagreed and reversed, holding that, considering the totality of the circumstances, a reasonable law enforcement officer knowing what the officer in this case knew and seeing what he saw would reasonably suspected that Defendant was engaged in a drug transaction, and therefore, the investigatory stop of Defendant's vehicle complied with the Fourth Amendment.

State v. VanBeek WISCt 4JUN2021
Tags: reasonable suspicion, extended traffic stop, Rodriguez Rule Violation

The Supreme Court reversed the circuit court's judgment of conviction of Defendant for possession of methamphetamine and drug paraphernalia and remanded with instructions to grant Defendant's motion to suppress, holding that the seizure of Defendant was unlawful because the police officer did not have reasonable suspicion that Defendant was engaged in criminal activity. Defendant's conviction arose from a search of her vehicle. On appeal, Defendant argued that the circuit court erred in denying her motion to suppress because the search violated her Fourth Amendment right to be free from unreasonable searches and seizures. The Supreme Court agreed, holding (1) Defendant was seized when the officer returned to her vehicle after running a records check, withheld her driver's license, and continued to question her and her passenger in order to hold her until a drug-sniff dog arrived; and (2) the seizure was unlawful because Defendant did not have a reasonable suspicion that Defendant was engaged in criminal activity at the time he seized her.

USE OF FORCE

NO CASES

25 BF 18JUN2021

United States v. Jones DCCIR 15JUN2021

Tags: Terry Stop, Terry Frisk, reasonable suspicion

The DC Circuit affirmed the district court's denial of defendant's motion to suppress a firearm seized from his waistband, holding that the officers who seized the gun had reasonable suspicion that defendant was involved in criminal activity. The court concluded that the record facts support the findings of the district court where the officers were responding to late-night reports of gunfire; the officers saw that defendant was the only person on the block; defendant was walking quickly away from the location of the shooting, failing to initially respond to an officer's repeated efforts to get his attention; and, although the officer did not see that defendant was wearing earbuds, it was reasonable for her to treat defendant's non-responsiveness as grounds for suspicion. Furthermore, the district court viewed the bodycam footage and credited the officers' testimony, and nothing in the record suggests that the district court's findings were clearly erroneous. The court rejected defendant's arguments to the contrary, concluding that the combination of the facts found by the district court raised reasonable suspicion.

United States v. Gholston 7thCIR 14JUN2021

Tags: traffic stop, extended stop, K9,

Officer Cowick's informant informed Cowick that she believed that Gholston was about to pick up large quantities of methamphetamine using his green pickup truck. At least three months later, Cowick spotted Gholston's green pickup truck, followed Gholston, and activated his lights when Gholston turned without using a signal. Gholston parked and was walking away, which heightened Cowick's suspicions but eventually returned. Cowick handcuffed Gholston at 12:18 am and began writing a ticket. Dispatch informed Cowick that Gholston's ID was valid but that he had a Notice of Violation for

improperly parking over a year earlier. At 12:24:23 am, Cowick called for a K9 officer, Saalborn, and requested assistance in delivering the Notice to the traffic stop. Sargent Elbus responded that he could bring the Notice. Cowick told Elbus, “take your time!!” because he was “trying to get” Saalborn While completing the ticket, Cowick continued to urge Elbus to move slowly and to urge Saalborn to “drive fast.” Cowick printed Gholston’s ticket at 12:32:27, then realized that he had not asked Gholston for insurance information. Gholston did not have proof of insurance. Cowick returned to his car to write another ticket. As Cowick was finishing that ticket, Saalborn arrived; his drug-sniffing dog alerted as the ticket was printing. The officers searched the truck and discovered nine grams of methamphetamine. The Seventh Circuit affirmed the denial of Gholston’s motion to suppress. Cowick did not unreasonably extend the stop in violation of the Fourth Amendment; his failure to request Gholston’s insurance information at the start of the stop was a good-faith blunder.

United States v. Buzzard 4thCIR 11JUN2021

Tags: extended traffic stop, rodriguez rule violation

The Fourth Circuit affirmed the district court's denial of Defendant Buzzard and Martin's motions to suppress evidence found when police searched a car they occupied. Given the totality of the circumstances, the court concluded that the officers' question asking whether there was anything illegal in the vehicle related to officer safety and was therefore related to the traffic stop's mission. In any event, the court concluded that the officer's question did not extend the stop by even a second. The court also affirmed the district court's denial of Martin's motion for acquittal at trial and the revocation of his term of supervised release at sentencing. The court concluded that the evidence was more than sufficient for the jury to conclude that Martin possessed the guns. Furthermore, because Martin's challenge to the revocation of his prior term of supervised release is based entirely on his assertion that there was no substantial evidence for his conviction, the court likewise affirmed that decision.

United States v. Harvey 8thCIR 11JUN2021

Tags: Terry Stop, Terry Frisk, reasonable suspicion

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress after he conditionally pleaded guilty to being a felon in possession of a firearm offense. Under the totality of the circumstances, the court concluded that an officer with forty years experience must be allowed to draw on this experience and training to make inferences from and deductions about whether there was reasonable suspicion that one or both of these suspects may be armed and dangerous. In this case, police suspected that defendant's companion was a suspect in the theft of two firearms stolen three days earlier; a Terry stop of both men was reasonable; and the officer had a reasonable suspicion to conduct a pat down search of defendant based on information related to the companion. Furthermore, the officer asked the men if they were armed and defendant stated that the he was. Therefore, the officer retrieved the firearm from defendant's pocket.

California v. Kasrawi CACOA 16JUN2021

Tags: Attenuation Doctrine, Taint

Defendant Omar Kasrawi was apprehended in an affluent neighborhood in possession of property he had stolen from some nearby cars. Although the officer who stopped and ultimately arrested him acted on no more than a hunch after watching Kasrawi innocuously cross the street to his legally parked car, the officer learned that Kasrawi had an outstanding arrest warrant. California Supreme Court precedent compelled the Court of Appeal to conclude that despite the Fourth Amendment violation, the evidence did not need to be suppressed: “This case falls into a narrow exception to the exclusionary rule that applies where a law enforcement officer discovers the defendant’s outstanding warrant after an illegal stop but before a search yields evidence of a crime. Under these limited circumstances, discovery of the warrant can attenuate the taint of the original detention.” On those grounds, the Court affirmed the denial of Kasrawi’s suppression motion.

Commonwealth v. Gonzalez MASJC 16JUN2021

Tags: Miranda, Right to Counsel, reapproach, voluntariness

The Supreme Judicial Court affirmed the decision of the superior court allowing Defendant's motion to suppress all of the statements he made after having invoked his right to counsel, holding that the trial judge did not err in granting the motion to suppress. Defendant was arrested on charges of murder in the first degree and possession of a firearm without a license. Although Defendant first agreed to waive his Miranda rights and speak with police in an interrogation room, twenty minutes after the interview began Defendant requested to speak with an attorney. Forty-five minutes later, Defendant again waived his Miranda rights and agreed with speak with the police. Defendant was subsequently interviewed for about one hour. Thereafter, Defendant moved to suppress all of the statements he made after having invoked his right to counsel. The superior court judge allowed the motion to suppress, concluding that it had not been established beyond a reasonable doubt that Defendant reinitiated the interview and knowingly, voluntarily, and intelligently waived his right to counsel. The Supreme Judicial Court affirmed, holding that the trial judge did not err.

OFFICER LIABILITY

Kelson v. Clark 5thCIR 17JUN2021

Tags: qualified immunity, right to medical care, seizure, duty to provide medical care

The Fifth Circuit affirmed the district court's denial of Defendant Clark and Cox's motion to dismiss on the basis of qualified immunity for claims of failure to treat and the wrongful death of Hirschell Wayne Fletcher, Jr., who died from previously sustained head trauma while in custody. The court agreed with plaintiffs that between when paramedics Clark and Cox arrived and allegedly failed to treat Fletcher, but before he was formally transported, a reasonable person in Fletcher's position—surrounded and confronted by five officers—may not have thought he was free to leave, and was therefore detained. In this case, plaintiffs alleged that Clark, Cox, and the surrounding officers harassed and laughed at Fletcher until he was transported to the detention facility, all without any medical treatment. As alleged, the court concluded that such conduct supports that the paramedics may have been both subjectively aware of, and disregarded, Fletcher's serious risk of injury. Furthermore, it is undisputed that, at the time Clark and Cox allegedly failed to treat Fletcher, the law was clearly established that pretrial detainees have a Fourteenth Amendment right to medical care.

26 BF 25JUN2021

Lange v. California SCt 23JUN2021

Tags: hot pursuit

Lange drove by a California highway patrol officer, playing loud music and honking his horn. The officer followed Lange and soon turned on his overhead lights to signal Lange to pull over. Rather than stopping, Lange drove a short distance to his driveway and entered his attached garage. Without obtaining a warrant, the officer followed Lange into the garage, questioned him, and, after observing signs of intoxication, put him through field sobriety tests. Charged with misdemeanor DUI, Lange moved to suppress the evidence obtained after the officer entered his garage. California courts rejected his Fourth Amendment arguments. The Supreme Court vacated. Under the Fourth Amendment, the pursuit of a fleeing misdemeanor suspect does not always justify a warrantless entry into a home. Precedent favors a case-by-case assessment of exigency when deciding whether a suspected misdemeanant's flight justifies a warrantless home entry. Such exigencies may exist when an officer must act to prevent imminent injury, the destruction of evidence, or a suspect's escape. Misdemeanors may be minor. When a minor offense (and no flight) is involved, police officers do not usually face the kind of emergency that can justify a warrantless home entry. Adding a suspect's flight does not change the situation enough to justify a categorical rule. When the totality of circumstances (including the flight itself) show an emergency—a need to act before it is possible to get a warrant—the police may act without waiting. Common law afforded the home strong protection from government intrusion and did not include a categorical rule allowing warrantless home entry when a suspected misdemeanant flees.

United States v. Caesar 10thCIR 23JUN2021

Tags: exclusionary rule, probable cause, good faith

Pennsylvania State Police received a tip about suspicious eBay activity and discovered several messages, seeking to buy children's used underwear and posing as a child looking for photos of other children in their undergarments. The username was registered to "Robert Caesar" of Oxford, PA. Other information corroborated Caesar's connection to the eBay account. While the investigation was ongoing, Officer Gallina received information that Caesar had sexually abused two adolescent brothers. After interviewing the boys, Gallina applied for warrants to search for evidence of aggravated indecent assault of a minor, seeking physical evidence of the alleged sexual abuse, consisting of "[s]emen and bodily fluid," and images of child pornography stored on personal electronic devices. Although the supporting affidavit included no express allegations that Caesar possessed child pornography, it stated that child abusers "routinely keep" such images. During the ensuing search, officers seized electronic equipment. A third warrant authorized the search of those devices, which contained child pornography. The Third Circuit reversed, in part, the suppression of thousands of images of child pornography and of Caesar's sexual abuse victims. Whether they were enough to satisfy probable cause, the allegations about Caesar's prolonged sexual abuse of the brothers and his interest in photos of undressed children supported the reasonableness of the officers' belief that probable cause existed. Gallina's reliance on

the initial warrant and his conduct securing the warrant did not approach the gross negligence required to trigger the exclusionary rule.

United States v. Leal 7thCIR 21JUN2021

Tag: Custody, Miranda

Leal used an online dating application to contact a user who was an undercover FBI agent, posing as a teenage boy. Despite learning that the user was underage, Leal engaged in sexually explicit conversations and solicited oral sex. The agent provided Leal an address. Under surveillance, Leal arrived at the house. When a surveillance officer drove an unmarked vehicle up the alley, Leal sped off. Leal was quickly pulled over. Three officers were present, wearing clothes that identified them as officers. Leal was told that he was not under arrest and agreed to speak with other agents in the house. Leal consented to a pat-down and surrendered his cell phone and his car keys. The recorded interview proceeded with the door closed. The agents neither handcuffed nor restrained Leal. Leal quickly confessed and confirmed he had sent the messages. After the 18-minute interview, the FBI arrested Leal for knowingly attempting to entice a minor to engage in sexual activity. The Seventh Circuit reversed the grant of Leal's motion to suppress his statements. The agents did not conduct a custodial interrogation without advising him of his Fifth Amendment rights. The custody inquiry is not whether the defendant was under a subjective belief that his movements were restricted, but whether a reasonable person in the defendant's position would believe that he was free to leave. That Leal believed he was in a precarious position says nothing about the officers' behavior or whether a reasonable person would have felt bound to stay.

Idaho v. Hale IDSCt 22JUN2021

Tags: Traffic Stop, Permissible Questions, Mission Related Activities, Extended Stop, K-9

William Hale, II, appealed after he was convicted on two counts of felony possession of a controlled substance and one count of possession of drug paraphernalia. After a drug-detecting dog alerted on the car Hale had been driving, law enforcement conducted a warrantless search of the vehicle, discovering various controlled substances and drug paraphernalia. Hale moved to suppress the evidence resulting from the search, arguing that the responding officer had impermissibly prolonged the stop while waiting for the drug-detecting dog by inquiring about Hale's permission to operate the vehicle. The district court denied Hale's motion, reasoning that the officer's questions were within the permissible scope of the traffic stop. The Court of Appeals affirmed, concluding that the questions regarding Hale's permission to operate the vehicle comported with the Fourth Amendment. Finding no reversible error in the district court decision, the Idaho Supreme Court affirmed judgment.

State v. Hahn IASCt 18JUN2021

Tags: Search and Seizure, Trash Pull, Physical Intrusion, Curtilage

The Supreme Court conditionally affirmed Defendant's drug-related convictions, second offense, holding that, consistent with this Court's opinion in State v. Wright, __ N.W.2d __ (Iowa 2021), filed today, law enforcement officers conducted an unreasonable seizure and search when they seized and searched garbage bags left out for collection without first obtaining a warrant. On appeal, Defendant argued that two sheriff's deputies violated his federal and state constitutional rights to be free from unreasonable searches and seizures when they seized and searched a trash bag outside Defendant's residence without first obtaining a warrant. The Supreme Court agreed, holding that remand was required in order for the district court to hold a hearing on Defendant's motion to suppress evidence without consideration of the evidence and information obtained during a trash pull used to support their warrant application.

State v. Wright IASCt 18JUN2021

Tags: Search and Seizure, Trash Pull, Abandoned Property,

*** EXCELLENT DISCUSSION OF FOURTH AMENDMENT HISTORY – 123-page decision***

The Supreme Court conditionally affirmed Defendant's convictions and remanded for the district court to hold a hearing on Defendant's motion to suppress evidence, holding that the peace officer in this case conducted an unreasonable search and seizure by taking a citizen's opaque trash bags left outside for collection, opening the trash bags, and rummaging through the papers and effects contained therein. Despite an ordinance making it unlawful for any person to take solid waste placed out for collection, Officer Brandon Heinz, without probable cause or warrant, took Defendant's garbage bags and searched through them during the dark of night. Heinz subsequently applied for and was granted a search warrant based on the evidence obtained from the warrantless seizure and search of Defendant's trash bags. Defendant was subsequently charged with several drug-related counts. The district court denied Defendant's motion to suppress, and Defendant was found guilty. The court of appeals affirmed. The Supreme Court held that Heinz conducted an unreasonable search and seizure in violation of Iowa Const. art. I, 8 and that remand was required for a suppression hearing without consideration of the evidence obtained during the trash pulls used to support the warrant application.

North Dakota v. Van Der Heever NDSCt 24JUN2021

Tags: Reasonable Suspicion, DUI, eyewitness, corroboration

The State appealed a district court order granting Marco Van Der Heever’s motion to suppress evidence, arguing the officer had reasonable suspicion to stop Van Der Heever’s vehicle. Van Der Heever was charged with driving under the influence of intoxicating liquors. He moved to suppress the evidence

obtained as a result of his vehicle being stopped by law enforcement. The district court held a hearing, where Sergeant Cory Mortensen provided the sole testimony. Mortensen testified he was contacted by dispatch to respond to a possibly impaired driver at approximately 12:30 a.m. on June 28, 2020. Dispatch informed him that the reporting party, John Towes, stated a silver F-150 pickup was traveling on Central Avenue in Walhalla, North Dakota, stopping and reversing in the middle of the road. Towes reported the driver's actions caused him to stop and reverse his vehicle to avoid being hit by the F-150. Mortensen testified that Central Avenue was the road between the two bars in Walhalla, and that Towes reported the F-150 was parked "up town at the local bar all afternoon." Mortensen stated that he was personally familiar with Towes from prior community contacts. After receiving Towes' phone number from dispatch, Mortensen called him. Towes identified the driver as male and believed he was probably impaired. Towes did not know where the F-150 was located at that time, but called back shortly after and said the vehicle was parked on 7th Street, just north of Delano Avenue. Towes was parked down the road, watching the F-150, and he told Mortensen the driver of the F-150 was outside of his parked vehicle. After the suppression hearing, the district court granted Van Der Heever's motion to suppress, concluding that Mortensen should have corroborated some of Towes' report before stopping Van Der Heever's vehicle. The North Dakota Supreme Court concluded the district court misapplied the law when it concluded Mortensen needed to further corroborate Towes' information. Under the totality of the circumstances, Mortensen had reasonable suspicion of criminal activity, and the court erred by granting Van Der Heever's motion to suppress evidence.

State v. Tidwell OHSCt 24JUN2021

Tags: Reasonable Suspicion, DUI, anonymous tip, corroboration

The Supreme Court reversed the judgment of the court of appeals upholding the order of the municipal court granting Defendant's motion to suppress, holding that the police officer's investigatory stop of Defendant was reasonable and thus did not violate the Fourth Amendment. At issue was whether the officer had reasonable suspicion to briefly detain Defendant in order to confirm or dispel an unidentified witness's claim that Defendant was operating a motor vehicle while intoxicated. The trial court granted Defendant's motion to suppress. The court of appeals affirmed, holding that the officer lacked the reasonable suspicion necessary to effectuate a lawful investigatory stop because the anonymous tip lacked sufficient indicia of reliability and because there was no evidence of erratic driving by Defendant prior to the stop. The Supreme Court reversed, holding that the officer had reasonable suspicion to investigate whether Defendant was driving while drunk based on the unidentified customer's tip and the officer's own partial corroboration of that tip.

Texas v. Mata TXCCA 23JUN2021

Tags: Miranda, Public Safety Exception, Kidnapping

A fifteen-year-old girl was kidnapped. Appellee Ricardo Mata called the girl's mother and demanded a ransom of $300 for her release. He said this was the amount he had "paid" for her. A sheriff's investigator posed as a friend of the mother to negotiate the trade. While on the phone, the investigator had Appellee's cell phone "pinged," and they were able to trace the phone's location. Appellee left the house in a vehicle, and the phone's "pinged" location matched his movements. At some point Appellee mentioned that his battery was dying; investigators had a marked police car stop Appellee's vehicle. Investigators arrived on the scene and questioned Appellee regarding the kidnapped girl. They did not administer Miranda warnings. One investigator immediately accused Appellee of being the kidnapper and said that "they got him." After further "aggressive interrogation," Appellee said he would help locate the girl if they let him go. The investigator responded that Appellee would not be free to leave. After continued interrogation, Appellee revealed the child's location. Once she was found, Appellee was transported to the sheriff's office. Appellee filed a motion to suppress statements made by him to law enforcement, contending the investigators did not give him Miranda warnings. The trial court agreed, suppressing any "statements alleged to have been made by [Appellee] at the time he was detained on the side of the road and in response to direct questioning from Investigator Porraz, Chavez, and or Deputy Canales." The trial court found that Appellee was "not free to leave the side of the road" at the time he gave the roadside statements and that Miranda warnings had not been given. On appeal, the State argued that the roadside questioning fell within the public safety exception to the Miranda rule and that the resulting statements were admissible. The court of appeals disagreed, holding that the public safety "exception is a narrow one, and it has only been used in situations involving the use of guns." The appellate court concluded that "the officers had no indication of a weapon or gun being involved or used to endanger the safety of the public," and the court declined to construe the public safety exception more broadly because that "may lessen the clarity of the Miranda rule." The Texas Court of Criminal Appeals reversed both the trial and appellate courts, finding the "public safety" exception to Miranda extended to attempts to find a kidnapped child.

Tilghman v. Texas TCCCA 23JUN2021

Tags: Search, Hotel Room, Eviction, Plain View Seizure, Search Incident to Arrest

After hotel management smelled marijuana smoke coming from a guest room, a hotel employee knocked on the door in an attempt to evict the guests. After this attempt was unsuccessful, a manager later requested police assistance with evicting the guests. In assisting with the eviction, police entered the hotel room and witnessed drugs in plain view. Police then arrested the occupants of the room, conducted a search of the room incident to arrest, and seized the drugs. Appellant Michael Tilghman appealed his ultimate conviction, arguing police's entry into his rented room violated his reasonable expectation of privacy in the room. The Texas Court of Criminal Appeals reversed the court of appeals, which held the trial court erred in failing to grant Appellant's motion to suppress evidence of the drugs.

USE OF FORCE

Gerling v. Waite 8thCIR 23JUN2021

Tags: Use of force, warrantless search, home entry, taser, unlawful arrest

Plaintiff filed suit against a police officer under 42 U.S.C. 1983, alleging that the officer unlawfully arrested him and used excessive force during the arrest. Plaintiff's claims stemmed from an incident where the officer issued tickets to him for illegal parking and resisting arrest. Plaintiff pleaded guilty to illegal parking by signing the ticket at the police station, and the City later dismissed the charge of resisting arrest. The Eighth Circuit affirmed the denial of summary judgment on plaintiff's unlawful arrest claim where there is a genuine dispute of material fact about whether the officer entered plaintiff's home without a warrant to effect the arrest. In regard to plaintiff's separate Fourth Amendment claim premised on the alleged use of excessive force, the court concluded that the officer is entitled to qualified immunity because an officer could reasonably believe that plaintiff was resisting arrest. The court explained that, under the circumstances, it was not clearly established at the time that officers were forbidden to use force, including a taser, to arrest a suspect who resisted, ignored instructions, and walked away from the officer. The court noted that any damages that plaintiff suffered because of his arrest are subsumed within his unlawful arrest claim. Therefore, even without a freestanding claim for use of excessive force, plaintiff may recover any damages that he suffered from the officer's use of a taser if plaintiff succeeds on his claim alleging unlawful arrest based on an unjustified entry into the home.

BF 2 JULY 2021

Lombardo v. St. Louis USSC 28JUN2021

Tags: Use of Force

Lombardo v. St. Louis, 594 U.S. ___ (2021)

Officers arrested Gilbert for trespassing, took him to the St. Louis Metropolitan Police Department, and placed him in a holding cell. An officer saw Gilbert tie a piece of clothing around the cell bars and put it around his neck, in an apparent suicide attempt. Three officers entered Gilbert’s cell, eventually brought Gilbert to a kneeling position over a concrete bench, and handcuffed his arms behind his back. Gilbert kicked the officers and hit his head on the bench. They shackled his legs. Six officers moved Gilbert to a prone position, face down on the floor. Three officers held Gilbert down at the shoulders, biceps, and legs; at least one placed pressure on Gilbert’s back and torso. Gilbert tried to raise his chest, saying, “'It hurts. Stop.’” After 15 minutes of struggling, Gilbert’s breathing became abnormal; he stopped moving.

The officers rolled Gilbert onto his back and found no pulse; they performed chest compressions and rescue breathing. An ambulance transported Gilbert to the hospital, where he was pronounced dead. In an “excessive force” suit, the Eighth Circuit affirmed summary judgment in favor of the officers. The Supreme Court vacated. The excessive force inquiry requires careful attention to the facts and circumstances of each particular case, including the relationship between the need for the use of force and the amount of force used; the extent of the plaintiff’s injury; any effort by the officer to limit the amount of force; the severity of the underlying security problem; the threat reasonably perceived by the officer; and whether the plaintiff was actively resisting. Here, the court either failed to analyze or found insignificant, details such as that Gilbert was already handcuffed and shackled when placed in the prone position, that officers kept him in that position for 15 minutes, and that St. Louis instructs its officers that pressing down on the back of a prone subject can cause suffocation. The lower court’s opinion could be read to treat Gilbert’s “ongoing resistance” as controlling as a matter of law. Such a per se rule would contravene the careful, context-specific analysis required by precedent.

United States v. Lindsey 1stCIR 29JUN2021

Tags: Probation Search

The First Circuit affirmed Defendant's conviction of possession with intent to distribute cocaine, fentanyl, and methamphetamines, holding that Defendant's challenges on appeal were unavailing. During a probation compliance check in Defendant's apartment state probation officers discovered a black case containing illegal narcotics. The police then obtained and executed a warrant to search Defendant's apartment and his two cellphones for evidence of drug dealing. On appeal, Defendant argued, among other things, that there was no probable cause to search his cellphones and that the warrant did not adequately specify which files on the phones would be searched. The First Circuit affirmed, holding (1) the trial court did not err in denying Defendant's motion to suppress evidence recovered from the cellphones; (2) there was sufficient evidence to support the convictions; and (3) Defendant was not entitled to relief on his remaining allegations of error.

Hughey v. Easlick 6thCIR 28JUN2021

Tags: Use of Force, Handcuffs, Deliberate Indifference, Handcuffing Test

Hughey, speeding, passed Michigan State Trooper Easlick, who flipped on his dashcam and stopped Hughey. Hughey's car was uninsured and unregistered and there was an outstanding warrant for Hughey's failure to appear. Easlick relayed that Hughey needed to pay the $400 bond on her warrant in cash immediately or he would have to take her to the courthouse. Hughey did not resist arrest. Easlick handcuffed Hughey's hands behind her back and placed her in his car. Hughey expressed suicidal thoughts, so Easlick took her to the hospital. Hughey alleges that Easlick twisted her arm behind her back as he handcuffed her and did not check for tightness, that her shoulder hurt "[a]lmost immediately," and that after Easlick removed the handcuffs at the hospital, a nurse observed "rings around [Hughey's] wrists." No part of the handcuffing is visible in the dashcam footage. Hughey sued Easlick for excessive force and deliberate indifference under 42 U.S.C. 1983. The district court granted Easlick summary judgment. The Sixth Circuit reversed. Hughey created a genuine dispute of material fact about whether Easlick violated her clearly established constitutional right to be free from excessive force. Her allegations are enough to satisfy the "handcuffing test" at summary judgment. The dashcam audio does not foreclose the possibility that Hughey repeatedly complained about pain. A plethora of excessive-force handcuffing cases put Easlick on notice that the way that he yanked Hughey's arm, placed overly tight handcuffs, and ignored her complaints violated her right to be free from excessive force.

United States v. Keck 8thCIR 29JUN2021

Tags: Automobile Exception, Child pornography, cellphone seizure

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress evidence of child pornography. In this case, defendant was convicted of five counts related to child pornography. The court concluded that, based on the facts, there was a fair probability that contraband or evidence of a crime would be found in defendant's vehicle and the agents had probable cause to search the vehicle. Because the automobile exception allowed the officers to search defendant's van and to seize any materials that they had probable cause to believe were contraband, seizing defendant's devices from his van was constitutional. The court also concluded that the evidence was sufficient to support defendant's conviction for attempted distribution of child pornography.

United States v. Short 8thCIR 29JUN2021

Tags: Automobile exception, mobility, probable cause, Franks hearing

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress evidence found in a warrantless search of his vehicle and subsequent search of his apartment. In this case, defendant conditionally pleaded guilty to possessing a firearm in furtherance of a drug trafficking crime in violation of 18 U.S.C. 924(c)(1)(A)(i). The court concluded that the officers indisputably had probable cause to search defendant's vehicle, and an easily repairable flat tire did not cause the vehicle to lose its inherent mobility. Therefore, the automobile exception applied and the district court properly denied the motion to suppress evidence resulting from the vehicle search. The court also concluded that the district court did not abuse its discretion in denying a Franks hearing where the court agreed with the district court that defendant's assertions failed to show that an investigator deliberately or recklessly omitted various details from his affidavit. Even if defendant had made a sufficient showing of deliberate or reckless omissions, the affidavit contained other information that was sufficient to support a finding of probable cause. Finally, the court concluded that defendant's sentence was not substantively unreasonable where the district court imposed an upward variance in light of the serious nature of the underlying events. In this case, the district court did not abuse its substantial sentencing discretion in weighing the 18 U.S.C. 3553(a) factors.

Idaho v. Maloney IDSC 28JUN2021

Tags: automobile exception, container, probable cause

Daisha Maloney appealed her conviction for possession of methamphetamine. An officer with the Twin Falls Police Department stopped the car Maloney was driving after determining that the vehicle’s registration had expired. During this traffic stop, the officer asked if Maloney would consent to a search of the vehicle. She agreed. As Maloney and her passenger exited the vehicle, Maloney took her purse with her. The search of the vehicle yielded a “one-hitter” marijuana pipe which contained residue. The officer told Maloney he needed to search her purse, which was no longer in the car, based on what had been discovered in the vehicle. The officer found two pipes containing white crystal residue. Maloney was thereafter charged with possession of methamphetamine. Maloney moved to suppress the evidence found in her purse, which the State opposed by arguing that the automobile exception to the warrant requirement applied. Maloney contended that the automobile exception only applied to containers inside the vehicle once probable cause arose, and did not extend to her purse, which was outside the vehicle when the officers found the marijuana pipe. The district court agreed with the State that the automobile exception applied and denied Maloney’s motion. Maloney then entered a conditional guilty plea reserving her ability to appeal the suppression issue, and after judgment was entered, she filed a timely appeal. The Idaho Supreme Court reversed: once probable cause develops

such that the automobile exception applies, officers may search accordingly. However, unless probable cause to search a vehicle has developed before a container is removed from the vehicle, an officer may not rely on the automobile exception to search that container. Because the State has relied exclusively on the automobile exception to justify the search of Maloney's purse, the district court erred in denying Maloney's motion to suppress.

State v. Resiner RISC 30JUN2021

Tags: Probable Cause, Warrant

The Supreme Court vacated the judgment of the superior court finding Defendant guilty of possession of child pornography and sentencing him to a suspended term of incarceration, with probation, and ordering him to meet special conditions of probation and to register as a sex offender, holding that there was no substantial basis for determining that probable cause existed in this case. On appeal, Defendant argued, among other things, that the superior court erred in denying his motion to suppress evidence that was seized from his home on the grounds that there was no probable cause to support the issuance of a search warrant. The Supreme Court agreed and vacated Defendant's convictions, holding that there was no substantial basis for determining that probable cause existed in this case based upon the language of the affidavit.

Wexler v. Texas TXCCA 30JUN2021

Tags: Miranda, Custody

Police were told that the house at 318 Avenue A in South Houston was a site of drug dealing. During a week of surveillance, narcotics K-9 officers arrested four people leaving the house in possession of methamphetamine, and police got a warrant to search the house. While uniformed officers in marked police cars blocked both ends of the street, 20 to 25 HROU officers surrounded the house, announced via loudspeaker from an armored vehicle that they had a search warrant, and directed occupants to exit the house. Appellant Suzanne Wexler came out and was detained by HROU officers and put in the back of a patrol car. While HROU did a protective sweep of the house, narcotics detective Jerome Hill questioned Appellant. Hill suspected that Appellant and someone named Jimmy were involved in distributing drugs, but Hill did not tell Appellant that she was a suspect, and he did not give her any warnings. Hill testified that he said, "We have a search warrant. Tell me where the narcotics are. It will save us some time doing the search. We're going to find it no matter what." Appellant told him that the drugs were Ain her bedroom in a dresser drawer. Appellant challenged the admissibility of that statement she made to police during the execution of a search warrant, claiming that the statement was a product of custodial interrogation. The court of appeals determined that Appellant made the statement before she was in custody, and it was properly admitted by the trial court. Finding no reversible error, the Texas Court of Criminal Appeals affirmed the trial court.

USE OF FORCE

Jackson v. Gautreaux 5thCIR 1JUL2021

Tags: Use of Force, Deadly Force, Use of Vehicle as a weapon

The Fifth Circuit affirmed the district court's grant of summary judgment based on qualified immunity to police officers who shot and killed Travis Stevenson. Stevenson was shot after unsuccessful efforts by police to deescalate a situation where Stevenson repeatedly slammed his vehicle into a police cruiser and a concrete pillar in front of an apartment building while yelling "Kill me!" The court concluded that the district court correctly held, in accordance with precedent, that plaintiffs' excessive-force claim fails as a matter of law. In this case, Stevenson was using his car as a weapon; Stevenson, like the drivers in the court's precedent, exhibited volatile behaviors that contributed to the officers justification in firing to prevent death or great bodily harm; and plaintiffs have not produced any evidence that suggests the officers might have had a reasonable alternative course of action. The court agreed with the district court that plaintiffs forfeited their failure-to-train claim against the sheriff by failing to plead it in their complaint and raising it only in response to the officers' motion for summary judgment.

Burbridge v. Biggins 8thCIR 25JUN2021

Tags: Use of Force, First Amendment Retaliation, Qualified Immunity, Excessive Force

The Eighth Circuit affirmed the district court's denial of the officers' motion for summary judgment in a 42 U.S.C. 1983 action brought by plaintiff, who had been arrested at a protest, alleging violations of his First and Fourth Amendment rights and conspiracy to violate his rights, and under Missouri state law. Plaintiff and his wife were documentary filmmakers who were covering protests in downtown St. Louis, Missouri, following Officer Jason Stockley's acquittal of charges arising from the death of Anthony Lamar Smith. The court concluded that, viewing the evidence in the light most favorable to plaintiff, a reasonable jury could conclude that Officer Biggins used excessive force during plaintiff's arrest, that he acted with an "actual intent to cause injury" to plaintiff, and that his use of excessive force was done in retaliation for plaintiff's First Amendment activity. Therefore, the district court did not err in denying summary judgment based on qualified immunity to Officer Biggins on plaintiff's First and Fourth Amendment claims, nor did the district court err in denying summary judgment based on official immunity to Officer Biggins on plaintiff's state law assault and battery claim. The court declined to consider the officers' argument concerning application of the intracorporate conspiracy doctrine because it was raised for the first time on appeal.

Steed v. Missouri State Highway Patrol 8thCIR 25JUN2021

Tags: Seizure, No Physical Force, Use of Force, Spike Strips, Qualified Immunity

After Jerome Goode led police on a twenty-five-mile car chase, the chase ended in his death and the deaths of passengers Lavoy Steed and Leon Haywood. Steed's next friend filed a 42 U.S.C. 1983 action against Missouri State Troopers Fowler and Ashby, alleging that the traffic stop that precipitated the chase and an attempt to halt Goode's vehicle with spike strips were unconstitutional seizures in violation of the Fourth Amendment. The Eighth Circuit affirmed the district court's grant of summary judgment in favor of the troopers, concluding that Trooper Fowler had probable cause to stop the vehicle where dashcam footage shows the vehicle going close to ninety miles per hour. Even assuming that the trooper misinterpreted the speed reading, he would still be entitled to qualified immunity because he had at least arguable probable cause to believe the vehicle was speeding. The court also concluded that the record clearly establishes that the troopers did not apply physical force by trying to use the spike strips, and thus there was no seizure.

28 BF 9JUL2021

United States v. Gondres-Medrano 4thCIR 8JUL2021

Tags: Probable Cause, Automobile Exception

The Fourth Circuit affirmed defendant's conviction and sentence for possession with intent to distribute a mixture containing fentanyl and heroin. The court concluded that police had probable cause to search the shoebox for drugs under the automobile exception where the officers used a reliable informant who had provided accurate information in the past and where officers corroborated significant parts of the informant's information. The court also concluded that the district court did not abuse its discretion by admitting a video that showed defendant opening a heroin package under Federal Rule of Evidence 403 where it was highly probative to the government's case and to undermining defendant's defense. Finally, the court concluded that there was no error in the district court's application of a two-level sentencing enhancement for obstruction of justice under USSG 3C1.1 for perjury during sentencing.

To read or download the full decision CLICK HERE

Walker v. Donahoe 4thCIR 7JUL2021

Tags: Reasonable Suspicion, Terry Stop

A week after a gunman opened fire inside a Parkland, Florida school with an AR-15-style assault rifle, a 911 call reported a man with an assault rifle walking along Route 33 in Putnam County. Corporal Donahoe and Deputy Pauley were dispatched, knowing that a k-12 school was less than a mile ahead of the armed man (Walker), who was wearing military-style clothing. Seeing Walker, the officers believed that he could be under the age of 18. It is generally legal in West Virginia for persons over the age of 18 to openly carry firearms. Walker challenged the officers' authority to stop and detain him and initially declined to produce identification, He relented but refused to provide information about his gun and his reason for carrying it. Donahoe did not restrain Walker, pat him down, or otherwise touch him. Donahoe called for a criminal history check, telling Walker "I have the absolute legal right to see whether you're legal to carry that gun," indicating that Walker could not leave. Learning that Walker was 24 and only had a misdemeanor conviction, Donahoe returned Walker's identification papers and told him that he was free to go. The encounter lasted less than nine minutes. The Fourth Circuit affirmed summary judgment in favor of Donahoe in Walker's suit under 42 U.S.C. 1983. There was reasonable suspicion supporting Donahoe's investigatory detention of Walker. Lawful conduct can contribute to reasonable suspicion; the circumstances of Walker's firearm possession were unusual and alarming enough to engender reasonable suspicion.

United States v. Callison 8thCIR 2JUL2021

Tags: Traffic Stop, Reasonable Suspicion, Extended Stop

The Eighth Circuit reversed the district court's grant of defendant's motion to suppress drug-related evidence that police uncovered during a traffic stop. The court agreed with the government that the officer who pulled over defendant and others in the vehicle did not extend the traffic stop until he asked the driver of the vehicle if there was anything illegal in the car roughly six minutes into the encounter. In this case, when the officer asked his initial series of travel-related questions between five and six minutes into the encounter, he was still handling the matter for which the stop was made -- issuing a ticket for the unlit license plate violation. Therefore, the court concluded that the district court erred in holding that the officer needed reasonable suspicion of another crime to extend the stop when he began asking travel-related questions five minutes into the encounter. The court also agreed with the government that by the time the officer asked if there was anything illegal in the car, he had the reasonable suspicion required to extend the stop.

Clemons v. Couch 6thCIR 7JUL2021

Tags: Community Caretaking, Warrantless Entry into Dwelling, Qualified Immunity, Deliberate Indifference, Failure to Train

Christina and Dustin lived with Dustin's parents, Richard and Evalee. Christina filed for divorce. After a physical altercation with her in-laws, Christina left. Christina requested a law-enforcement escort to retrieve her belongings, stating that she was afraid to go alone. Trooper Couch accompanied Christina and followed Christina and her mother inside. Richard and Evalee were disturbed that law enforcement had entered their home. Dustin became hostile and shouted that he did not want Christina, Christina's mother, or the trooper in his home. Richard called his son-in-law Napier, a Perry County sheriff's deputy, who soon arrived. As Christina and Couch exited the house, Richard insulted Couch. A fight ensued. Napier disrupted the brawl; Couch deployed his taser to subdue Richard and Dustin. Richard, Dustin, and Evalee were arrested but a grand jury declined to issue indictments. Richard sued under 42 U.S.C. 1983 for wrongful entry, excessive force, wrongful arrest, deliberate indifference, and failure to train. The district court dismissed the claims against the Commonwealth, the state police, and Couch in his official capacity and granted Couch qualified immunity on the unlawful-entry claim, citing the "community caretaker" exception to the Fourth Amendment's warrant requirement, and noting that Couch had Christina's consent to enter the home. The Sixth Circuit reversed and remanded. A reasonable jury could conclude that Couch's conduct was in violation of Richard's clearly established Fourth Amendment right to be free from the state's warrantless entry into his home.

Killgore v. City of South El Monte 9thCIR 8JUL2021

Tags: Search, Closely Regulated Business Exception

The Ninth Circuit affirmed the district court's dismissal based on failure to state a claim of a 42 U.S.C. 1983 action brought by plaintiff, alleging that the City violated his Fourth Amendment rights when authorities, without a warrant, searched his massage business. The panel concluded that the Fourth Amendment permitted the warrantless searches of plaintiff's massage business where the California massage industry is a closely regulated industry and the Fourth Amendment's warrantless search exception for administrative searches of businesses applied. The panel applied the factors in New York v. Burger, 482 U.S. 691 (1987), and held that the warrantless inspections were reasonable under the Fourth Amendment because there is no question that curtailing prostitution and human trafficking is a

substantial government interest; the warrant exception is necessary to further the regulatory scheme considering the potential ease of concealing violations; and the City ordinance governing massage establishments and the conditional use permit sufficiently restrained the City in both the time and purpose of each inspection. Therefore, the district court properly dismissed plaintiff's Fourth Amendment claims.

Khoury v. Miami-Dade County School Board 11thCIR 7JUL2021

Tags: Baker Act, Unlawful Seizure, Municipal Liability, pervasive practice

Khoury lives near the school's baseball field and complained about parking, noise, lights, and the influx of people. Khoury took photos of cars that she believed were illegally parked. Khoury and a parent had a verbal confrontation. Williams, a Miami-Dade Public School police officer, told Khoury the cars were not illegally parked and told the parents there was nothing he could do about Khoury filming. Other residents told Williams that Khoury took photos of their children and that they were "afraid of her." Khoury claims Williams "charged" her because she was recording him and twisted her arm behind her back. Williams and the parent claim that Khoury "pushed" Williams, then threw herself on the ground," yelling "false arrest." After handcuffing Khoury, Williams detained her under the Baker Act for mental health observation and took her to a hospital for treatment of her dislocated elbow. She was transferred to Miami Behavioral Health Center, which found no evidence of "psychosis." Khoury was released two days later and filed suit under 42 U.S.C. 1983, alleging that the School Board had an unwritten policy of improperly detaining people under the Baker Act to reduce crime statistics. The Eleventh Circuit affirmed summary judgment in favor of the Board, noting the lack of evidence establishing a pervasive practice. The court reversed as to Williams, noting the many disputed facts. Williams concluded Khoury was "not mentally well" simply because she didn't believe that the cars were parked legally; Khoury was not violating the law or harming anyone by filming, and other eyewitnesses testified that Khoury was not a threat—her response was simply irrational. That alone does not form a basis under which a reasonable officer would conclude that Khoury was a danger to herself or others.

In re Matthew W. CACOA 8JUL2021

Tags: Miranda, Custody, Interrogation

A juvenile wardship petition (Welfare and Institutions Code section 602(a)) alleged that Matthew had committed assault with a deadly weapon and assault by means likely to produce great bodily injury; that Matthew had personally inflicted great bodily injury on the victim and had caused the victim to suffer

great bodily injury resulting in paralysis and had personally used a deadly weapon, a knife. The juvenile court found true all of the allegations except for the paralysis enhancement; dismissed count two and the accompanying enhancement, at the request of the prosecutor; declared Matthew a ward of the court; and placed Matthew on probation with conditions. The California Courts of Appeal reversed, finding that Matthew's pre-arrest statements to police were made during a custodial interrogation without the required Miranda warnings and that the admission of those statements was prejudicial. While Matthew was told at the start of the interrogation that he was not under arrest, and the police officers who were present did not handcuff him or unholster their weapons, the interview was initiated by police, who had just heard from another that Matthew had stabbed the victim. The entire interrogation was an attempt to get Matthew to admit that he stabbed the victim and to provide additional incriminating information.

North Dakota v. Lelm NDSC 8JUL2021

Tags: Traffic Stop, Passenger, Backpack Search, Inevitable Discovery,

The State appealed an order suppressing evidence obtained from a warrantless search of Nicholas Lelm's backpack. In 2019, a City of Mandan Police Officer initiated a traffic stop of a vehicle with two occupants, a driver and a passenger. The driver was arrested on outstanding warrants and for driving under suspension. The driver provided his consent to search the vehicle. Lelm, the passenger, was seated in the front passenger seat with a backpack on his lap. The officer who initiated the stop called for the assistance of a drug-detection canine. After the canine arrived, Lelm was asked to exit the vehicle. Lelm exited and took his backpack with him. Lelm placed his backpack on the ground some distance from the vehicle. The officers then detained Lelm, conducted a pat-down search, placed him in handcuffs, and secured him in the back of a patrol vehicle. While Lelm was detained and secured in the patrol vehicle, his backpack remained on the ground. The canine positively alerted on the front passenger door prompting a search of the vehicle. While on the scene, the canine paid no attention to the backpack. Upon completing the search of the vehicle, the officers searched the backpack and discovered drug paraphernalia and marijuana. After he had been placed under arrest, Lelm complained of chest pains and requested medical assistance. An ambulance was called to the scene to transport Lelm to the hospital. At Lelm's suppression hearing, an officer testified that ambulance personnel generally require a search of personal property before an individual is transported to the hospital. The officer testified the backpack would have been searched if the backpack was in the ambulance and if Lelm would have claimed the backpack as his property. Challenging the suppression order, the State argued the warrantless search was reasonable under either the automobile exception or search incident to arrest exception to the warrant requirement. Alternatively, the State argued that even if the warrantless search was unreasonable, the evidence was admissible under the inevitable discovery doctrine. Because neither the automobile exception nor the search incident to arrest exception applied to the warrantless search, and the State did not meet its burden of establishing the evidence would have been inevitably discovered, the North Dakota Supreme Court affirmed.

29 BF 16JUL2021

United States v. Rose 4thCIR 9JUL2021

Tags: Search, reasonable expectation of privacy, REP, FedEx, Packages, deceased person

Defendant was convicted by a jury of conspiracy to possess with intent to distribute five kilograms or more of cocaine and possession with intent to distribute 500 grams or more of cocaine. Defendant was sentenced by the district court to 420-months in prison and a five-year term of supervised release. The

Fourth Circuit concluded that the district court did not err in denying the suppression motion because, at the time the searches were conducted, defendant did not have a reasonable expectation of privacy in the two FedEx packages that were addressed to a deceased person. The court explained that defendant did not have a reasonable expectation of privacy in the packages addressed to the deceased because, at the time of the searches, there were no objective indicia that defendant owned, possessed, or exercised control over the packages. The court also rejected defendant's arguments regarding the procedural and substantive reasonableness of his sentence. In this case, the district court did err by applying the two-level leadership enhancement under USSG 3B1.1(c) and, even if the district court had erred, the error was harmless. Furthermore, the district court's comments at sentencing concerned defendant's actions and behaviors and did not establish that the district court was biased. Finally, the district court took care in addressing the 18 U.S.C. 3553(a) sentencing factors and defendant failed to rebut the presumption that his sentence is substantively reasonable.

United States v. James 8thCIR 9JUL2021

Tags: Probable Cause, Warrant

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress in an action where defendant was convicted of robbing or attempting to rob multiple stores around the Twin Cities. Law enforcement identified defendant by searching cellular-tower records, which showed that defendant's cell phone was at or near at least four of the robberies. In this case, the affidavits for the search warrants explained why there was a fair probability that the cellular-tower records would identify the robber. Considered in their totality, the court concluded that the facts provided a substantial basis to conclude that probable cause existed. The court explained that the judges knew from the affidavits that the robberies were connected by a common modus operandi; that the robber likely carried a cell phone, even if he did not use it during the robberies; and that comparing the numbers from cellular-tower records could reveal his true identity. Furthermore, the search warrants were constrained both geographically and temporally.

United States v. Braggs 2ndCIR 13JUL2021

Tags: Parole Search

The Second Circuit vacated the district court's order granting defendant's motion to suppress evidence found during a search of his house. Defendant was on parole at the time of the search where parole officers were tipped by an anonymous informant that defendant may have been in possession of guns. During the search, the officers found multiple firearms, a box of ammunition, and illegal narcotics. The district court concluded that the search violated defendant's Fourth Amendment rights because it was executed without reasonable suspicion. However, the court concluded that, under the Special Needs Doctrine jurisprudence, the parole search was proper because it was reasonably related to the parole officers' duties. The court remanded for further proceedings.

United States v. Michalik 5thCIR 18JUL2021

Tags: Miranda, Custody for Miranda , Consent search of laptop

The Fifth Circuit affirmed defendant's conviction for possessing child pornography. The court concluded that the district court did not err in denying defendant's motion to suppress evidence of his statements to HSI agents and the evidence from his laptop. The court weighed the totality of the circumstances and concluded that defendant was not in custody at the time he made the statements and thus Miranda warnings were not necessary. The court also weighed the factors for determining whether a consent to a search was voluntary and concluded that the district court did not err in determining that defendant's consent to the search of his laptop was voluntary.

Goodloe v. Brannon 7thCIR 12JUL2021

Tags:

Chicago officers responded to a 911 call and found Jones bleeding from a gunshot wound. Jones stated, “Damon shot me” and that Damon was wearing a “black hoodie.” About 90 seconds later, officers encountered Damon Goodloe, wearing a black hoodie but unarmed. They took Goodloe to the scene, where Jones stated, “he’s the one that shot me.” Jones died at a hospital. The prosecution introduced Jones’s statements to the officers. Goodloe’s hands tested positive for gunshot residue. Lovett testified that she saw Goodloe (whom she knew) and another man, both in black hoodies, heard several gunshots but ducked before she could see who fired a gun, called 911, and identified Goodloe in a line-up. Loggins testified that he was purchasing cocaine from Jones when he observed two men in black hoodies. When the shots were fired, he fled. A jury convicted Goodloe of first-degree murder without finding that he personally discharged a firearm. The Seventh Circuit affirmed the denial of Goodloe’s habeas petition, first upholding the admission of Jones’s identification of Goodloe. Statements are

nontestimonial when made during police interrogation under circumstances objectively indicating that the primary purpose of the interrogation is to meet an ongoing emergency. The state appellate court did not unreasonably apply Supreme Court precedent in concluding that the emergency was ongoing when Goodloe was taken to the ambulance in handcuffs. Counsel was not ineffective for failing to investigate witnesses who could have provided an innocent explanation for Goodloe's presence near the shooting; their testimony was unlikely to create a reasonable probability of a different result.

United States v. Bebris 7thCIR 15JUL2021

Tags: government action

Bebris sent child pornography over Facebook's private user-to-user messaging system. Facebook licenses a "hashing" image recognition technology, PhotoDNA, developed by Microsoft. PhotoDNA provides the capability to scan images uploaded onto a company's platform and compares the "hash" (or essence) of a photo with a database of known images of child pornography. Three of Bebris's messages were flagged by PhotoDNA. Facebook employees reviewed the images and reported them to the CyberTipline of the National Center for Missing and Exploited Children, as required by 18 U.S.C. 2258A(a), which then reported the images to Wisconsin law enforcement. Those officials obtained a warrant and searched Bebris's residence, where they found a computer containing numerous child pornography files. Bebris, charged federally with possessing and distributing child pornography., argued that the evidence should be suppressed, contending that Facebook took on the role of a government agent (subject to Fourth Amendment requirements) by monitoring its platform for child pornography and reporting that content. The district court denied his Federal Rule of Criminal Procedure 17(a) subpoena seeking pre-trial testimony from a Facebook employee with knowledge of Facebook's use of PhotoDNA. The Seventh Circuit affirmed his conviction. The subpoena sought cumulative testimony. The record included a written declaration from Microsoft and Facebook and live testimony from an executive at NCMEC, which administers the federal reporting system. Facebook did not act as a government agent in this case.

United States v. Tuggle 7thCIR 14JUL2021

Tags: pole cameras, mosaic

In 2013-2016, law enforcement investigated a large methamphetamine distribution conspiracy, installing three cameras on utility poles on public property that viewed Tuggle's home and a shed owned by Tuggle's coconspirator, Vaultonburg. The cameras recorded around the clock. Rudimentary lighting technology improved the quality of overnight footage; agents could remotely zoom, pan, and tilt the cameras and review the camera footage in real-time or later. Officers tallied over 100 instances of what they suspected were deliveries of methamphetamine to Tuggle's residence. After these alleged "drops,"

different individuals would arrive, enter the home, and purportedly buy methamphetamine. Several witnesses corroborated these activities. Relying heavily on the video evidence, officers secured and executed search warrants on several locations, including Tuggle's house. After the denial of his motions to suppress, Tuggle pled guilty under 21 U.S.C. 841(a)(1) and (b)(1)(A) to conspiring to distribute, and possess with intent to distribute, at least 50 grams of methamphetamine and at least 500 grams of a mixture containing methamphetamine, and 21 U.S.C. 856(a)(1) for maintaining a drug-involved premises. The Seventh Circuit affirmed. The government used commonplace technology, located where officers were lawfully entitled to be, and captured events observable to any ordinary passerby; it did not invade an expectation of privacy that society would be prepared to accept as reasonable. The prolonged, uninterrupted use of pole cameras did not constitute a Fourth Amendment search.

United States v. Evans 8thCIR 12JUL2021

Tags: Probable Cause, Warrant

The Eighth Circuit affirmed the district court's denial of defendant's motion to suppress, concluding that the warrant affidavit contained sufficient corroborated information to support a fair probability that evidence of a crime would be found at defendant's house. In this case, the detective's corroboration, combined with the specificity of the anonymous source's information and physical presence before the officer and issuing judge, sufficiently established probable cause for the search warrant. The court also concluded that, because the affidavit underlying the search warrant for defendant's residence also supported probable cause to detain and arrest him, the officers did not need separate indicia of criminal activity occurring at the time of the arrest to make the arrest.

Gaetjens v. Winnebago County 7thCIR 13JUL2021

Tags: Warrantless entry into dwelling, Emergency exigency

Gaetjens bred cats in her Loves Park home.. Her doctor told her to go to the hospital because of high blood pressure. Later that day, the doctor couldn't locate Gaetjens and phoned Eads, Gaetjens's neighbor. Eads could not locate Gaetjens. The next day, Gaetjens was still missing. Eads called the police, stating that Gaetjens might be experiencing a medical emergency. Officers went to Gaetjens's home but could not see anyone inside. They saw packages on the porch, untended garbage, and a full mailbox. . Eads provided a key. The police went into the home but immediately left because of intense odors, "urine, feces, and maybe a decomposing body." The police called the Fire Department to enter with breathing devices. The Fire Chief temporarily condemned the home as not fit for habitation. Firefighters went inside to look for Gaetjens but found 37 cats. They summoned Animal Services to round up the cats because Gaetjens was not allowed inside the condemned house. The cats were

impounded for nine days. Four cats died. Gaetjens, who had been in the hospital, sued under section 1983. The Seventh Circuit affirmed summary judgment in favor of the defendants. The Fourth Amendment ordinarily prohibits such conduct without a warrant but emergencies breed exceptions. The defendants had reason to believe that Gaetjens was experiencing a medical emergency and found her home so noxious that it posed a public safety risk.

USE OF FORCE

McReynolds v. Schmidli 8thCIR 13JUL2021

Tags: Monell Liability, Municipal Liability, Use of Force, Takedown, Active Resistance

After plaintiff sustained significant injuries during the course of an arrest on domestic violence and related charges, he filed suit against the arresting officers, city officials, and the City of Independence, alleging violations of his constitutional rights. The district court granted summary judgment to the defendants on all claims. The Eighth Circuit concluded that the district court erred in granting qualified immunity to Defendant Schmidli; plaintiff has shown a violation of the constitutional right to be free from excessive force by law enforcement; and a reasonable officer would have had fair warning that, at the time, he could not violently takedown a person who was not threatening anyone, not actively resisting arrest, and not attempting to flee. However, the court concluded that Defendant Gentile was entitled to qualified immunity because there was insufficient evidence that he used excessive force or significantly contributed to the driving force that caused the injury. The court also concluded that the defendant officers are entitled to summary judgment on the substantive due process claim where plaintiff failed to provide any evidence that any inaccuracy in the officers' reports was fabricated in order to frame him. Furthermore, there is no reasonable inference drawn from plaintiff's version of the facts that would allow a finder of fact to conclude that Schmidli and Gentile deliberately lied with the intention of framing him. Finally, the City was entitled to summary judgment on plaintiff's Monell claim where plaintiff failed to establish the City had an unofficial custom authorizing officers to use excessive force.

30 BF 23JUL2021

Conley v. United States 7thCIR 21JUL2021

Tags: Equal Protection, Due Process, Racial Profiling

Flowers was tipped off about q supposed stash house by a man claiming to be a disgruntled drug cartel courier. Flowers's brother and others recruited Conley to help rob that stash house. The supposed courier was an undercover ATF agent. There was no stash house or real drugs, just a convincing ruse designed to ensnare Flowers and his crew. The FBI had originally focused on Flowers through an investigation into a Chicago street gang. Flowers’s group, including Conley, met to plan the robbery. Conley agreed to participate and volunteered for a frontline role. Once the participants were in a van to go to the stash house, the undercover agent gave the arrest signal. Conley was convicted of conspiring

and attempting to possess with intent to distribute more than five kilograms of cocaine, 21 U.S.C. 841(a)(1) and 846; possessing a firearm in furtherance of a drug trafficking offense, 18 U.S.C. 924(c)(1)(A); and being a felon in possession of a firearm, 18 U.S.C. 922(g)(1). Conley invoked 28 U.S.C. 2255 to vacate his convictions, arguing that they were obtained unlawfully through racially selective law enforcement and outrageous government conduct, in violation of his Fifth Amendment equal protection and due process rights, The Seventh Circuit affirmed the denial of his motion. Although the district court required “clear and convincing” evidence for Conley’s selective enforcement claim, his evidence cannot meet even the less-demanding standard of preponderance of the evidence. The Seventh Circuit does not recognize a defense for “outrageous government conduct,” and even if it did, ATF’s conduct in Conley’s case would not satisfy the standard other circuits have applied.

United States v. Sanders 8thCIR 16JUL2021

Tags: Emergency Exigency

On remand from the Supreme Court in light of Caniglia v. Strom, 593 U.S. ___, 141 S.Ct. 1596 (2021), the Eighth Circuit affirmed the district court's denial of defendant's motion to suppress. The court concluded that officers had an objectively reasonable basis to enter the victim's house without a warrant. In this case, the officers were dispatched to the scene of a domestic disturbance call; an officer observed a child in an upstairs window acting excitedly and gesturing at him; the victim answered the door with visible injuries, even though she said everything was okay; and, after the officers heard crying coming from inside the house, decided to enter to provide emergency assistance. The court explained that, although the presence of a domestic violence suspect in a home with children cannot alone justify a warrantless entry, here the officers were confronted with facts indicating that the suspect was a threat to the children or others. In this case, the record establishes that the officers had reason to believe that a domestic violence suspect was inside the home with children. Furthermore, the scope of the encounter was carefully tailored to satisfy the officers' purpose for entry, and one of the officers had an objectively reasonable belief that a gun was inside the house. Finally, the court concluded that the district court did not err in applying a two-level sentencing enhancement under USSG 3C1.1 for obstruction of justice for attempting to influence a witness.

North Dakota v. Stands NDSCt 22JUL2021

Tags: Threshold Seizure, Reasonable Suspicion, Terry Stop

Michael Stands was convicted by jury of possession with intent to manufacture or distribute methamphetamine. Stands argued on appeal he was unlawfully seized and the officers unlawfully entered his hotel room in violation of the Fourth Amendment to the United States Constitution and Article I, Section 8 of the North Dakota Constitution when officers reached across the threshold to seize him, and all evidence obtained had to be suppressed under the exclusionary rule. The North Dakota Supreme Court held that the hotel doorway was a “public place” which rewquired no warrant and that the officers had a reasonable suspicion to detain Stands and affirmed Stands' conviction.

Graham v. Barnette 8thCIR 16JUL2021

Tags: Community Caretaking Exception, Warrantless Mental Health Seizure, Retaliatory Arrest

On remand from the Supreme Court in light of Caniglia v. Strom, 593 U.S. ---, 141 S. Ct. 1596 (2021), the Eighth Circuit affirmed the district court's grant of summary judgment for the officers and the City in this action under 42 U.S.C. 1983 and Minnesota state law. The court concluded that it was well established at the time that the community-caretaking exception was a standalone doctrine that could justify the officers' warrantless entry into a home. In the circumstances here, the court concluded that the officers' warrantless entry did not violate plaintiff's Fourth Amendment rights under the then-extant community-caretaking jurisprudence. Therefore, the officers were entitled to qualified immunity with respect to the Fourth Amendment warrantless-entry claim. In regard to plaintiff's claim that the officers violated her Fourth Amendment right to be free from unreasonable seizures when they seized her for a mental-health evaluation, the court affirmed summary judgment and concluded that probable cause of dangerousness is the standard that must be met for a warrantless mental-health seizure to be reasonable under the Fourth Amendment. Furthermore, assuming the officers lacked probable cause here, they may still be entitled to qualified immunity given the ambiguity in the court's case law about the requisite standard. Finally, the officers are entitled to qualified immunity because their actions did not violate clearly established law under the lower reasonable-belief standard some of the court's precedents suggested was the requisite standard. In regard to plaintiff's claim of retaliatory arrest, the court affirmed summary judgment because no reasonable jury could conclude that retaliatory animus was a but-for cause of plaintiff's arrest. In regard to plaintiff's claim that the City's policy concerning seizures for emergency mental-health evaluation was facially unconstitutional, the district court affirmed summary judgment because the policy requires probable cause that the person is a threat to self or others. The court rejected plaintiff's inadequate-training claim and concluded that the officers were entitled either to statutory or official immunity on the state law claims.